

GODS OF THE
LIGHTNING



OUTSIDE
LOOKING IN

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LIGHTNING; OUTSIDE LOOKING IN ***

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GODS OF THE LIGHTNING

OUTSIDE LOOKING IN

Two Three-act Plays

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GODS OF THE LIGHTNING

BY
MAXWELL ANDERSON
AND
HAROLD HICKERSON

OUTSIDE LOOKING IN

BY
MAXWELL ANDERSON
BASED ON "BEGGARS OF LIFE," BY JIM TULLY

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GODS OF THE LIGHTNING

OUTSIDE LOOKING IN

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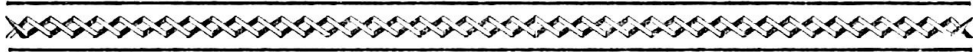
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GODS OF THE LIGHTNING



THE CAST

SUVORIN
HEINE
ROSALIE
MACREADY
ANDY
IKE
SPIKER
PETE
MILKIN
SOWERBY
BAUER
CAPRARO
POLICEMEN, COURT ATTENDANTS, JURYMEN
SALTER
MRS. LUBIN
HASLET
BARTLET
GLUCKSTEIN
WARD
JUDGE VAIL
LUBIN
HENRY
SALVATION LASSIE
JERUSALEM SLIM



GODS OF THE LIGHTNING

ACT I

Scene: The scene is the restaurant in the Labor Lyceum building of a city on the eastern seaboard.

At the right is a large window facing on the street, and at the right rear an outside entrance. At the left a door leads to an inner hall and the stairway to the upper floors. Along about half of the rear wall at the right runs a counter with a coffee urn and the usual display of quick lunch foods. A swinging door back of the counter leads to a small kitchen. There are folding doors in the rear wall at the left, opening on a hall used for labor meetings. There are tables and chairs for the customers of the restaurant. In the left rear corner there is a table covered with books and pamphlets and another which holds a chess-board. A large clock hangs on the rear wall. The hands point to ten-twenty. It is dark outside.

Pete, the counter-man, swabs off the top of his counter and goes into the kitchen. Suvorin, a solid bulk of a man, with a satanic, dominating face, sits in the left rear corner, his chair tilted against the wall. His eyes are fixed on the floor. Heine, a disreputable figure enters from the street and looks furtively about him, glancing back at the window.

SUVORIN [*without moving*]. What are you doing here?

HEINE. Am I going to leave town without getting mine?

SUVORIN. You'll get yours fast enough if you hang around here.

HEINE. How much was it?

SUVORIN. \$28,000.

HEINE. Where's mine?

SUVORIN. That's half.

HEINE. How much?

SUVORIN. Fourteen. Take it and get out. You'd better beat it into Canada and stay there. You're a fool and a bungler. If you'd followed

instructions you'd have been safe.

HEINE. I had to do it. He was jumping at me.

SUVORIN. Take your money and to hell with you. You're a fool. Are they trailing you?

HEINE. No.

SUVORIN. You wouldn't know.

HEINE. Jesus, I'd know that.

SUVORIN. Don't go out that way. Go upstairs and out the back. There's an alley into Clark Street. Cross the line and for God's sake use your head.

HEINE [*going to lefthand door*]. Good-bye, Sport.

SUVORIN. Get out.

[*Heine goes out. Before the door has quite closed, Rosalie enters from the left, evidently passing Heine. She is a beautiful girl with a childlike Russian face.*]

ROSALIE. Who was that? Has he any business here?

[*Suvorin, seating himself, pays no attention to the question. One of the folding doors opens and Ward enters and closes the door.*]

WARD. Mac here yet?

SUVORIN. No.

WARD. Hell! Have you seen him this evening, Rosalie?

ROSALIE. No.

WARD. Oh, that's right, you—

ROSALIE. Yes?

WARD. Never mind.

[*He goes back through the doors. Mac enters from the street.*]

ROSALIE. Oh, Mac, where were you? I've been terrified!

MAC. [*Thrusting a revolver into her hands.*] Hello, kid. Put that away for me, will you, kid?

ROSALIE. But—whose is it?

MAC. That's all right—I don't want to carry it—that's all.

[*Ward re-enters, cramming his hat on.*]

WARD. Say, Mac, I thought you'd been picked up.

MAC. Do you need me in there yet?

WARD. You'd better come in just so they'll know you're here.

MAC. How's it going?

WARD. They're scared. Three men killed and about fifty in the hospital. You might be able to hold 'em if you put it to 'em just right. Otherwise we're licked.

MAC. Oh, no. We've got another card up our sleeves. Is Andy in there?

WARD. He's waiting for you. Listen—there's some talk about a raid tonight—maybe more than one—

ROSALIE. Say, Ward—if that'll keep I want to talk to Mac a minute. Do you mind?

WARD. All right. I'll tell Andy you're here.

[*He goes. Again part of a speech is heard.*]

THE SPEAKER. And now they ask us to vote another five thousand for relief! Where are we going to get five thousand? [*The door closes.*]

ROSALIE. Now then—

MAC. Now then—

ROSALIE. This is no place for you tonight.

MAC. I knew it was coming.

ROSALIE. And you're to beat it and stay under cover till they forget about this afternoon—

MAC. What do you know about this afternoon?

ROSALIE. I read about it—and my opinion is that you've done enough for one day. They can get along without you here.

MAC. It just happens they can't get along without me.

ROSALIE. You won't be much good to them in jail—

MAC. I'm not going to jail—so get that out of your head—

ROSALIE. Mac, you're a child—

MAC. You're pretty young yourself, you know. [*Andy enters.*] Hello, Andy.

ANDY. Looks like they was going to vote us down.

MAC. And then what?

ANDY. What do you say?

MAC. If you boys'll stay with me you know what we can do.

ANDY. I'll tell you how it is, Mac. We want to stay, see? I saw two or three of the boys before the meeting. They aren't scared worth a damn, because we licked the company once before and we can do it again. They can't operate without engineers.

MAC. I knew we could count on you.

ANDY. Well, wait a minute, Mac. Get us right. If the longshoremen go back tomorrow and we stay out it'll take 'em a couple of weeks to pick up enough engineers to get along, see?

MAC. Right.

ANDY. All right. But in a couple of weeks they could do it—and we'd be left holding the bag. See? So we figure this way. The mills are holding a strike meeting tonight. If the mills go out and the engineers stay out, why the longshoremen they won't be much good around the docks, and they'll walk out again. But if the mills keep going, we don't want to try it alone.

MAC. Don't worry. The mills are going out.

ANDY. Can I tell the boys you said that?

MAC. I want you to tell them I said it.

ANDY. All right. We'll have a meeting upstairs right after this jamboree's over in here, see? Will you wait for me here?

MAC. Yeah.

[Andy goes out.]

ROSALIE. Now you'll have to wait here—right where they'll be looking for you—

MAC. I've got to hold the thing together.

ROSALIE. But use your head—

MAC. I am using it. I know it's a risk to be here, but if I can pull this strike through it's worth it—

ROSALIE. Let them lose their strike—

MAC. Be reasonable—

ROSALIE. Anything you can do somebody else could do for you! I'll get rid of the gun for you—and you'll disappear for a couple of weeks! Do you think it's reasonable for you to wander in here with a gun in your pocket and half the police in town laying for you?

MAC. You certainly do feel old tonight, don't you, kid?

ROSALIE. It's enough to make anybody feel old. I've lived about a thousand years today—I wish this strike had never started, or it was over, or we could get away somewhere—

MAC. That wouldn't help. Everywhere I go there's a strike. I seem to take 'em with me. You'll have to get used to that.

ROSALIE. Can't you play safe, just this once? Can't you do that much for me?

MAC. You heard what I said to Andy. The company thinks it's got us in a corner and I'm going to prove it's wrong, that's all. *[He stoops and kisses her briefly as the folding doors open and Ward looks in.]*

WARD. You'd better come on in. Spiker isn't going so well.

MAC. Yeah. Don't worry, kid. We'll be all right.

[The voice of Spiker is heard.]

SPIKER *[inside]*. I'll tell you what I think—I think you're too easy—

A HECKLER [*inside*]. When did you ever work on the docks?

[*Mac and Ward enter the hall just as Ike and Milkin emerge, evidently shoved out of the meeting.*]

IKE [*as the door closes on him*]. Long live the freedom of loose talk! Why should they put me out? I was a longshoreman before most of those guys cut their first knee-pants! They wasn't even alive in '97. They ain't never seen hard times. I was born during the glorious second administration of General Grant, the most stupendous period of graft and prosperity this country has ever seen—with the solitary and luminous exception of Warren Gamaliel Harding! [*He goes to the counter with Milkin.*] Where's Pete? [*He addresses the hole in the wall through which food is pushed out from the kitchen.*] Hey, cuckoo, cuckoo, we want coffee!

PETE [*looking out*]. What you want?

IKE. A slug of coffee, cuckoo!

PETE. We don't cash checks.

IKE. You pay this time, Milkin. I lent all my money to a comrade. You can't trust these revolutionists.

MILKIN. You didn't have no money.

IKE. I had fifty cents this morning, and I gave it to a guy under guise of introducing me to a jane. But he weaseled me, at that.

MILKIN. Dat's all right. Only don't try to fool me.

IKE. You mean I was lying?

MILKIN. I can see right into your mind. I can see what you're thinking.

PETE. Yeah?

IKE. Yes, sir. And if you don't hurry up and give us coffee we'll put the black art on you.

PETE. I lost tree dollar on you for a check.

MILKIN [*laying a bill on the counter*]. Dat's all right. [*Pete draws coffee for two.*] We wouldn't put no black art on you. We wouldn't do nothing like that.

IKE. No, we wouldn't do that. Only we could, see? I could, too.

MILKIN. I don't tink you could. Not widout de cabalistic sign.

IKE. You gave me the sign, mystic?

MILKIN. Yeah, but you don't know how to apply it!

IKE. Yes, sir—it comes natural to me. I can handle the black art sign like a plate of beans, and right after you give it to me I could tell any man in the street what he was thinking. Just like that! Won't that be good when we get it working in politics? Jeez, that's a highly mystical sign!

MILKIN. Only remember, if you got it you don't work it for nutting but de best interests of de State.

IKE. Sure, the best interest of the State—

MILKIN [*with emphasis*]. And wait! Wait! Bide your time. And when you find a man in high office what don't belong dere, level your finger at him and say to him— “Come down from dere—come down from dere!”

[*As he says this he points a finger at an imaginary personage and by accident levels it at the street door, through which Sowerby is entering. Sowerby is a tall, lean, academic person, very threadbare and even frayed. He carries a high pile of books, a small bundle, and a coat. On top of the pile of books are perched two slippers.*]

SOWERBY. Yes, gentlemen, I'll come down. I've already come down considerably. In fact I've been shaken down again.

IKE. Put you out, huh?

SOWERBY. A recurrence of an old malady of mine, gentlemen. Landlady trouble. Don't let anybody tell you there's no housing shortage in this city. The housing problem is acute at this moment. I missed paying the rent just once—just once, mind you—and I'm on the street. Now that's a situation that should never arise. And it occurs, not once, not twice, but over and over again. [*He comes to the counter.*]

IKE. You ought to be a mystic.

SOWERBY. If that would help I'll be one. In fact, I am one.

IKE. It'll help you to a cup of coffee.

MILKIN. Sure ting. Give us another coffee.

[*Pete does so.*]

IKE. Listen, you was going to tell me about that second sign, you know—I never saw that one.

MILKIN. Yeah, you seen it all right, but you didn't recognize it. [*He reaches for pencil and paper. Ike casually puts the change in his pocket.*] See dat! Dat's de second one! Oh, boy, dat is a sign!

IKE. What can you do with it?

MILKIN. Dat is a sign! Dat's a black art sign! You wait!

SOWERBY. What do you mean, a black art sign?

IKE. We mean a black art sign, see? We're mystics. Me and him.

SOWERBY. Tell me about it.

IKE. You wouldn't know, see, you wouldn't know.

MILKIN. We got de numbers, dat's all.

IKE. See, we got the numbers.

MILKIN. We got de whole world's number. We got three, five, seven, and nine, see, and one more.

IKE. And one more, see? That's the real one.

SOWERBY. You can tell fortunes, I presume?

MILKIN. Dat's de amateur game.

SOWERBY. All right. Tell me how the strike's coming out.

MILKIN [*scribbling rapidly*]. I'll tell you. Look at dat! See dat? It don't look so good for de strike.

SOWERBY [*pointing*]. What's that?

MILKIN [*impressively*]. See dat? [*To Ike.*] He picks dat one out. Dat's de sign of three. And dat's de sign of seven. And when dey comes togedder—it means deat'.

SOWERBY. Debt? I'm pretty deep in debt myself.

MILKIN. Deat'! Deat' the leveller, deat' the radical, deat' the end of worldly glory!

SOWERBY. Death? Who's going to die?

MILKIN. I can't tell dat. Dat ain't fair.

SOWERBY. But you know?

IKE. Sure we know.

MILKIN. I know. He don't know. Not yet.

SOWERBY. You know, gentlemen, the older I become the less seriously I regard the deaths of other people—or even of myself. The fact that I have no place to sleep tonight bothers me a good deal, but if I were only going to die tonight—that is, without discomfort—I shouldn't mind it in the least. The idea of death, philosophically regarded, is welcome to the mature mind.

[There is a sudden crash against the folding doors. Sowerby drops instantly under the table, and all eyes turn toward the disturbance. The doors open and Spiker can be heard speaking above the cries of "Put him out!" "Who told him he could talk?" "That's all!" "He's a Red!" "Back to Russia!"]

SPIKER. You're compromisers, you're lick-spittles, you're wage-slaves, you're finks—you haven't got enough guts to demand what's yours! I tell you—

A VOICE. Will you get the hell out?

SPIKER. I will not! I'm a member in good standing!

A VOICE. Back to Russia!

ANOTHER VOICE. All right, Mac!

[Spiker is thrust into the restaurant and the door is closed. He tries it futilely.]

IKE. This is the overflow meeting. Come on in. *[Spiker turns to glare at Ike, then sits gloomily alone.]* Lost anything?

SOWERBY [*rising*]. My—dignity.—Let me see—where was I? [*He seats himself and picks up a tabloid paper.*] Where was I?

IKE. You was saying before you got under the table that death was a matter of indifference to you.

SOWERBY. Exactly—exactly. And in a civilization such as ours that is as it should be. What does any one human life amount to? Look at this headline, for instance. “Paymaster killed, robbers escape with \$28,000 belonging to Northfield Dock Company!”

[*All eyes are suddenly turned toward Sowerby.*]

MILKIN. I told you!

IKE. What’s that? That means the scabs didn’t get their pay today! Hey? [*He picks up the paper.*] Hey, do they know that in there? [*He tries the doors.*] The scabs don’t get their pay this week! [*There is a sound of cheering from within.*] That’s Mac talking. Hey, Mac—the scabs had bad luck! [*The door opens in Ike’s face and a voice exclaims at him.*]

THE VOICE. Sh! Shut up, will you?

IKE. Hey! All right! Jeez, it certainly was a swell afternoon for a holdup—all the cops were beating up the strikers. [*He returns.*] I wonder who got away with that \$28,000?

SOWERBY. You ought to know. I thought you were a mystic.

IKE. I ain’t got to that. He knows.

SOWERBY [*to Milkin*]. Who was it?

MILKIN. Oh, no. Dat wouldn’t be for the best interest. To tell dat.

SOWERBY. I thought not.

[*The folding doors open a crack, and Bauer, a selfimportant busybody, looks out, then emerges and closes it. While he holds the door open a fragment of Mac’s speech drifts out. He listens, shakes head, shows disapproval.*]

MAC [*within*]. Compromise? Why certainly, when it’s necessary. Capitulate to Northfield? Why certainly, when he’s got us where he wants us! But, for God’s sake, why compromise now, when you don’t

have to? Why capitulate when we've got him on the run? Don't you know the mills are going out tomorrow? Within a week there won't be a loom running!

[The door shuts off the rest.]

BAUER. It's the last time Mac talks in there, if he knows it or not.

ROSALIE. What do you mean?

BAUER. Never mind. There was a little caucus before he came. He is just a little too wild. Also, Mr. Suvorin, we have had a meeting of the house committee this afternoon. You hear that? *[Suvorin looks up at him without changing his expression.]* We had a meeting of the house committee. It will affect you somewhat. The lyceum has given desk room to certain radical groups, without pay. Well, we have changed all that. No more desk room without pay. And—and no more desk room for radicals, for any price. No more I.W.W.'s, no more anarchists, only straight union activities.

SUVORIN. I understand.

BAUER. Also, Mr. Suvorin, in the past it has been the custom for radicals to meet here in your restaurant and talk. Well, this is a restaurant. It is open to the public. We cannot stop that. But it has been allowed for some time that they put literature on the shelf there—Macready and Bardi and Capraro—they have you all filled up with I.W.W. stuff and anarchist stuff—syndicalism, that sort. We want it out. And we want it out before closing time tonight. You see?

SUVORIN. I do.

BAUER. You will tell them?

SUVORIN. That's your business, not mine.

ROSALIE. I'll tell them, Mr. Bauer.

BAUER. Thank you, Miss Suvorin. We want that literature out of here tonight, tell 'em. We want nothing in this building but straight union literature. You never know when there's going to be a raid. They raided the Zeitung right across the street. Well, why wouldn't they raid you here if you're distributing anarchist literature? *[He goes to the shelf in*

the corner and picks up a book.] Here's one. Liberty, Equality, Fraternity for Humanity! Is that I.W.W. or Anarchist?

SOWERBY. That goes back to the French Revolution.

BAUER. Revolution, huh?

SOWERBY. French Revolution.

BAUER. Anyway, we've had too much talk of revolution, no matter if it's French. This should be a labor lyceum, not a hatchery for revolutions. [*He takes up another book.*] Here is a heavy one. [*He reads.*] "Certain Positive Aspects of the Negative Outcome of Philosophy." Oh, I see.

SOWERBY. You'll find some copies of the Declaration of Independence there. Dangerous stuff, too. Highly inflammatory. Suppressed by the police of Los Angeles and Boston.

BAUER. You would not kid me, for instance?

SOWERBY. Oh, no.

BAUER [*looking at Sowerby's books*]. What's this?

SOWERBY. If you will pardon me, these are my effects.

BAUER. Your effects?

SOWERBY. My, as it were, personal effects.

BAUER. Think of that now. [*To Ike.*] How about you—have you got desk room in the building?

IKE [*turning away loftily and tapping with his foot*]. No, my good man, no.

BAUER. What!

IKE [*looking down his nose at Bauer*]. No, my good man, no! [*Bursting with rage, Bauer slams down one of Sowerby's books and returns to his examination of the radical shelf.*] Personally, I'd rather be a bum. I'd rather be an auctioneer. [*He picks up Bauer's hat, watching Bauer narrowly.*] Ladies and gentlemen, before the regular auctioneer returns from lunch, what am I offered for this indescribable object? [*Bauer turns, and Ike puts down the hat and quickly substitutes one of Sowerby's slippers.*] Ladies and gentlemen, in all my years as a broker

in rare and curious objects, I have never—never—in fact— [*He smells the slipper.*] We withdraw that exhibit—we are forced to withdraw that exhibit—and we offer in its place this rare and original manuscriptum — [*he takes up Sowerby's manuscript*] being the first and only extant draft of Sowerby's History of—what was it you said you was writing a history of, Mr. Sowerby?

SOWERBY. I am writing a history, sir, of irrelevant and unimportant details.

IKE. Yes—of irrelevant and unimportant details. Would you mind describing a irrelevant detail, Mr. Sowerby? Mr. Sowerby, ladies and gentlemen, will now appear in person, describing a irrelevant detail! Mr. Sowerby!

[*There is a sudden crash of applause, mingled with cheers and the stamping of feet from the auditorium. Sowerby, about to speak, instead slides under the table, rising at once when he realizes there is no danger. Voices are heard above the din yelling "The strike's over! The strike's over! Make it unanimous!" Macready, Ward, and Andy come through the folding doors, with a group of longshoremen, who pass through and out to the street, talking.*]

WARD. I knew they'd do it!

MAC. We had to make a play for it anyway.

SPIKER. So it's over, huh?

MAC. They think so.

ANDY. Yeah—they think so.

MAC. That's the way it goes. You win a strike for 'em—have it all wrapped up and laid on the table like a Christmas present—and they're afraid to take it! You've got to feed 'em higher wages like horse-medicine!

SPIKER. I guess that stops us.

MAC. No. Sorry they handled you rough, Spiker. I didn't expect that.

SPIKER. What are you doing now?

MAC. Ask Andy. [*He glances meaningly at Bauer.*]

ANDY. I can tell you better later. I'm going upstairs.

MAC. Good. [*Andy goes out by the hall door.*] Engineers are meeting.

SPIKER. I get you.

BAUER. I see you have a little trouble, Mr. Macready.

MAC. That's news to me. What's the matter?

BAUER. I guess they blocked the strike for you, huh?

MAC [*to Ward, paying no attention to Bauer*]. By the way, can I get hold of Benny?

WARD. He's going to call you here.

MAC. Good.

BAUER. I wish to speak to you, Mr. Macready.

MAC. Well, then, I'll bet you do it.

BAUER. There was a meeting of the house committee this afternoon—

MAC. Yes?

BAUER. And it was decided to give the radical organizations no more desk room.

MAC. Well, well.

BAUER. It was decided you would have to go out—I.W.W.'s and Syndicalists—everybody but straight A.F. of L.

MAC. Who holds the mortgage on this building?

BAUER. That has nothing to do with it.

MAC. I thought not.

BAUER. So you will pardon me if I tell you we want you to take your literature and move out. I told the committee you would be out tonight.

MAC. I'm busy tonight.

BAUER. I said tonight. I told the committee tonight.

MAC. You said you'd put me out?

BAUER. I did.

MAC. Do you know I'm a longshoreman?

BAUER. You're an I.W.W. You have been in this union two years and you have made nothing but trouble since you came. You are not a union man—and Bardi is not, and Capraro is not. You are out to make trouble. When one strike is over you start another, you three. And we have had enough of you!

MAC. I'll tell you, Mr. Bauer, this looks to me like the start of a long conversation, and as I said, I'm busy—

BAUER. You will find out! You saw the way the vote went on your strike. Well, you were not here earlier in the evening. That was decided before hand. And we have talked about you and Bardi and Capraro. Capraro is an anarchist. I have heard him say so. And he is going out of the union. And your literature must be taken away tonight.

MAC. You throw it out. If you're scared of a raid, throw it out. I hope they raid you and find enough Rights of Man around here to give the Department of Justice the heebie-jeebies.

BAUER. You will not take it away?

MAC. No.

BAUER. Very well. I will. [*He goes out.*]

IKE. Personally, I'd rather be a bum.

MAC. Where's Capraro? Hasn't he been around?

ROSALIE. No.

MAC. Nor Bardi?

ROSALIE. No.

MAC. That's funny. Maybe they ran them in. We'd better find out.

ROSALIE. Don't you know they've got warrants out for all of you? For instigating a riot?

WARD. That's a good joke.

ROSALIE. It's not a joke.

MAC. Well, no, not exactly. They didn't mean it that way.

IKE. It's in the paper. And did you know the scabs didn't get paid today?

MAC. No, why? [*Ward looks at the paper.*]

IKE. Payroll was robbed. That's in the paper, too.

MAC. Hell, Ike can read. When did this happen?

IKE. This afternoon. Got clean away with the money.

WARD. That's good. That soaks Northfield and the scabs, too. Say, they killed old Kendall.

SPIKER. Who's Kendall?

WARD. Paymaster.

MAC. Good day for a holdup. They had every policeman in town guarding the docks, and riot guns all up and down the harbor front.

ROSALIE. Mac, what did happen this afternoon?

MAC. Nothing. Only we tried to reestablish our picket lines, and somebody had squealed to the chief of police, so he met us with a young army. They started shooting over the boys' heads and naturally there was hell to pay.

ROSALIE. But Mac, there were some policemen hurt—and the way the papers have it they blame everything on you—

MAC. I was hardly in it. I was a sort of an in-and-outer. Capraro and I were riding with Waterman in his car. We had to have him there so they couldn't rush the boys off to jail without seeing a lawyer, and they've been trying to get Waterman, so he wouldn't come unless he was guarded. And they tried to take him away from us, you see. That's how I happened to grab the gun. They had it all planned. A cop jumps on the running board and tosses a gun into the car and then they start to arrest the bunch for carrying concealed weapons. I've seen that tried before, so I picked up the gun and beat it. That's all.

ROSALIE. Then they made up the story about your starting it by knocking a policeman down.

MAC. I ran into him by accident.

ROSALIE. You could have let them arrest Waterman.

MAC. They were going to pull all three of us! We'd have been through the third degree by now and stretched out on the iron floor like so much sirloin steak. The way it is we're all out of it. We're all out of it—we can carry the strike right over to the mills tomorrow.

IKE. Maybe you didn't hear that Bardi was hurt.

MAC. Bardi?

IKE. You didn't hear that?

MAC. No.

SPIKER. He wasn't hurt much. I saw him leaning up against the gates, and he said he'd be all right in a minute.

IKE. Oh, no. He was hurt bad.

MAC. Who told you?

IKE. Some fellow in there. He said Bardi was shot.

MAC. What?

IKE. Yeah, I thought you knew that.

MAC. Where did they take the boys that were hurt? [*He rises.*]

WARD. I don't know.

[*Capraro, a gentle young Italian, enters quietly from the street.*]

MAC. Hello, Cappie. We were just talking about Bardi.

CAPRARO [*after a pause*]. Bardi is dead.

MAC. He is?

CAPRARO. I just came from the hospital.

MAC. Hell. So it had to happen to Bardi. Was he shot?

CAPRARO. Yes. They were careful to hit him where it would kill. He asked me to tell you good-bye for him. He was so sorry to die that way—in a hospital. He said—it means nothing this way. He said, please tell you all good-bye.

MAC. I see.

ROSALIE. And don't you see pretty soon it will be your turn? Everybody knows what Northfield has said about all of you—

MAC. So it had to happen to little Bardi.

IKE. He was a good scout.

[A Salvation Army group begins to play and sing outside.]

THE ARMY.

There's a land that is fairer than day,
And by faith we can see it afar,
For the Father waits over the way
To prepare us a dwelling-place there.

In the sweet bye and bye,
We shall meet on that beautiful shore,
In the sweet bye and bye,
We shall meet on that beautiful shore.

[Ike, who is standing at the window, sings the next stanza with them, beginning in a low tone.]

IKE.

Those preachers come out every night
To tell us what's wrong and what's right.
If you ask them for something to eat,
They answer in voices so sweet—

[He raises his voice so that the words are heard.]

You will eat, bye and bye,
In your beautiful home beyond the sky.
Watch and pray, live on hay,
You'll get pie in the sky bye and bye.

WARD. Aw, shut up, Ike.

[The door opens and a pretty Salvation lass passes the tambourine while the band goes on singing. Nobody pays any attention to her. Jerusalem Slim, wearing a Salvation uniform, enters behind her and stands near the door.]

THE ARMY.

We shall sing on that beautiful shore
The melodious songs of the blest,
And our spirits shall sorrow no more,
Not a sigh for the blessings of rest.
In the sweet, etc.

[The Lassie comes last to Ike, who looks inquisitively into the tambourine, then gravely holds out his cap to her.]

IKE. I'm in the same line myself, sister.

THE LASSIE. Jesus will save you.

IKE. Not if I see him first, he won't. I'm a Southern Jew, and Jesus himself wouldn't touch a Southern Jew, sister. He might be willing to do something for one of those New York Jews, but I never met anybody that didn't draw the line at an Israelite hillbilly.

THE LASSIE. Have you tried Him?

IKE. Sister, I get saved regular every winter, whenever my shoes wear out. I've got a groove wore in my back from back-sliding.

THE LASSIE. "Come unto me all ye who labor and are heavy-laden." You'll never find rest till you find Him.

IKE. Sister, if you're speaking for yourself, I'll come, but if you're speaking for the Kingdom of Heaven, I've been to Florida and these summer resorts ain't what they're cracked up to be in the prospectus. You're too pretty to go round distributing the word of God. You're liable to create a false impression. Heaven ain't like that. Why don't you speak for yourself, kid?

THE LASSIE *[stepping back]*. I'm safe in His arms, brother.

IKE. You'd be a lot more comfortable in mine.

[The Lassie goes out. As she passes through the door, a shrill voice is heard testifying.]

THE VOICE. I was on the street and Jesus saved me. My sins fell from me and left my soul as pure as the driven snow.

[The door closes, cutting off the words.]

WARD. That was no accident, you know, about Bardi.

MAC. No, probably not.

WARD. They had it in for him, after last year.

SPIKER. You think they planned that?

WARD. I do.

CAPRARO. It is they that have red hands. The murderer loses in the end.

MAC. The kind of murderer that killed Bardi dies mostly of old age.

SLIM. You have all forgotten something. You have forgotten that God is love.

WARD [*angrily*]. Christ, I thought that one was dead!

MAC. Oh, God is love, is he? Well, how much does he love the guy that instructed somebody to get Bardi?

SLIM. Judge not that ye be not judged.

SPIKER. Throw him out.

MAC. You! You're a pious fraud. You're one of them. The net effect of all you've got to say is to support their capitalistic system! That's what your army says, and that's why business supports you. Teach 'em temperance so they'll work steadier, teach 'em to turn the other cheek, so they won't make trouble when they're robbed, teach 'em to judge not, so we can jail 'em and murder 'em without a come-back. Make 'em all good slaves in the name of Jesus Christ. That's what you stand for!

SLIM. Would you do violence for higher wages?

MAC. No, but if I had my hands on the man that shot Bardi, I wouldn't answer for him.

CAPRARO. You would be wrong. When you take violence into your hands, you lower yourself to the level of government, which is the origin of crime and evil.

MAC. Go on! The government's nothing so important. It's a police system, to protect the wealth of the wealthy. And Slim there, he stands for the priests of the world, going around advising everybody to knuckle under so the bankers can keep all they've got! That's why the boys voted to

end the strike in there. They've been taught to be slaves till they don't know enough to take what's their own. We had the strike all won for them, and they throw it all away because they owe a little money at the corner grocery and they're scared of the police! Capraro and I talk ourselves blue in the face for them, and Bardi gets himself killed for them, and it's all coming their way, and then what do they do? They decide they can't stand it any longer and they take their wage cut and go back to work! No wonder the Rockefellers are good Baptists!

ROSALIE. Then isn't it all useless, Mac?

MAC. By God, they're going to know they've been in a fight before they put me away! What else does Northfield own besides mills and docks? I'll have them all out on him! I'll bleed him till he can't pay his private dicks!

WARD. Good boy!

[The telephone rings. Rosalie answers it.]

ROSALIE. Yes, he's here. Mac.

[Mac takes the phone.]

MAC. Hello. Hello, Ben. What? Wait a minute. They're *not* going back to work! I know they voted it down but they're not going back because the engineers are staying out. Did you get that? And now get this, too. The engineers are staying out on my word that the mills are going out in sympathy, and you've got to work it for me. No, I've got to wait here till the meeting's over. You can pull that through for me. *[A pause.]* Well, can you do this? Can you hold them half an hour till I can get there? Put on a show. Make it dramatic, and I'll be over as soon as I hear from Andy. You're damn right we'll have the longshoremen out again! We'll make them eat that vote and like it! All right! *[He hangs up, and turns to Ward.]* What was that you heard about raids tonight?

WARD. I got it from old Bauer.

MAC. Well, there may be something in it, from what Benny says. They've got a posse mobilized over at the mills.

ROSALIE. Then you won't go over there?

MAC. I've got to. It's probably only the regular guard. They call out the State Militia every time a couple of mill-workers shake hands. [*He takes down the receiver.*] Give me the committee room. Hello. Hello, Andy. I know you're not alone. You don't need to talk. You can give it to me yes or no. Are they waiting to hear from the mills? Well, the mills are waiting to hear from you, so for God's sake shove them over. Yes. Benny says they will. And move fast or I won't be in time. I'm going over there. [*He comes over to Rosalie.*] You've got to be a sport, sweetheart, you've got to.

ROSALIE. I can't do it any more. I've done it all I can. [*She is set and stern.*]

MAC. It's the only chance the strike's got, Rosalie. If I go down there with the news that the engineers are going out I'm pretty sure I can stampede them.

ROSALIE. You'd better go then. Only don't ask me to be a sport about it. I'm not going to try any more. I'm not going to be interested any more.

MAC. What do you want me to do? Put on a white collar and sit in an office and push a pen around all day?

ROSALIE. You could do anything—anything you wanted to—only you don't want to do anything but—save humanity or something like that—I don't know what! All I know is they aren't worth it—and they don't care how much you do for them!

MAC. They're the only people who are worth anything. I admit they're lunkheads and you've got to tell them. By God, somebody's got to do the telling.

ROSALIE. Get wise to yourself, Mac. They sit around here and guzzle coffee and yes you one day and then go in there and vote you down the next! And they aren't worth it and you don't get anything out of it!

MAC. I get a hell of a lot of fun out of it.

ROSALIE. I thought so. You start strikes because you like to be in a fight and you run them because you like to act like a tin Napoleon—that's all!

MAC. Thanks!

ROSALIE. That's that—there's nothing more to say—go ahead with your strike—do anything you like but don't count on me.

MAC. Does that mean you are walking out on me?

ROSALIE. It does. Don't touch me and don't come near me. I'm through, Mac, through. I don't want to see you again and I hope— [*Rosalie runs out.*]

SPIKER. “Tin Napoleon,” eh? Getting soft, Mac? Never knew you to take anything like that before.

MAC. You try it on, fella, and see what'll happen to you. [*Phone rings. Mac answers.*] Hello. What? Who is this? How do you know that? I've just been talking to Benny. They did! Ah, Christ! Can't you round them up? Can't you get another hall? You don't have to let them get away with that! Who have you got with you? [*A long pause.*] All right. All right. Well, it certainly lets us down over here. Where are you going to be? I'll call you there. [*He hangs up.*] That settles it.

WARD. What's up?

MAC. Police broke up the mill meeting, wrecked the hall, and scattered the crowd. They won't vote tonight. Anyway, they're licked. And I guess we are. What do you say, Cappie?

CAPRARO. We must call Andy.

MAC. I wish I thought the engineers would go out alone.

CAPRARO. They will not. Anyway, you must tell them.

MAC. You tell 'em, Cappie.

CAPRARO [*going to telephone*]. Give me the committee room.

SPIKER. So they go back tomorrow.

MAC. Looks like it.

CAPRARO. Hello, Andy. It's all off. Police raided the mill-workers. Oh, no, no, no! We must not do that! Yes, so am I. [*He hangs up.*]

SPIKER. You'd let the longshoremen go back to work tomorrow—after that?

MAC. Not if I saw my way out of it.

SPIKER. What kind of guts have we got in this crowd, anyway? We can't let 'em get away with that! Don't you see it? They get away with that and we're licked for good—the whole labor crowd's licked?

MAC. Pretty damn near it.

SPIKER. Look here, Mac. I never knew you to go soft before. What's the matter with you? Do you want a vacation?

MAC. I didn't ask for one, but I guess I'm going to get it.

SPIKER. Ward, what's the matter with you? I don't understand this bunch. Are we going to lie down? God, there's got to be something to do!

WARD. There's got to be, all right, but I can't think of it.

SPIKER. I'll tell you what I'd do if anybody had the guts to go with me—I'd fix it so nobody could go to work, scabs or union. I'd blow the docks to hell!

WARD. There wouldn't be any sense to that.

SPIKER. Christ, what a crowd!

MAC. Be logical, man, be logical. I'll do anything that'll get us anywhere. Only that wouldn't. Not this time.

SPIKER. Now's the time it would do some good. And why not? They've used everything on us.

WARD. Well, I'd like to see it.

SPIKER. Only you won't touch it—oh, no! You wanted to know what you could do about the strike—and I told you that's all—and do I get volunteers? I do not. Well, I'll tell you what I'll do. I'm going alone.

MAC. Are you joking?

SPIKER. I don't joke with nitroglycerine. [*Suvorin has silently risen and come over behind Spiker. He lays his hand on Spiker's shoulder. Spiker jumps.*] What do you want?

SUVORIN. You asked for a man.

SPIKER. Well?

SUVORIN. Will I do?

SPIKER. Will you come with me?

SUVORIN. Who are you?

SPIKER. Who the hell are you?

SUVORIN. You know me. I run this restaurant.

SPIKER. You're no longshoreman.

SUVORIN. You asked for a man.

SPIKER. All right. Who else is coming?

SUVORIN. And now, who are you?

SPIKER. Say, bohunk, I guess you know who I am.

SUVORIN. I do not.

SPIKER. Well, I don't know as I can help you then.

MAC. He's all right, Suvorin. He's been working with us three months.
He's a California wobbly. They grow wild out there.

SPIKER. Anybody else game to go along?

MAC. You wouldn't go into that?

SUVORIN. If he will tell me who he is.

SPIKER. Damn it, Mac told you who I am!

SUVORIN. How long were you in California?

SPIKER. Is this a third degree?

SUVORIN. Why not answer me?

MAC. Tell him, Spiker. He's all right. There's nobody here you need be afraid of.

SPIKER. Three years.

SUVORIN. And before that?

SPIKER. Do you want my life history?

SUVORIN. This is a serious matter.

SPIKER. All right. I've been an I.W.W. organizer over four years. Before that I was in Pittsburgh.

SUVORIN. What was your trade?

SPIKER. Iron-worker.

SUVORIN. You've never been an iron-worker.

SPIKER. Are you calling me a liar?

SUVORIN. I am. Look at that hand. Look at that wrist. [*He holds up Spiker's hand.*] Where do you wear it?

SPIKER. What are you getting nasty about?

SUVORIN. I said where do you wear it? On your underwear?

SPIKER. What do you mean?

SUVORIN. Your badge!

SPIKER. I don't wear any badge. Do I look like a dick?

SUVORIN. You do. [*He seizes Spiker's shirt and turns the collar down.*]

SPIKER. Take your lousy paws off me.

SUVORIN. There it is. [*He withdraws his hand with a detective's badge in it.*]

SPIKER. You planted that on me!

SUVORIN. Oh, no.

MAC [*rising*]. Look, here, Spiker!—

SPIKER [*his hands on a gun in his pocket*]. Let go of me!

[*Sowerby slides under the table and stays there.*]

SUVORIN. Certainly.

[*Spiker, released, backs to the street door, his eyes on Mac.*]

MAC. Spiker, is that true? [*Spiker, nearing the door, makes no answer.*] You're a rat, then, are you? [*Spiker disappears.*] Why, God damn his soul, he's been sitting in with us all through the strike! [*He makes a*

sudden dash for the cash drawer, takes out the gun and makes for the door.]

ROSALIE. Mac!

[Suvorin blocks Mac's way and pinions him, Ward takes the gun.]

MAC. All right, all right. I'm letting go. Only that's the nearest I ever came to bumping anybody off.

[Ward replaces the gun.]

SUVORIN. Sit there and think it over! And when next you wish to do a thing like that do it well, with forethought to save your skin, not like a fool! *[He looks over the group.]* How many years have I sat here listening to fools' talk? Five, ten—many years. And what have I learned from you? I have learned that you know nothing—that you learn nothing! Uplifters, you are, reformers, dreamers, thinking to make over the earth. I know you all, and you are all fools but Ike, who is a pan-handler. That is sensible.... The earth is old. You will not make it over. Man is old. You will not make him over. You are anarchists, maybe, some of you socialists, some of you wobblies, you are all believers in pap. The world is old, and it is owned by men who are hard. Do you think you can win against them by a strike? Let us change the government, you say. Bah! They own this government, they will buy any government you have. I tell you there is no government—there are only brigands in power who fight for more power! It has always been so. It will always be so. Till you die! Till we all die! Till there is no earth!

This Spiker you have here, you believe him, he looks right to you. How do I know him? I have a test for him. All my life I listen among men for a man who has hell in him, as I have. All my life I listen for one rebel, and when I have thought to find him I have looked under his lapel for the badge. When I find him he is a spy—always! There is only one man with enough hell in him to be dangerous—enough hell and cunning and power—and it is I alone! I came here from tyranny to find a free country, and this country set out to break me in its prisons because I believed in its liberty. You should know what it is to wear iron to your bone! I can tell you of liberty! I can tell you of justice! There is none!

There are men with whips and there are whipped men! That is all. And you are whipped. Because you are fools.

WARD. Who's whipped?

SUVORIN. You are. You are whipped before you start. The government sets a little game for you, and you play it with them, and the government wins because it is their game. Then they put you in prison till you have tuberculosis. That is the end of you. It is an easy way. You are children in their hands. You have not even bothered to get money to fight them, you have not even learned to break from a prison, you do not even learn their tricks. Bah! They have cheap little tricks to hold you—handcuffs, bars—do you think they could hold me again with handcuffs and bars?—Yes, but you are happier so. You have not gone bad inside—and that is why you are not dangerous. That is why—you are not dangerous. [*He sits, his head in his hands.*] Play your game. They are safe from you.

[*The door opens and a Policeman and Sergeant enter. Spiker stands in the doorway. Mac and Ward rise.*]

SERGEANT. Sit still, sit still. Just got warrants for a couple of arrests here, that's all.

MAC. Who do you want?

SERGEANT. James Macready and Dante Capraro.

ROSALIE. They're not here.

SPIKER. Oh, yes, they are.

WARD. Hello, rat.

SPIKER. Those two.

SERGEANT [*to Mac*]. What's your name?

MAC. Macready.

SERGEANT. Well, you're wanted. What's yours?

CAPRARO. Capraro.

SERGEANT. You two come along. That's all.

MAC. Wait a minute, wait a minute. Where's your warrant?

SERGEANT. Oh, I see. Constitutional rights and everything, huh? Well, here you are.

MAC. Wait. Let me read it.

SERGEANT. Sure, read it.

MAC [*reading*]. Do you mean you're arresting us for a murder?

SERGEANT. That's what it says, ain't it?

MAC. You can't arrest us for any murder.

SERGEANT. I guess I can.

ROSALIE. What murder?

MAC. Kendall, the paymaster. Listen, we know nothing about that. We were having troubles of our own this afternoon.

POLICEMAN. We don't know anything about that.

ROSALIE. But you can't do this. It isn't right.

SERGEANT. I don't want any argument about it.

SPIKER [*coming in*]. You'd better search the place for weapons, sergeant. Look in the cash drawer.

MAC. You lousy fink, is this your affair?

SPIKER. And look them over for guns.

[Mac suddenly hits Spiker in the jaw. Spiker goes down. The Sergeant grabs Mac, who wrestles with him to get at Spiker. The other policeman gets him from behind. Rosalie tries to help and is shoved away. The Sergeant turns to Capraro.]

SERGEANT. How about you?

CAPRARO. I know nothing of a murder.

SERGEANT. Put out your hands.

CAPRARO. I will not.

[He is handcuffed. Spiker finds the gun in the cash drawer.]

SPIKER [*to Suvorin*]. Whose is this?

SUVORIN. I do not know.

ROSALIE. It's mine. I put it there.

SERGEANT. How long have you had it?

ROSALIE. I don't know. I've always had it.

SERGEANT. I'll take it. [*Spiker hands it over.*] That's a service revolver.

ROSALIE. Mac!

SERGEANT. You say this is yours?

ROSALIE. Yes.

SERGEANT. You can't talk to him, you know. What's your name?

ROSALIE. Rosalie Suvorin.

SERGEANT. That's all. We're going.

ROSALIE. Wait just a minute—please!

SERGEANT. You can't go along, you know.

ROSALIE. Can't I speak to him a minute?

SERGEANT. No.

MAC. Don't worry, kid. I've been pinched before.

[*He and the Sergeant go out, following Capraro and the other Policeman. Spiker hits Mac outside the door.*]

SERGEANT [*at the door*]. By the way, I don't think so much of the crowd you keep in here.

SUVORIN. Neither do I.

[*Exit Sergeant. Ward goes to the door. Milkin is scribbling on a napkin.*]

MILKIN [*to Ike*]. See dat? Dat don't look so good. Dat's de wrong sign.

CURTAIN



ACT II

SCENE I

cene: Office of District Attorney Salter in the courthouse.

here is a window, partly ivy-covered, at the right, and a door at the rear communicating with the Judge's chambers. A door at the left opens on a hallway. The rear and lefthand walls are almost covered with a legal reference library, mostly in yellow leather bindings. There are two desks, one for Salter, one for his secretary. A couple of padded chairs are placed to front the attorney's desk. The desks are piled with stacks of letters and 'script.

alter, a thin, keen, and rather weary person, enters from the hall, tosses a hat on the rack, and begins to search through a mass of papers. He finds what he wants and sits at his desk.

here is a tap at the door and Haslet enters. He is a well-dressed, middle-aged business man.

is after lunch.

SALTER. Oh, hello, Arthur.

HASLET. How's our little trial coming?

SALTER. It's all right.

HASLET. Going to convict?

SALTER. Oh, yes.—Want to let 'em off?

HASLET. I do not.

SALTER. Thought maybe somebody had changed his mind.

HASLET. Good God, man, those two Bolsheviks have raised more hell in this town the last two years than you'd get out of a dozen reform administrations. Every time we turn around they start something new on us.

SALTER. Damned unpleasant.

HASLET. They've turned my hair grey, and they've cost the Northfield company a couple of millions, one time and another.

SALTER. It's rather hard to make it look as if they had anything to do with the murder—

HASLET. Why is it?

SALTER. Lord, there's no evidence.

HASLET. It looks like a pipe to me.

SALTER. I wish you had the job. And the next time the boys want to pin something on a couple of radicals I wish you'd call in a little expert advice before you start.

HASLET. You, for instance?

SALTER. Me, for instance. It might make it a damn sight easier.

HASLET. Not that I tried to pin anything on them. But I think it was a damned good idea.

SALTER. Well so far as I'm concerned it's a mess. And devilish uncomfortable.

HASLET. How about that bomb last night?

SALTER. That helps. By the way, who set that bomb?

HASLET. How would I know? Some of their blackhand friends, I suppose.

SALTER. Oh, no. They know better than that. Even a foreigner knows better than to set a bomb under a juryman's front porch. Is Spiker still working for the company?

HASLET. You think Spiker did it?

SALTER. Well, I bet he knows who did.

HASLET. It was all news to me.

SALTER. Spiker's got it in for Macready and Capraro. He'll do more than he's paid for. It wasn't necessary at that. Not with this jury. It's a hundred and forty proof Shriners and Chamber of Commerce.

HASLET. What are you kicking about then?

SALTER. The way it looks, that's all. It's the God-damnedest flimsiest case I ever had on my hands, yes, and the most sickening bunch of welching witnesses I ever had to deal with. We're going to convict and it's going to look like a frame-up. If I had it to do over again I'd see Northfield and his docks and mills in hell before I'd handle it.

HASLET. You're nervous, Will. What's the matter with you? Don't you own any stock?

SALTER. I need some evidence to show up in the newspapers. You told me your operatives had an airtight case, and they said the same thing, and your witnesses are trying to back out all along the line. And who has to hold them to it? I do. It's a rotten job. I'd like to know how Spiker got that original bunch of affidavits. He must have had everybody chloroformed.

HASLET. Those two Bolsheviks have got it coming. I don't give a damn so long as we don't lose.

SALTER. You may wish you had, that's all. The town's crawling with reporters sending in front page stuff. It's going to make a stink you can smell from here to Siberia.

HASLET. What does the judge think about it?

SALTER. When did a judge ever think? He's paid not to. By the way, this Spiker person of yours, whom I dislike intensely, was in here this morning. He tells me the defense have a surprise witness to spring after I get all through.

HASLET. Who is it? The girl?

SALTER. The girl's father.

HASLET. What of it?

SALTER. Well, Spiker thinks he's got something on the old boy, that's all. He's looking up his record and if they put him on the stand he wants to spring something. I rather wish Spiker was up for murder. I'd take a passionate delight in railroading a crook, just for a change.

[Judge Vail enters from the rear; he is fastening his robe.]

HASLET. How are you, Judge?

VAIL. How are you? I'm excellent, excellent, thanks. You in court today?

HASLET. I'll have to get back to town—just dropped in on my way. What's the news?

VAIL. It's all in the papers. They're printing us verbatim this time. Great honor. I wanted to ask you, Will—as things are going now, are you likely to conclude your case today or will you require another session?

SALTER. I'm putting on my two last witnesses this afternoon. I don't know what the defense will do.

VAIL. I fear it's likely to drag on for some days.

HASLET. Are you betting on the results, Judge?

VAIL. I daresay they'll be found guilty. And no doubt they are. No doubt they are. I long ago gave up trying to decide who was innocent and who was guilty. That's the jury's business. In this case we have an intelligent jury. [*He goes to the door, then turns to deliver a dry joke.*] But not too intelligent—not too intelligent. [*He goes out.*]

HASLET. He's all right.

SALTER. Yeah. He's been dead from the neck up for twenty-five years. And from the neck down for about forty—otherwise he's fine.

HASLET. By the way, can we do anything for you?

SALTER. Sure, I want a steam yacht and a villa overlooking the Mediterranean. And I'm going to need 'em when I'm through with this. No, you big swine, run along and sell your papers. I'm incorruptible. Anyway, you don't need to corrupt me. I've got to win this case now or retire. I just wish to God I'd never got into it. That's what makes me sore.

HASLET. You're made, man, you're made.

SALTER. I suppose you think I'll be the next governor.

HASLET. Why not? So long, Will!

SALTER. So long, Arthur.

[*Haslet goes out left. Salter pushes a bell. A Court Attendant enters.*]

ATTENDANT. Yes, sir.

SALTER. Got that woman waiting?

ATTENDANT. Yes, sir.

SALTER. Bring her in.

[*The Attendant opens the door at the left and ushers in Mrs. Lubin, a woman of fifty or so.*]

MRS. LUBIN. Yes, Mr. Salter.

SALTER. I got your letter this morning. Sit down.

MRS. LUBIN [*sitting*]. Yes, sir.

SALTER. You say you've changed your mind, you aren't sure of what you saw and you can't testify?

MRS. LUBIN. Yes, sir.

SALTER. Don't you think it's pretty late in the day to change your mind?

MRS. LUBIN. Yes, sir—but—

SALTER. Do you remember what you said in your affidavit? [*He taps the paper in his hand.*] You said you were standing at the front window of your apartment at four-fifteen on the afternoon of April second and you saw Macready shoot Kendall from the front seat of a Buick touring car. That's pretty definite, isn't it? You swore to that, didn't you?

MRS. LUBIN. Yes, sir—but—he was the only man in the room.

SALTER. Who was?

MRS. LUBIN. Macready. When I identified him.

SALTER. Well, what of it? You identified him, didn't you? You don't deny that?

MRS. LUBIN. They told me I had to.

SALTER. Who did?

MRS. LUBIN. The men. The detectives.

SALTER. Now, you're going to forget about this letter, you understand? You're going to forget about all that and testify to the story you told in your affidavit.

MRS. LUBIN. Mr. Salter, I really couldn't identify him. I was too far away. And I've—Mr. Salter, I've been looking from that window,—and—I—couldn't have seen the shooting at all. I heard the shot, but I couldn't see where it was. And—Mr. Gluckstein knows that—

SALTER. How does he know?

MRS. LUBIN. He came to the apartment.

SALTER. So you've been talking to the defense?

MRS. LUBIN. I didn't know who he was then. He came and asked if he could look out the window, and he asked me where the shooting was. I'd said the shooting was on the other side of the track, and you can't see the street there because there's a railroad tower in the way—and anyway—

SALTER. When you made this statement did you know you couldn't see that part of the street from your window?

MRS. LUBIN. No, sir. I thought I could. I didn't really see the shooting. I looked out after I heard the shot.

SALTER. Now get this straight, Mrs. Lubin. You're not conducting this prosecution. I'll take care of any little discrepancies between what you saw and what you couldn't see. I want only one thing of you and that one thing I'm going to get. I want you to tell your story on the stand exactly as you told it before the magistrate.

MRS. LUBIN. I tell you I can't.

SALTER. You'll find you can. Tell me, Mrs. Lubin, why did you swear to this in the first place? Do you remember?

MRS. LUBIN. They told me I had to.

SALTER. Was there any special reason why you had to?

MRS. LUBIN. No.

SALTER. I have your record here, Mrs. Lubin. You have a grown son up-state, haven't you?

MRS. LUBIN. Yes, sir.

SALTER. Does your son know that in 1915 you conducted a certain type of house at 54 Charles Street?

MRS. LUBIN. Oh, God, are you going over that again?

SALTER. Not unless I have to. There are a good many things in this paper which have never come to the ears of your son. Shall I read it to you?

MRS. LUBIN [*hopelessly*]. No.

SALTER. Very well. We'll forget that. I think you've failed to realize the extent to which the state is interested in this case, and also the extent to which the state is interested in you. You are a citizen of this country, Mrs. Lubin. Do you believe in the constitution?

MRS. LUBIN. Yes.

SALTER. Do you reverence the flag?

MRS. LUBIN. Yes.

SALTER. Then why do you change your testimony to shield anarchists? You'll find that very hard to explain, Mrs. Lubin.

MRS. LUBIN. I don't—I—

SALTER. Perhaps you are yourself an anarchist, Mrs. Lubin. Perhaps you have been bought off by the defense.

MRS. LUBIN. I'm not being paid—

SALTER. I don't say you are. I'm just saying it might look that way. To a jury. The question is, would a jury believe you? It looks like perjury, and if it came to a perjury trial how much of your past would you be able to conceal from your son?

MRS. LUBIN [*deciding*]. Very well.

SALTER. I give you my word, Mrs. Lubin, it is your duty as a citizen to stick to your story.

MRS. LUBIN. Very well, I will.

SALTER. Exactly as in the affidavit?

MRS. LUBIN. Yes, sir. Is that all?

SALTER. That's all.

[*Mrs. Lubin goes out. The Attendant appears.*]

ATTENDANT. Bartlet's here, sir.

SALTER. Bartlet?

ATTENDANT. Yes, sir.

SALTER. Send him in. [*The Attendant ushers in Bartlet, a youth of eighteen with a sodden face. He slumps in a chair.*] Well, sir, what have you got to say to me?

BARTLET. Me? They said you wanted to see me.

SALTER. Stand up! When I want you to sit down I'll tell you.

[*Bartlet rises.*]

BARTLET. All right.

SALTER. I've heard about you. You couldn't wait to get to court to give your testimony. You had to spread yourself all over town. Tell me what you've been saying.

BARTLET. What I've been saying?

SALTER. You heard me.

BARTLET. I haven't been saying much.

SALTER. Don't lie to me! Sit down! [*Bartlet sits.*] Did you identify Capraro?

BARTLET. Well—I—

SALTER. Did you identify Capraro?

BARTLET. What if I did? I guess I was—I guess I was mistaken.

SALTER. Listen to me, Bartlet. When you start swearing to evidence there's only one safe thing to do—and that's tell one story and stick to it. Now you've told your story and if you stick to it you'll be protected—

BARTLET. Yeah, but—

SALTER. But you start talking in court the way you've been talking down at the mill and you're going to talk yourself into enough trouble to make you look sick the rest of your life. You said last spring that Capraro looked like the man you saw in the car—

BARTLET. Yeah, but I couldn't say it was him—

SALTER. You don't have to say it was him. I wouldn't want you to. You'll say it was the dead image of him. Can you remember that? The dead image of him.

BARTLET. Maybe that wouldn't be right.

SALTER. It's true, isn't it? It looked like Capraro. All right, say that.

BARTLET. It looked like Capraro, all right.

SALTER. Certainly it did. It was the dead image of him. And mind you, that doesn't mean it was Capraro. That means it looked like him. Can you remember that?

BARTLET. Yeah, I guess that'd be all right.

SALTER. Can you remember it?

BARTLET. The dead image of him, sure.

SALTER. And if you aren't going to stay with it you'd better tell me now.

BARTLET. All right.

SALTER [*changing tone*]. You know, Bartlet, there's a good many of us taking an interest in you around here. Some of us haven't been quite sure whether you'd turn yellow or come through like a man. It isn't as if these birds weren't guilty, you know. We know they're guilty. Why, damn it, they believe in murder. It's part of their platform. Do you know why you thought Capraro looked like the man in the car?

BARTLET. No.

SALTER. Well, I'll tell you. Because he was the man in the car. Talk about the dead image of him! It was Capraro!

BARTLET. Yes, sir, it was the dead image of him.

SALTER [*under his breath*]. Jesus Christ! [*He goes back to his desk.*] All right, Bartlet. You'll be called this afternoon. And we're depending on you.

BARTLET. Yes, sir. [*He goes out.*]

[*There is a knock at the door.*]

SALTER. Come in. [*Gluckstein enters.*] Why, hello, Gluckie. How's the Soviet today?

GLUCKSTEIN. Pretty well, thanks. How's the White Guard?

SALTER. A bit shaky, but game.

GLUCKSTEIN. Listen, Salter—just man to man, now—you know my boys aren't guilty, don't you?

SALTER. You're a man of high principles, Gluckie, if they weren't innocent you wouldn't defend 'em—not for a minute.

GLUCKSTEIN. But seriously now, Salter. I don't mind telling you I'm worried. I know you haven't any case. I know you haven't any evidence. I know the boys aren't guilty. I know the case looks as if it was going against you. But if you keep on playing up the Bolshevik business to that jury—why, it's plain murder. You tell that jury a man's a radical and the whole twelve will vote to hang him. And do you think they're guilty?

SALTER. That's what we're here to find out, friend. That's what the jury's for.

GLUCKSTEIN. Well—maybe it's too much to ask.

SALTER. I guess it is.

GLUCKSTEIN. You wouldn't consider playing the game fair?

SALTER. Old man, I'm a District Attorney. I'm paid to play the game. I'm supposed to win if I can.

GLUCKSTEIN. Well, but, for God's sake, have a little decency about it. That bomb last night, for instance.—That's dirty, you know.

SALTER. Your clients have amusing little friends.

GLUCKSTEIN. *My clients!*

SALTER. You don't think we'd do that—?

GLUCKSTEIN. Well—

SALTER. Well, God knows I don't know. Why the foreman of a jury should hitch a bomb under his front porch. It's just my good luck, that's all.

GLUCKSTEIN. And why are my witnesses shadowed, Salter? And why am I shadowed?

SALTER. I don't know about the witnesses.

GLUCKSTEIN. Then how about me? Is it fair to put plain-clothes men on my trail?

SALTER. You mean you've been followed?

GLUCKSTEIN. You know I have.

SALTER. Gluckie, you've been followed by nothing but your own bad conscience. You mean you've had detectives following my detectives? Gluckie, that isn't right!

GLUCKSTEIN. I know the men and I know who pays them.

SALTER. It's none of my doing, Gluckie. I'll tell you the truth about that, though. Somebody was tipped off by somebody that there was a woman somewhere in your spotless young life. That's all.

GLUCKSTEIN. But that's—that's contemptible.

SALTER. Certainly it is. I wouldn't use anything of the sort. But as a matter of fact I'd advise you to watch your step, Gluckie. Not all the members of my club are men of conscience, like me.

GLUCKSTEIN. I see.

SALTER. Then there's something in it?

GLUCKSTEIN. No.

SALTER. No? Well—it might be better on the whole if you didn't win the case, you see? That is, as far as you're concerned personally.

GLUCKSTEIN. That's blackmail, isn't it?

SALTER. Well, not legally. And you have nothing to worry about, anyway. Because I don't think you can win, Gluckie. I don't think you've got a chance in the world. I almost wish you had. That's straight.

GLUCKSTEIN. Well—we'll see.

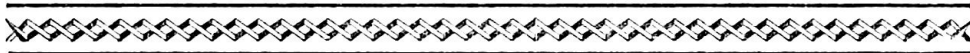
SALTER. Sure, we'll see.

[*Gluckstein goes out. Salter goes wearily to the telephone, takes it up, thinks a minute, then takes the receiver off the hook.*] Get me Spiker, will you? Hello, hello! Hello, Spiker—say, listen, Spiker, this is Salter. Wait a minute, listen to me. You're a low-down crook and I hate your guts and I could win this case without you, do you get that? All right, many of them—but if you want that guy Henry in court when the old man testifies you'd better bring him along this afternoon, just to make sure. Yeah? Well, now listen to me some more. I think you're all set to queer this case with your under-cover stuff. If this is Department of Justice information it's probably crooked and it's probably dirty, because I've played with them before. [*A silence.*] Well, damn it, when do I get my data? I've got to talk, you know. I'm no moving picture. All right. Have him up near the stand. Well, you can explain it to him, can't you? If he used to be a sheriff he ought to know that much. [*The Attendant enters.*] I haven't got time. The session starts at one.

ATTENDANT. Are you ready, Mr. Salter?

SALTER [*in the phone*]. Yeah, I think they will. I don't know whether he knows it or not. Oh, it's a pleasure, a pleasure! [*He hangs up.*] No brains, that's all, no brains. [*He picks up his manuscript and makes for the door.*]

CURTAIN



ACT II

SCENE II

cene: The court room with the court in session. Judge Vail is on the bench; the jury sits back opaque and weary; Gluckstein waits nervously; Salter is examining Mrs. Lubin, who is on the witness stand; Macready and Capraro sit in irons, with guards on either side; Rosalie, Suvorin, Bartlet and Mrs. Lubin's son wait to be called as witnesses. Attendants right and left of Bench Sergeant at door left.

SALTER. Now from that point will you tell the story in your own words, Mrs. Lubin?

MRS. LUBIN. From the time I went to the window?

SALTER. Yes.

MRS. LUBIN. I was looking out and I noticed there wasn't much traffic for a Saturday afternoon, and—

SALTER. Go on.

MRS. LUBIN. Then I noticed there was a train on the track and the gates were down, but the engine was backing up again—well, there were only two automobiles south of the tracks and they could have gone on, but they didn't because there was some kind of a fight there. One of the cars was a Ford and the other was a larger car, a Buick, I thought—

SALTER. Open or closed?

MRS. LUBIN. Open. Then there was a shot and I saw a man jump into the large car. He was carrying something I couldn't see. And then the car went up the street around the corner. But the Ford stayed there and people came running.

SALTER. You say there was a shot, Mrs. Lubin. Did you see who fired that shot?

MRS. LUBIN [*looking down*]. Yes, sir.

SALTER. Who was it?

MRS. LUBIN. Macready.

SALTER. Where was he when he fired the shot?

MRS. LUBIN. At the steering wheel.

SALTER. And the other man, the one that jumped into the car, do you know who it was?

MRS. LUBIN. No, sir. His back was toward me.

SALTER. Do you see Macready in this room, Mrs. Lubin.

MRS. LUBIN. Yes, sir.

SALTER. Where is he?

MRS. LUBIN. He is one of the defendants. The tall one.

SALTER. Thank you, Mrs. Lubin.

[Mrs. Lubin starts to rise.]

JUDGE VAIL. Does the defense wish to examine?

GLUCKSTEIN. I do.

JUDGE VAIL. You may take the witness.

GLUCKSTEIN. There is one point in your story which I wish you would explain in greater detail, Mrs. Lubin. You say you saw this shooting from the front window of your apartment on the third floor?

MRS. LUBIN. Yes, sir.

GLUCKSTEIN. On which side of the railroad track were these two cars when the shooting occurred?

MRS. LUBIN. On the south side.

GLUCKSTEIN. Now isn't it true, Mrs. Lubin, that there is a signal tower between your apartment windows and the tracks which entirely shuts off your view of the street south of the railroad?

MRS. LUBIN. Not entirely.

GLUCKSTEIN. Almost entirely?

MRS. LUBIN. Not so much as that.

GLUCKSTEIN. You have a son, haven't you, Mrs. Lubin?

MRS. LUBIN. Yes, sir.

GLUCKSTEIN. Do you see him in court?

MRS. LUBIN. Yes, sir.

GLUCKSTEIN. Had you expected to see him here?

SALTER. I don't see what that has to do with it!

GLUCKSTEIN. One moment.

MRS. LUBIN. No, sir.

GLUCKSTEIN. Has your son ever visited you in your apartment?

MRS. LUBIN. Yes, sir.

GLUCKSTEIN. Is he familiar with the details of it?

MRS. LUBIN. Yes, sir.

GLUCKSTEIN. Now, Mrs. Lubin, can you look your son in the eyes and say again that it was possible to see that shooting where you said it was—?

SALTER. I object to that. She answered that!

JUDGE VAIL. Objection sustained. Strike out the question.

GLUCKSTEIN. Very well. That is all. [*He sits down.*]

JUDGE VAIL. Call the next witness.

[*Mrs. Lubin leaves the stand.*]

SALTER. Jerome Bartlet.

ATTENDANT. Jerome Bartlet will take the stand.

[*Bartlet goes up to the stand.*]

ATTENDANT. Do you swear to tell the truth and nothing but the truth, so help you God?

BARTLET. Yes, sir.

MACREADY. Ha! Ha!

[The Judge raps for order.]

SALTER. How old are you, Mr. Bartlet?

BARTLET. Twenty-four.

SALTER. Where are you employed?

BARTLET. At the mill. The planing mill on Front Street.

SALTER. Where were you at four-fifteen on the afternoon of April second of this year?

BARTLET. I was going home from work along the docks along Front Street.

SALTER. And did anything especial occur on that afternoon as you were going home?

BARTLET. Yes, sir.

SALTER. Tell us what it was, please.

BARTLET. Just before I got to the railroad track I heard a shot and I thought I'd better get out of the way, so I—

SALTER. Tell us what else you saw.

BARTLET. I saw a man fall over a wheel in a Ford by the tracks. The Ford was standing still because the gates was down. And then I saw a man jump away from the Ford and get in another car—

SALTER. And then what—?

BARTLET. Then the gates was coming up, so the car went up Front Street and turned off, and then I saw a policeman jumping in a car—and it went after them—

SALTER. And the Ford stayed there?

BARTLET. Yes, sir, the man was shot.

SALTER. Did you see who did the shooting?

BARTLET. No, sir.

SALTER. Did you see the face of the man who jumped into the other car after the shooting occurred?

BARTLET. Yes, sir.

SALTER. Have you seen him since?

BARTLET. Yes, sir.

SALTER. Did you identify him?

BARTLET. Yes, sir.

SALTER. Who was he?

BARTLET. I said he looked like Capraro.

SALTER. Oh, he looked like Capraro. How much did he look like him?

GLUCKSTEIN. I object to that.

JUDGE VAIL. Overruled.

SALTER. Would you say it was Capraro?

BARTLET. It was the dead image of him.

SALTER. That is all, your Honor. The prosecution rests.

JUDGE VAIL. The defense may take the witness.

GLUCKSTEIN. Where did you say you were, Mr. Bartlet, at four-fifteen on the afternoon of April second?

BARTLET. I was—I was watching the—robbery. I was going home from work.

GLUCKSTEIN. And how do you fix the time in your mind? How do you know it was four-fifteen?

BARTLET. I get out of the mill at four—on Saturdays, I do.

GLUCKSTEIN. And how do you know it was April second?

BARTLET. Well, it was the day the murder happened, because I saw it.

GLUCKSTEIN. Where were you standing when you saw it?

BARTLET. Right near the gate to the pier there.

GLUCKSTEIN. Were you on the south or the north side of the tracks?

BARTLET. The south side.

GLUCKSTEIN. On which side of the tracks did the murder occur?

BARTLET. The south side—where I was.

GLUCKSTEIN. You say you heard the shooting and then saw a man jump into a car which drove away?

BARTLET. Yes, sir.

GLUCKSTEIN. Did you see the shooting or only hear it?

BARTLET. I heard it.

GLUCKSTEIN. And you saw this man who jumped into the car?

BARTLET. Yes, sir.

GLUCKSTEIN. And you say he looked like Capraro?

BARTLET. Yes, sir.

GLUCKSTEIN. Do you say he was Capraro?

BARTLET. No, sir. It was the dead image of him.

GLUCKSTEIN. Oh, it was not Capraro. It was the dead image of him?

BARTLET. Yes, sir.

GLUCKSTEIN. What do you mean by the dead image of him?

BARTLET. Well, it looked like him.

GLUCKSTEIN. Do you mean it was a dead image that looked like him?

SALTER. Objection.

JUDGE VAIL. Sustained. You need not answer that question.

GLUCKSTEIN. Your Honor, this witness quite evidently has no notion of the meaning of the phrase “dead image.” It is my belief that his use of it will mislead the jury unless we hear an explanation of it from his own lips.

JUDGE VAIL. You must allow the jury to decide what he means, Mr. Gluckstein.

[*Gluckstein bows.*]

GLUCKSTEIN. When you identified Capraro as the man who leaped into the murder car, Mr. Bartlet, what was the procedure followed? Were there other men in the room, or was Capraro there alone?

SALTER. Objection.

JUDGE VAIL. Sustained. The method of identification should not concern us here. We assume that every precaution was taken by the police against the possibility of error.

GLUCKSTEIN. I do not assume that, your Honor.

JUDGE VAIL. Then you have not properly prepared for the question. We are not investigating the methods of identification customary in this state.

GLUCKSTEIN. Your Honor, my point is that the methods of identification employed by the State in securing evidence for this trial were arbitrary, unusual, and deliberately pre-arranged to incriminate the defendants.

JUDGE VAIL. You have witnesses to that effect?

GLUCKSTEIN. The prosecution is well aware that every possible hindrance has been put in the way of my obtaining such evidence!

SALTER [*on his feet*]. If you have evidence of anything like that!—

JUDGE VAIL. The objection is sustained. You may proceed.

GLUCKSTEIN. I enter an exception. [*The Judge bows. Gluckstein turns to Bartlet.*] What do you mean by dead image, Mr. Bartlet?

BARTLET. I mean it looked like him. Short and dark.

SALTER. Objection! I object to that! That question has been answered!

JUDGE VAIL. You are a little late, Mr. Salter, nevertheless the objection is sustained. Strike out the question and answer.

GLUCKSTEIN. May I point out to your Honor that his second answer does not tally with the first—

JUDGE VAIL. The second question is not admissible in the record. Proceed.

GLUCKSTEIN. In that case, I have finished with the cross-examination.

JUDGE VAIL. You have a number of witnesses to call in rebuttal, I understand?

[*Bartlet leaves the stand.*]

GLUCKSTEIN. Yes, your Honor. Harry Lubin.

ATTENDANT. Harry Lubin to the stand. [*Mrs. Lubin's son comes forward. He is a young countryman of twenty-two or thereabout.*] Do you swear to tell the truth, the whole truth, and nothing but the truth, so help you God?

LUBIN. I do.

GLUCKSTEIN. How old are you, Mr. Lubin?

LUBIN. Twenty-two.

GLUCKSTEIN. Where are you employed?

LUBIN. I've been working on a farm up north.

GLUCKSTEIN. Are you the son of Mrs. Lubin, who testified a few moments ago?

LUBIN. Yes, sir.

GLUCKSTEIN. Have you lived at your mother's home recently?

LUBIN. No, sir. Not since I can remember. I've always lived on my uncle's farm up-state.

GLUCKSTEIN. You have visited your mother in the apartment she now occupies?

LUBIN. Yes, sir. Quite often.

GLUCKSTEIN. How often?

LUBIN. Maybe once or twice a year.

GLUCKSTEIN. And she has lived there how long?

LUBIN. About ten years.

GLUCKSTEIN. Did you find anything strange about your mother's testimony?

SALTER. I object to that.

JUDGE VAIL. You will reframe your question.

GLUCKSTEIN. Have you ever looked out the front windows of your mother's apartment on Front Street?

LUBIN. Yes, sir. Often.

GLUCKSTEIN. Is it possible to see the street south of the tracks from those windows?

LUBIN. Very little of it.

GLUCKSTEIN. In case you were looking out from the front of that apartment and the gates were down across the tracks, would it be possible to see the face of the driver of a car on the south side of the tracks.

LUBIN. Not usually.

GLUCKSTEIN. It would sometimes?

LUBIN. Yes, sir. If a car happened to be standing at the far side of the street.

GLUCKSTEIN. Would it be possible to see the face of a driver of more than one car at the same time?

LUBIN. I've never been able to.

GLUCKSTEIN. You have tried it?

LUBIN. Yes, sir.

GLUCKSTEIN. When?

LUBIN. After my mother identified one of the men in the robbery.

GLUCKSTEIN. And did you ask her how she happened to be able to see the face of the man in the car?

LUBIN. Yes, sir.

GLUCKSTEIN. Do you remember her answer?

SALTER. Objection. This court is hardly interested in hearsay.

JUDGE VAIL. The question is relevant, Mr. Salter. Answer the question.

LUBIN. At first she said the car was on the far side of the street—but it couldn't have been there because that was where the Ford was standing,

so she finally—

GLUCKSTEIN. Yes?

LUBIN. She finally said she didn't see the robbery at all. She said she looked out after the shot was fired.

GLUCKSTEIN. Did you ask her anything else?

SALTER. Objection!

JUDGE. Answer the question.

LUBIN. I asked her why she identified Macready if she couldn't see him, and she said she had a reason she couldn't tell me. And then she said—

[Mrs. Lubin is sobbing quietly.]

SALTER. Your Honor, will you allow this to continue?

JUDGE VAIL. It is quite relevant.

LUBIN. She said she'd take it back—she wouldn't identify him in the trial.

GLUCKSTEIN. Do you know why she has changed her mind again?

LUBIN. No, sir. I can't understand it.

GLUCKSTEIN. Thank you, Mr. Lubin. That is all.

JUDGE VAIL. Has the State any question?

SALTER. No questions.

JUDGE VAIL. The witness is excused.

[Lubin goes back to his place. His Mother looks up at him, then looks away. Lubin puts his arm about her for a moment. Then sits.]

GLUCKSTEIN. Call Miss Rosalie Suvorin.

ATTENDANT. Miss Suvorin to the stand. *[Rosalie comes to the witness chair.]* You understand the value of an oath, Miss Suvorin?

ROSALIE. I do.

ATTENDANT. Do you swear to tell the truth, the whole truth, and nothing but the truth, so help you God?

ROSALIE. I do.

GLUCKSTEIN. I have only a few questions to ask you, Miss Suvorin.

ROSALIE. Yes, sir.

GLUCKSTEIN. Where were you on the evening of April second of this year?

ROSALIE. The Lyceum restaurant on Laden Street.

GLUCKSTEIN. Did you during that evening see either of the defendants?

ROSALIE. I saw both of them.

GLUCKSTEIN. Did you have any conversation with Mr. Macready?

ROSALIE. Yes, sir.

GLUCKSTEIN. Will you give us the substance of what was said?

ROSALIE. We talked about where he had been that afternoon—and about—whether it wasn't foolish for him to get mixed up in strikes.

GLUCKSTEIN. Did Mr. Macready tell you what part he had taken in the strike that afternoon?

ROSALIE. Yes, sir.

GLUCKSTEIN. Do you know what Macready did with the gun he took from the car?

ROSALIE. He gave it to me.

GLUCKSTEIN. Did you look at it?

ROSALIE. No, sir, I put it in the cash drawer.

GLUCKSTEIN. Do you know whether any of the chambers had been fired when he gave it to you?

ROSALIE. No, sir.

GLUCKSTEIN. Now, I'm going to ask you a personal question, Miss Suvorin, because if I don't ask it, it will be asked by the prosecution. What were your relations with Mr. Macready?

ROSALIE. We—are engaged to be married—

GLUCKSTEIN. You are still engaged to be married?

ROSALIE [*looking at Macready*]. Yes, sir.

GLUCKSTEIN. Did you encourage him to take part in the strike?

ROSALIE. No, sir. I asked him not to. We quarreled about that.

GLUCKSTEIN. Was it a serious quarrel?

ROSALIE. Yes, sir. I told him I wouldn't marry him. But I would now.

GLUCKSTEIN. Have you seen him since that evening?

ROSALIE. No, sir. They wouldn't let me.

GLUCKSTEIN. Why not?

ROSALIE. They said I was a material witness.

GLUCKSTEIN. But you are still engaged to marry him?

ROSALIE. I think so. I'm—I'm in love with him. And I'm telling him now because it's the only chance I have—

SALTER. Objection.

GLUCKSTEIN. Quite right. I thank you, Miss Suvorin.

JUDGE VAIL. Has the prosecution any questions?

SALTER. A very few, your honor. I also, Miss Suvorin, have only a few questions I wish to ask you. Were you present, Miss Suvorin, on the evening of the robbery when Mr. Macready was arrested?

ROSALIE. Yes, I was.

SALTER. As you remember it, what was Mr. Macready's attitude toward the arrest?

ROSALIE. His attitude?

SALTER. Yes, did he resist the arrest?

ROSALIE. No, sir.

SALTER. There has been evidence here, my dear, that Mr. Macready struck a detective. You don't remember that?

ROSALIE. Yes, but the detective had pretended he was an I.W.W. He'd been in the strike with them.

SALTER. Then Mr. Macready did strike the detective?

ROSALIE. Yes, sir.

SALTER. Then he did resist arrest?

ROSALIE. He didn't want to be arrested.

SALTER. No. Certainly not. Now, is it true, Miss Suvorin, that you ran to him and took part in the struggle?

ROSALIE. I don't remember. I think so.

SALTER. Were you trying to save him from something when you did that?

ROSALIE. Yes, sir.

SALTER [*menacing*]. Were you trying to save him from death in the electric chair for the murder of Kendall?

ROSALIE. No, sir.

SALTER. Mr. Macready had come to you and given you this weapon and asked you to hide it.

ROSALIE. He didn't ask me to hide it!

SALTER. Then why did you say you knew nothing about the weapon when the police found it?

ROSALIE. I was afraid.

SALTER. What were you afraid of?

ROSALIE. I was afraid they wouldn't believe what he'd told me about it.

SALTER. You mean that you two had made up a story about this weapon and that you were afraid it wasn't good enough?

ROSALIE. No, sir—we hadn't made—

SALTER. Yes or no is enough.

ROSALIE. No.

SALTER. Do you mean to tell this court that you come here to give unbiased testimony in favor of the defendants?

ROSALIE. I'm telling the truth.

SALTER. Did you tell the truth to the detectives about the gun you had in the cash drawer?

ROSALIE. No.

SALTER. When did you make up your mind to change your story?

ROSALIE. I don't know.

SALTER. You're in love with Macready, aren't you? You'd say anything to save him?

ROSALIE. I—

GLUCKSTEIN. I object to that!

JUDGE VAIL. Strike out the question.

SALTER. That's all.

JUDGE VAIL. Will you call your next witness, Mr. Gluckstein? [*He looks at his watch.*]

GLUCKSTEIN. James Macready.

[*Macready is led to the stand by an officer.*]

ATTENDANT. Do you swear to tell the truth, the whole truth, and nothing but the truth?

MAC. Now just for a change from the prosecution's witnesses, I do.

GLUCKSTEIN. Will you tell me, Mr. Macready, where you were at four-fifteen on the afternoon of the murder of Kendall?

MAC. I was walking north along Front Street.

GLUCKSTEIN. You left the scene of the rioting?

MAC. Yes, sir. After I got away with that gun I thought I'd better not go back. They knew I had it, and they'd have pulled me for having it.

GLUCKSTEIN. How far was the scene of the rioting from the tracks where the crime was committed?

MAC. All of a mile.

GLUCKSTEIN. The time of the rioting has been fixed by many witnesses at about four o'clock. Would it have been possible for you to reach the scene of the crime by four-fifteen?

MAC. Well, the mix-up had been going on about fifteen minutes before I left.

GLUCKSTEIN. Then you started north at about four-fifteen?

MAC. I think so.

GLUCKSTEIN. If you had walked south you'd have been going toward the scene of the robbery?

MAC. Yes, sir.

GLUCKSTEIN. But you walked north?

MAC. Yes. Well, at first I was running, you know; later I slowed down.

GLUCKSTEIN. Where were you going?

MAC. I went to Capraro's room. We always went there, and I thought he'd telephone as soon as he got loose from the police.

GLUCKSTEIN. Did he telephone?

MAC. No.

GLUCKSTEIN. Do you know why not?

MAC. He was taking care of Nick, Nick Bardi. Nick was shot by the police, died that evening.

GLUCKSTEIN. When did you leave the room?

MAC. About seven I went over to my room to see if Capraro was there. I hadn't heard any news and I thought we'd have dinner together.

GLUCKSTEIN. Was Capraro there?

MAC. No.

GLUCKSTEIN. Where did you go after that?

MAC. I went to Suvorin's restaurant in the Lyceum and looked in and there were two policemen eating there, so I went and ate at Joe's. Then I went to a movie to kill time.

GLUCKSTEIN. At what time did you return to the Lyceum?

MAC. About ten-thirty.

GLUCKSTEIN. Why did you go there?

MAC. There was a strike meeting called—and I was one of the speakers.
And then I wanted to see Rosalie.

GLUCKSTEIN. For any especial reason?

MAC. No, just wanted to see her.

GLUCKSTEIN. How did you happen to give her the revolver?

MAC. I didn't want to carry it around.

GLUCKSTEIN. How did that revolver come into your possession?

MAC. A policeman threw it into the car we were riding in, and I grabbed it
up and jumped out of the car.

GLUCKSTEIN. And what was your motive in that?

MAC. To prevent the police planting evidence on Mr. Waterman.

GLUCKSTEIN. Did you ever fire that revolver?

MAC. No.

GLUCKSTEIN. Did you know, while it was in your possession, that one
chamber had been fired?

MAC. Yes, I looked at it in Capraro's room.

GLUCKSTEIN. Did that mean anything to you?

MAC. Not a thing. It was just a service revolver, with one cartridge empty.
Only now I think that cartridge killed Bardi.

GLUCKSTEIN. Were you present at the holdup of Kendall?

MAC. No.

GLUCKSTEIN. Did you shoot Kendall with that service revolver?

MAC. No. I've never shot at anybody—at any time.

GLUCKSTEIN. One more question. Are you engaged to marry Rosalie
Suvorin?

MAC. She said she wouldn't marry me because I got into too much trouble. But if she will, I'm certainly engaged to her.

GLUCKSTEIN. Are you in love with her?

MAC [*leaning forward*]. Why drag that in? From the day it started I knew this trial was a railroad train. I took one look at the jury and I knew what they came in here for. Now I've listened to about a thousand phoney witnesses, lying like hell, and my impression is they got by a hundred per cent. It won't make any difference whether I'm in love with a girl or not—not to them. And at that, it's nobody's business but the girl's.

GLUCKSTEIN. Very well. Thank you, Mr. Macready.

JUDGE VAIL. Does the State wish to question?

SALTER. Yes, your Honor. So you believe, Mr. Macready, that you are going to be convicted?

MAC. If it can be fixed it will be.

SALTER. What makes you so pessimistic, Mr. Macready?

MAC. I've been around in this country some, and I've seen the courts work. When you get a red or an agitator in court the custom is to soak him.

SALTER. Have you ever been convicted of a crime?

MAC. Well, I've been convicted of belonging to the I.W.W. out in California, if you call that a crime.

SALTER. Were you guilty?

MAC. I was of being an I.W.W.

SALTER. What are the principles of the I.W.W.?

MAC. One big union, organized to break the capitalistic stranglehold on natural resources.

SALTER. Does the I.W.W. advocate violence?

MAC. Only when expedient, which is seldom.

SALTER. When does it consider violence expedient?

MAC. Listen, we're taking up time here. If you're interested in the I.W.W. I've got a book I'd like to lend you. You can read it in fifteen minutes, and when you get through, you'll know something about economics.

SALTER. Thank you. But do you advocate violence?

MAC. I never have.

SALTER. You would if you thought it expedient?

MAC. I would. So would you. So does everybody.

SALTER. And you don't think the workers get justice in this country?

MAC. No. Do you? Did you ever hear of a policeman hitting a capitalist over the head?

SALTER. Do you believe in our constitution?

MAC. I believe it was made by a little group of hogs to protect their own trough. Anyway, why bring up the constitution when you don't even enforce the bill of rights? The whole damn thing's a dead letter except the eighteenth amendment, and the only reason we make a play for enforcing that is because there's graft in it! You use the courts and the constitution and the flag and the local police to protect capital and keep the working man in his place! Whenever there's a law that might be to the working man's advantage, you forget that one! That's why you forget the bill of rights! And when some law gets passed by accident that might hamper capital, you forget that! You forgot the Sherman Act till some of you figured out how you could apply it to the Labor Unions! And then, Jesus Christ, how quick you put it on 'em!

[Judge Vail's gavel falls.]

JUDGE VAIL. Have you no respect for the courts, sir?

MAC. Certainly not. The courts are the flunkies of the rich.

JUDGE VAIL. You realize that you are on trial in this court for your life?

MAC. Do you think you can scare me into respecting you?

JUDGE VAIL. I merely wish to warn you, sir, that in this frame of mind you make an exceedingly poor witness in your defense.

MAC. It's my usual frame of mind.

SALTER. So you don't advocate violence?

MAC. No. If I did I wouldn't work through the unions.

SALTER. Isn't it true that you and Capraro and a man named Nick Bardi, who was killed, organized the attack on the police on the afternoon of the murder?

MAC. We didn't attack the police. They attacked us. We did nothing we didn't have a right to do under that constitution you're talking about.

SALTER. But you knew there would be violence?

MAC. We knew the police could always be trusted to start something.

SALTER. You had been warned not to try to reestablish your picket lines?

MAC. We had. By a corporation judge.

SALTER. Now, Mr. Macready, isn't it true that you and Capraro started this riot to draw the police and make it easy to get away after robbing the payroll?

GLUCKSTEIN. I object.

MAC. I'll answer it. No, it is not true.

SALTER. Why did you resist arrest?

MAC. I hit Spiker because he double-crossed me.

SALTER. Did you make no other resistance?

MAC. Maybe I did. I didn't like the idea of being arrested.

SALTER. Have you ever heard of such a thing as the consciousness of guilt?

MAC. I didn't feel it.

SALTER. Why did you turn away from the restaurant when you saw two policemen inside?

MAC. That's a childish question. What would you do if you'd just been in a brush with the police?

SALTER. When you leaped from the car, you knocked a policeman down. Was that because you don't believe in violence?

MAC. He was in my way.

SALTER. You have no respect for authority?

MAC. Respect for authority is a superstition. And the sooner everybody gets over it, the better.

SALTER. Where were you during the war?

MAC. I was in Bisbee, Arizona, at the time of the deportations. I was in Everett at the time of the I.W.W. massacre. You heard about that, I suppose? When the gallant business men of Everett came out and shot down wobblies in cold blood?

SALTER. You were a pacifist and an agitator during the war?

MAC. I was, and I am proud of it. What were you in the war?

SALTER. Do you have respect for that flag?

MAC. What does it stand for? If it stands for the kind of government we've got in Washington and for you and your kind, all right, I've got as much respect for it as I've got for the government in Washington—and for you and your kind! Who killed Salsedo?

SALTER. I think I understand you—and I think the court and the jury understand you. That's all, Mr. Macready.

[There is a brief silence. Then the Foreman of the jury rises slowly, a long finger stretched out at Macready.]

FOREMAN. There's one thing I'd like to ask. There was a bomb set off under my house last night. Now I don't want to do anybody an injustice, but I was under the impression Mr. Macready believed in violence. If he don't I'd like to know where that bomb came from!

[The Judge's gavel falls.]

JUDGE VAIL. You are out of order, Mr. Schaler.

FOREMAN. All right. *[He starts to sit down.]*

MAC *[rising]*. If anybody wants to know who sets bombs in this state—

SALTER *[to the guards]*. Hold that man.

[The Guards leap on Mac, who submits smiling.]

MAC. What's the matter, kid? Are you afraid of me?

[They haul him to his chair.]

GLUCKSTEIN. Your Honor, I move to call this a mistrial. The Foreman of the jury has displayed open prejudice.

JUDGE VAIL. I will take your motion under advisement. Meanwhile let us proceed with the evidence. Is it your intention to place the other defendant on the stand?

GLUCKSTEIN. One moment. *[He bends over and speaks low to Capraro.]*
Mr. Capraro will take the stand.

[Capraro does so.]

ATTENDANT. Do you swear to tell the truth, the whole truth, and nothing but the truth?

CAPRARO. As near as I can.

JUDGE VAIL. There are two possible answers to that question: I do, or I do not.

CAPRARO. You must excuse me. I do.—As near as I can.

JUDGE VAIL. Do you mean that you will tell the truth to the best of your knowledge and belief?

CAPRARO. If you like that phrase better—yes, I do. But I would not wish you to believe that I would know the truth better than other men, for it seems to me that no man would know the truth exactly.

[Judge Vail smiles frigidly.]

GLUCKSTEIN. The court is aware of that, Mr. Capraro. We expect only that you tell the truth as you see it.

CAPRARO. I will try, Mr. Gluckstein.

GLUCKSTEIN. I want you to tell me first, Mr. Capraro, where you were at four-fifteen on the day of the murder of the paymaster.

CAPRARO. I think I was taking care of Nick Bardi.

GLUCKSTEIN. How did that happen?

CAPRARO. After they throw the gun in the car and Mac runs away with it, I am sitting at the wheel while they arrest Mr. Waterman, the lawyer. They seem to pay no attention to me at first, and when they leave me alone in the car there is a great deal of excitement and I just drive away. [*He smiles.*]

GLUCKSTEIN. Where did you drive?

CAPRARO. I drive around the block and leave the car there. I am planning to wait there until Mr. Waterman will wish me to drive him somewhere—police station—home—somewhere.

GLUCKSTEIN. And where did you go after leaving the car?

CAPRARO. I went back where the fight was and then I saw Nick Bardi trying to get up off the ground. He said he was shot at the first but he didn't know it was bad till he fell down. So I help and we went to the car and go to his house. When the doctor comes he says to take Nick to the hospital and before long he is dead in the hospital, and I take the car to the garage where Mr. Waterman keeps it. Then I walk to the restaurant in the Lyceum.

GLUCKSTEIN. At what time did you reach the restaurant?

CAPRARO. Maybe eleven o'clock.

GLUCKSTEIN. Did you make any resistance when arrested?

CAPRARO. Not much. But I am not used to it. [*He smiles.*]

GLUCKSTEIN. Were you present when Kendall was shot?

CAPRARO. No, I could not be.

GLUCKSTEIN. When did you first learn that he had been killed?

CAPRARO. In the newspaper, in Suvorin's.

GLUCKSTEIN. Is it true that after you drove away from the pier you picked up Macready and drove south to carry out the holdup of the paymaster?

CAPRARO. No. To that I can say I am very sure. No.

GLUCKSTEIN. That is all, Mr. Capraro. Thank you.

JUDGE VAIL. The prosecution may take the witness.

SALTER. How much money have you in the bank, Mr. Capraro?

CAPRARO. I do not know. Not exactly. But not much.

SALTER. Do you remember depositing five thousand dollars in the City Bank on April second?

CAPRARO. That was not my money. That was relief funds.

SALTER. You could draw checks on it, couldn't you?

CAPRARO. Only the committee.

SALTER. Is it true that the holdup occurred on April second and on that same day you deposited five thousand dollars?

CAPRARO. Yes.

SALTER. The City Bank stays open in the evening, doesn't it?

CAPRARO. Yes, sir.

SALTER. You might have robbed the paymaster at four-fifteen and had plenty of time to put money in that bank the same day? It was possible?

CAPRARO. No, it was not possible for me. I put that money in the bank in the morning.

SALTER. Do you believe in capitalism?

CAPRARO. No.

SALTER. You believe that all property should belong to the workers?

CAPRARO. Property should belong to those who create it.

SALTER. You are a communist?

CAPRARO. I am an anarchist.

SALTER. What do you mean by that?

CAPRARO. I mean, government is wrong. It creates trouble.

SALTER. You would destroy all government?

CAPRARO. It will not be necessary. I would rather wait till it was so rotten it would rot away. That would not be so long now. [*He smiles.*]

SALTER. You are an anarchist?

CAPRARO. Yes.

SALTER. You are against this government of ours?

CAPRARO. Against all governments.

SALTER. Have you ever thrown a bomb?

CAPRARO. No, I would leave that for the other side.

SALTER. In 1917 you left your home to avoid the draft, didn't you?

CAPRARO. Yes.

SALTER. You opposed the war?

CAPRARO. It was a war for business, a war for billions of dollars, murder of young men for billions.

SALTER. You broke the law in evading the draft?

CAPRARO. Yes.

SALTER. You don't mind breaking the law?

CAPRARO. Sometimes not.

SALTER. Who decides for you what laws you will break and what laws you'll keep?

CAPRARO. I decide it.

SALTER. Oh, you decide it!

CAPRARO. Every man decides for himself.

SALTER. There was nothing to prevent you from deciding to kill a paymaster and putting the money in the bank?

CAPRARO. No, only I. I would decide against it.

SALTER. Do you honor that flag?

CAPRARO. I did before I came to this country. Now I know it is like all the other flags. They are all the same. When we are young boys we look on a flag and believe it is the flag of liberty and happy people—and now I know it is a flag to carry when the old men kill the young men for billions. Now I look at that flag and I hear it saying to me, "How much

money have you? If you have plenty of money—then I promise you paradise—I will give you more—I will give you the justice and freedom of your neighbours! But if you are poor I am not your flag at all.”

SALTER. What is your religion, Mr. Capraro?

CAPRARO. I have none.

SALTER. You are an atheist?

CAPRARO. Yes.

SALTER. You are then an outlaw, bowing neither to the standards of God nor men?

CAPRARO. I have committed no crime.

SALTER. And do you expect us to believe that, Mr. Capraro? What, in all solemnity, in the name of God, prevents you from committing crime?

CAPRARO. Myself. My own heart.

SALTER. You set yourself above God, above all law, above all control?

CAPRARO. I have met nobody I would trust to decide for my own soul.

SALTER. Your Honor, we have stumbled here upon a subject more serious than robbery, more serious than murder. If I had known where my questions were leading, I should have hesitated before asking them. Perhaps I should apologize—

MAC. You’re goddam right you should! [*The gavel falls.*]

CAPRARO. Is there any reason in your constitution why I should not believe as I think? Is there any reason in your constitution why I should worship your God or your flag?

SALTER. That is all, your Honor.

MAC. For Christ’s sake, Amen.

[*Capraro leaves the stand.*]

JUDGE VAIL. Does this conclude your case, Mr. Gluckstein?

GLUCKSTEIN. No, your Honor. I have one more witness I should like to call.

JUDGE VAIL. Very well.

GLUCKSTEIN. Michael Suvorin.

ATTENDANT. Michael Suvorin. To the stand. [*Suvorin rises, seats himself in the witness chair. Sheriff Henry, an elderly, hard-faced man, enters and sits quietly in the rear of the witnesses. Spiker takes a memorandum to Salter, who studies it.*] Do you swear to tell the truth, the whole truth, and nothing but the truth? so help you God?

SUVORIN. I do.

GLUCKSTEIN. What is your occupation, Mr. Suvorin?

SUVORIN. I am the keeper of the Lyceum restaurant on Laden Street.

GLUCKSTEIN. How long have you been in business there?

SUVORIN. Ten or twelve years.

GLUCKSTEIN. Where were you at four-fifteen on the afternoon of April second of this year?

SUVORIN. Near the railroad tracks on Front Street.

GLUCKSTEIN. How did you happen to be there?

SUVORIN. It is on the way to the produce markets. I was buying supplies for the restaurant.

GLUCKSTEIN. Did you witness the murder of Kendall?

SUVORIN. I did.

GLUCKSTEIN. Did you see the men who committed the crime?

SUVORIN. I did.

GLUCKSTEIN. Did you see the shot fired?

SUVORIN. I did.

GLUCKSTEIN. Could you identify the bandits?

SUVORIN. I could.

GLUCKSTEIN. Did you see Capraro there?

SUVORIN. No.

GLUCKSTEIN. Did you see Macready there?

SUVORIN. No.

GLUCKSTEIN. If they had been there, would you have seen them?

SUVORIN. Yes.

SALTER. I object, your Honor. I wasn't informed of this.

JUDGE VAIL. Do you wish a postponement?

SALTER. No. I merely wish to call the attention of the court to the somewhat arbitrary methods of the defense.

JUDGE VAIL. Proceed.

GLUCKSTEIN [*smiling*]. That is all, your Honor.

JUDGE VAIL [*to Salter*]. Do you wish to question?

SALTER. Well—a few questions. [*Haltingly.*] Your name is Suvorin?

SUVORIN. Yes.

SALTER. You are the father of Rosalie Suvorin?

SUVORIN. Yes.

SALTER. Isn't it a little strange, Mr. Suvorin, that you, the father of Miss Suvorin, should have happened to be passing along Front Street at so opportune a moment for your prospective son-in-law?

SUVORIN. It was strange, yes.

SALTER. Isn't it strange, also, that you have so far said nothing about the fact?

SUVORIN. No. One does not testify unless necessary.

SALTER. How long have you lived in this country?

SUVORIN. Thirty years.

SALTER. Have you spent all of that time in this city?

SUVORIN. I was in the West for twenty years.

SALTER. The West?

SUVORIN. Illinois, West Virginia.

SALTER. What was your occupation?

SUVORIN. Coal miner.

SALTER. Have you ever been convicted of a crime?

SUVORIN. No.

SALTER. Are you a citizen of this country?

SUVORIN. No.

SALTER. Of what country?

SUVORIN. None.

SALTER. You came from what country?

SUVORIN. Russia.

SALTER. Why have you not altered your citizenship?

SUVORIN. I have no interest in politics.

SALTER. You witnessed the murder of Kendall?

SUVORIN. Yes.

SALTER. Had you ever witnessed a crime before?

SUVORIN. Not that I remember.

SALTER. You would not remember then, perhaps?

SUVORIN. I think so.

SALTER [*turns away as if baffled, then returns*]. Did you ever work in the mills in this state?

SUVORIN [*pausing*]. No.

SALTER. I have just been handed the record of a man named Gregorin who worked in the Falltown mills in 1892. You are not that man?

SUVORIN. No.

SALTER. The man of whom I speak was one of a radical group of workers who led a strike in which considerable property was destroyed. He was convicted of sabotage and sentenced to twenty years in the federal penitentiary. Before his sentence was complete he escaped. You are not that Gregorin?

SUVORIN. No.

SALTER. This man escaped, finding it necessary to murder a guard, as you may remember. He was caught, tried, and sentenced to hang. He escaped once more on the way to prison. You are not the man?

SUVORIN. No.

SALTER. If the court will pardon me, I have here also the record of a man named Thievenen who was apprehended in Colorado last year as one of two bandits who robbed a mail truck of \$170,000. He escaped from the Denver jail, but not until after he had been finger printed and photographed. You are not by any chance that man Thievenen?

SUVORIN. No!

SALTER. I think you are! Mr. Henry, I think this is your prisoner. [*Henry rises.*] Your Honor, I am distressed to interrupt the session.

[*Henry comes forward. Suvorin rises.*]

SUVORIN. I'm not your man yet. I saw you here. You won't take me till I'm ready.

JUDGE VAIL [*To Henry*]. You have a warrant for his arrest?

HENRY. Right here.

JUDGE VAIL. Then if the prosecution has finished with the witness—

SUVORIN [*speaking slowly and heavily*]. He'll wait for me. You'll all wait. [*To Salter.*] You thought it somewhat strange that I should have been so opportunely at the scene of the murder of Kendall. I'll explain that. The man who shot down Kendall was killed in White Plains a month ago, by a federal officer. He was what you call a rum-runner in his spare time. So am I—in my spare time. When he needed cash he took it—where he could get it. So do I. We took Kendall's twenty-eight

thousand. We divided it between us. I ought to know. I planned it. I carried it out.

SALTER. Are you, by any chance, confessing to participation in this crime?

SUVORIN [*menacing*]. Are you slow in the head? What do you think I'm doing? You asked Macready if he planned the rioting to make his opportunity for the holdup. He did not. But I knew the plans of the longshoremen. I overheard them. And I am guilty and they are not. That may not interest you but it interests me. You would rather they were guilty. You would rather pin this crime on a radical than on a criminal. It suits your plans better. The radicals are not criminals. They are young fools who think they are saving humanity. They think they will change the government and bring in the millenium.

SALTER. Who killed Kendall, if you don't mind telling us?

SUVORIN. Heine, the Gat.

JUDGE VAIL. Mr. Gluckstein, were you aware of this person's record?

GLUCKSTEIN. No, your Honor.

JUDGE VAIL. Why was he called?

GLUCKSTEIN. He told me the story he told first in Court.

JUDGE VAIL [*To Suvorin*]. What did you say your occupation was, sir?

SUVORIN. I came to this country a young man. I came believing in it; and I worked in your mines and your mills and I set myself to establish justice to the workers. I was a fool. I believed in Justice. They found me guilty of sabotage and sent me to prison. I studied you there. I knew you there for what you are. I tasted your justice. I drank it deep. I bear its marks on my body and I bear them on my brain. My wife died and I had loved her. She died after fifteen years of your justice and I swore by the bleeding Christ you would pay me! You have paid me.

JUDGE VAIL. I asked you a question.

SUVORIN. I say you have paid me! I have had my day with you! You have felt me when you least knew it. You have puzzled over me and I have laughed at you. Fifteen years I had my way with you and you'd never have caught me if I hadn't tried to save innocent men! I have had my

revenge—and it was little enough for a woman dead when I could not even say good-bye to her; too little—oh damn you—too little—!

SALTER. This man's confession is an obvious fraud. He is under sentence of death. He has nothing to lose. His daughter is to marry Macready. The man on whom he fixes the crime is dead. This story has been concocted to save the defendants.

SUVORIN. What!

SALTER. This story has been concocted to save the defendants.

SUVORIN. I have confessed to this crime—!

SALTER. Oh, no—you've confessed that Heine, the Gat did it—and Heine's dead. I say it's a fraud—

SUVORIN. You do not believe this?

SALTER. No, I tell you. You've got nothing to lose. There's a murder in your record already.

SUVORIN. That would be like you, too! To kill us all three, innocent and guilty together—burn us in your little hell to make your world safe for your bankers—you kept Judge, of a kept nation, you dead hand of the dead.

[Several jurors rise. The Judge thunders with his gavel. Suvorin puts out his hands for the waiting handcuffs. General confusion.]

CURTAIN



ACT II

SCENE III

cene: The court room.

here is no jury present; the Judge is on the bench, the Attendants in place, and Macready and Capraro face the judge. Aside from the lawyers Rosalie is the sole spectator.

GLUCKSTEIN. If the court please I should like to move for a new trial before sentence is pronounced. My motion is based on the depositions of four witnesses. Your Honor has these depositions before you.

JUDGE VAIL. I have read them.

GLUCKSTEIN. I shall make only a brief summary of the evidence they disclose. Mrs. Lubin, a chief witness for the prosecution, swears that her identification of Macready was obtained under duress. She retracts that identification. Her son, a witness for the defense, corroborates that retraction by evidence tending to show that his mother was threatened with the exposure of certain facts in her history of which he himself had been ignorant. Jerome Bartlet, the only witness to identify Capraro as at the scene of the crime, retracts that identification—

SALTER. You will find that he has retracted that retraction, Mr. Gluckstein—

GLUCKSTEIN. I know nothing of that. No doubt the attorney for the prosecution has seen him again—

SALTER. I have.

GLUCKSTEIN. The other affidavit is signed by the ballistic expert, Mr. Howard, who appeared in the trial. He states that his answers to the State's questions were pre-arranged to mislead the jury—

SALTER. Pre-arranged?

GLUCKSTEIN. Pre-arranged between himself and the district attorney—that he did not intend to say that the mortal bullet was fired from the pistol in the possession of Macready, but only that it might have been fired from that weapon.

JUDGE VAIL. Does this affidavit indicate that Mr. Howard committed perjury during the trial?

GLUCKSTEIN. No, your Honor. It merely amplifies the statements made during the trial, which were so worded as to create a false impression.

JUDGE VAIL. If the witness amplifies but does not alter his statements his affidavit cannot be accepted as basis for a new trial. Such a motion strikes at the jury's competence to decide.

GLUCKSTEIN. But the jury was deliberately misled.

JUDGE VAIL. Can it be proved that it was misled? Even if there was intention to mislead?

GLUCKSTEIN. Your Honor, I believe this addition to the expert testimony of sufficient importance to rank as new evidence. And it appears incontrovertible that the identifications are rendered null by the first three affidavits.

JUDGE VAIL. I have considered the additions to the ballistic evidence and I find them in entire accordance with the evidence already in the record. As for the identifications, it does not astonish me that the identification witnesses have withdrawn their testimony. It was obvious to me, and was no doubt obvious to the jury, that the identifications were completely discredited by the defense. The verdict of guilty was brought in on other grounds. In my opinion those grounds must have been the defendant's consciousness of guilt, as shown by their actions after the crime, and, furthermore, the general principles of the defendants, tallying, as they did, with the circumstantial evidence. These affidavits do not attack those grounds for the verdict, and the motion is therefore denied.

GLUCKSTEIN. Does your Honor mean that these men were convicted on circumstantial evidence and consciousness of guilt—?

JUDGE VAIL. There was no other evidence which was not disposed of most ably during the trial.

GLUCKSTEIN. But in that case, your Honor— [*He pauses.*]

JUDGE VAIL. Yes?

GLUCKSTEIN. In that case there was no real evidence against these men! And you make that fact the basis for denying a new trial!

JUDGE VAIL. There was sufficient evidence to convict.—If you have no further motion we will proceed to the sentence.

THE CLERK. James Macready, have you anything to say why sentence of death should not be passed upon you?

MAC. Well—no, I guess not. The only reason I can think of is that I'm not guilty of the murder, and that doesn't seem to have anything to do with this case. I'm not guilty as charged but I am guilty—I'm guilty of being a radical—and that's what I was convicted for and that's what you're sentencing me for. I'm guilty of thinking like a free man and talking like a free man and acting like a free man—and the jury didn't like it and you don't like it—and so the logical thing is to put me where I can't do it any more. I'm guilty of spreading unrest among the slaves and raising hell with slave morality. I'm guilty of exercising my rights under the constitution and I guess the constitution's gone out in this country. It isn't being done. So you go right ahead and sentence me, and don't let your conscience bother you at all, because you're doing exactly what you were put there for.

JUDGE VAIL. You have quite finished?

MAC. Oh, quite.

THE CLERK. Dante Capraro, have you anything to say why sentence of death should not be passed upon you?

CAPRARO. What I say is that I am innocent, not only of this crime but of all crimes. I have worked, I have worked hard, and those who know these two hands will tell you they have never needed to kill to earn bread. I have earned by labor what I wanted to live, and I have refused to be a member of any class but the working class, even when it could have been, because to be in business is to take profits, to be a parasite,

to take what you have not deserved, and that I could not do. All my life I have worked against crime, against the murder of war, against oppression of the poor, against the great crime which is government—. Do not do this thing, Judge Vail. It has been a long time and I have suffered too much to be angry. I know that you have been an unjust judge to us, that you have fear for us, and therefore hate for us—that you have wanted us dead and have taken advantage to kill us. You have ruled to help us in the little things so that you could safely rule against us at the last. But you are an old man, and wearier than we, even if we have been in prison; and you too will die sometime, even if you kill us first. So I say to you, do not do this thing, not because the world looks at us and knows that you are wrong, but because if you do it you will prove that I was right all the time. If you kill us in this one-time free city, in this one-time free country, kill us for no wrong we have done but only for passion of prejudice and greed, then there is no answer to me, no answer to the anarchist who says the power of the State is power for corruption, and in my silence I will silence you.

JUDGE VAIL. Under the law the jury says whether a defendant is guilty or innocent. The court has nothing to do with that question. It is considered and ordered by the court that you, James Macready, and you, Dante Capraro,—

CAPRARO. I am innocent!

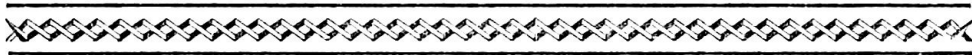
MAC. You know he's innocent! You couldn't listen to him without knowing that!

CAPRARO. One more moment, your Honor,—I want to speak to Mr. Gluckstein.

GLUCKSTEIN. It's too late, Capraro.

JUDGE VAIL. I think I should pronounce the sentence. That you, James Macready, and you, Dante Capraro, suffer the punishment of death by the passage of a current of electricity through your body within the week beginning on Monday, the tenth day of August, in the year of our Lord one thousand nine hundred and twenty-seven. This is the sentence of the law.

CURTAIN



ACT III

cene: The restaurant as in the first act.

Pete, the counter-man, is leaning on his elbows, reading a paper. The clock points to 11:30.

It is dark outside. The murmur of a crowd is heard for a moment and dies away.

Milkin, bent, grey, and more wizened, enters from the street and looks questioningly about.

MILKIN. Miss Rosalie here?

PETE. No.

MILKIN. Give me coffee. [*He pays for the coffee and sits gloomily without touching it.*]

PETE [*grudgingly*]. She's seeing the governor.

MILKIN. She don't get no sleep.

PETE. You think they're going to bump 'em off?

MILKIN. I couldn't say dat.

PETE. Tonight, I mean?

MILKIN. De signs is wrong. Dey might. De signs is bad.

[*Bauer enters from the left, a paper folded in his hand. He goes directly across to the window.*]

BAUER. I'll bet money they get themselves raided over at the Zeitung. They've got a sheet up to flash bulletins of the executions. They kept it dark till the last minute.

PETE. Yeah?

BAUER. And what the hell is all the row about, anyway? Some rough guys get caught for murder and when they start to put 'em through all the

radicals and poets in the country begin marching around the jail. You'd think nobody ever got it before.

[A Policeman enters.]

PETE. Yeah, that's the truth.

BAUER. Look here, officer, you see what they're doing over at the Zeitung? They're all ready to flash bulletins.

OFFICER. Yeah, I saw it. We haven't got any orders about that. We're just watching the street here.

[He lowers his voice.] Where's the girl, do you know?

[Ike appears in the doorway.]

BAUER. She's seeing the governor again.

OFFICER. They'll have to hurry if they're going to stop it now. *[He glances at the clock.]*

BAUER. Think it's going through this time?

OFFICER. Sure, it's going through. They put it off once and that's enough. *[He goes out.]*

PETE. Everybody comes in here looks at that damn clock. It makes me feel queer.

IKE. Any news?

[Bauer goes out left.]

PETE. No.

IKE. Then I guess there won't be any. Not till twelve o'clock.

PETE. Maybe not.

[Sowerby enters as in the first act, with his pile of books and the slippers.]

IKE. Meanwhile, life goes on as usual. Where are you living now?

SOWERBY. It's extraordinary how economic difficulties manage to catch one at the most embarrassing moments. *[He puts down his things.]* You've noticed that, I suppose?

IKE. In my walk of life I couldn't miss it. What's the trouble?

SOWERBY. Simple enough. Lack of funds.

IKE. Milkin'll stake you to something. Hey, Milkin, ain't you going to eat?

MILKIN. Naw. Dere ain't no use eating.

IKE. I can't get him to eat any more.

SOWERBY. What's the matter? That? [*He points to the clock.*]

IKE. Yeah, he won't eat at all.

PETE. I don't eat so good myself.

IKE. Yeah, but he's got a special worry, see? You know that theory about putting the number on them—by the cabalistic system? Well, he put it on 'em.

SOWERBY. Yeah?

IKE. Yeah, he put the number on the judge and said, "Come down from dere!" and the judge didn't come down.

SOWERBY. I daresay that hit him pretty hard.

NEWSBOY. Extra! Extra—

IKE. Jeez, it busted him up. You been over in the square?

SOWERBY. No.

IKE. There's about a million people there.

SOWERBY. Any fights?

IKE. No, sir. Nobody said a word to the police. They've got machine guns trained right on them. Down by the jail you can't even walk past. There was a bright little girl down there making a speech. They took her away. This ain't a favorable time for speeches. Personally I prefer a ham sandwich. You paying, Milkin?

MILKIN. Sure ting—if you can eat.

SOWERBY. Indeed I could eat.

MILKIN. Wid dat going on out dere?

SOWERBY. You mean the crowds?

MILKIN. I mean what dey're doing to Mac and Capraro and de old man.

SOWERBY. They won't do it. I have never for one moment believed they would carry it out.

MILKIN. Oh, yes, dey will. If somebody don't get de numbers on 'em and do it quick. And dere ain't much time.

SOWERBY. My friend, I am something of a historian, and I have made a specialty of labor developments. Never within my memory has there been a plutocracy which did not play the game with an eye to the future. Now they feel like executing Mac and Capraro. That feeling pervaded the trial and swayed the jury. On the other hand, it would be a gigantic error, from a tactical point of view to kill these men now when the whole world is watching them. They will pursue a safer and more dastardly course of action. They will execute Suvorin and commute the sentences of Mac and Capraro to life imprisonment. They will do this and then they will sit back and laugh at us, having drawn the sting from all our arguments. That was what they did in the Mooney case. Trust any government to choose the safe and dastardly course.

MILKIN. Not dis time.

SOWERBY. I think so.

MILKIN. How about de stars? How about de numbers? Dey don't come out dat way. Dey come out— [*He turns down an expressive thumb.*]

SOWERBY. If the government wishes the friendship of other nations, if it wishes the respect of its own citizens, it will take, as I said, the safe and dastardly course.

[*Ward enters.*]

WARD. Have you seen the cheap story that's out in the *Herald*—about the governor going to hold it up? [*He shows a paper.*]

SOWERBY. And why not?

WARD. They're all crazy fighting for papers up in the avenue. I had to battle for this one.

SOWERBY. Is it definite?

WARD. Read it. All the news it's safe to print.

SOWERBY [*reading*]. "Macready-Capraro Reprieve Likely."

IKE. About as definite as the price of clothes in a one-price second-hand store.

SOWERBY [*reading*]. "The correspondent of this paper learned from an inside official source this evening that the governor had practically made up his mind to issue a stay of execution pending further investigation into the Macready-Capraro case. This will probably mean that the executions set for midnight will be postponed another ten days." That means the governor will act.

WARD. Like hell it does! It means he's stringing us along till he gets 'em good and dead and it's too late to say anything. He knows nobody cares but the radicals, and he's playing them for suckers. Why should he worry about the crowd over in the square? There's several million around here going to bed and going to sleep as usual. Why shouldn't they? There's nothing unusual happening. This isn't a miscarriage of justice! It is justice! The government's putting away some bad boys the way governments always put away the boys that won't play the game! You ask any honest citizen what he thinks about it and he'll say, "Hell, they killed a paymaster, didn't they? Anyway, they're anarchists, ain't they? I should worry!" And he should. They won't bother him as long as he's a fat-head! [*Rosalie enters from the left. The men rise.*] Oh, Rosalie! I thought you were seeing the governor.

ROSALIE. I was. I just got back. [*To Pete.*] Has anybody telephoned for me here?

PETE. No, Miss Suvorin.

ROSALIE. Oh, but there must be a mistake! [*She takes up the phone.*] Will you get me Mr. Gluckstein's office—right away?

WARD. What did he say, Rosalie?

ROSALIE. He said he couldn't decide. He—he was weighing the evidence. He had stacks of letters on both sides, and he was reading them. Oh, God—if it were anything else it would be just—funny. To think such a

fool should decide if Mac will live or die. [*In the phone.*] Hello—yes, yes—. But he must be. Yes, I see. Yes, yes—but he must hurry. And tell him to call me—please—no, at the Lyceum. [*She hangs up the receiver.*] I thought there might be news here. Everywhere I go I think maybe there's news somewhere else.

SOWERBY. There's something in the *Herald*.

ROSALIE. I've quit trying to read about it.

SOWERBY. It says there's going to be a reprieve.

ROSALIE. Oh, but why didn't he tell me then?— [*She looks at the paper.*]

SOWERBY. It's been very unlikely from the beginning that they'd carry out the sentence. I don't know that it's much better if they commute to life imprisonment,—still—they might be pardoned, if we ever get a decent governor in office.

ROSALIE [*looking up*]. Yes—they might. They might. I haven't allowed myself to think it, since they turned down the appeals.

SOWERBY. That was only the judge, my dear. We know where the judge stands and where the governor's committee stands, but nobody else has spoken. The governor doesn't have to act as his committee advises. And even if the governor failed to act there's a supreme court justice waiting with a writ of certiorari—and everything in his record indicates that he'll come forward if necessary.

ROSALIE. But where is he? Here it's the last—my God—the last few minutes, and Gluckstein hasn't even answered!

[*Rosalie, who has been dry-eyed, looks round her at the group, then sinks into a chair and begins to sob.*]

WARD. I don't know as I'd do that, Rosalie.

[*Two Policemen enter casually.*]

FIRST OFFICER. What's going on?

IKE. Not a thing.

FIRST OFFICER. What's she crying about?

IKE. Her? Oh, she had a sweetheart killed over in France. And every once in a while she gets thinking about it, see?

FIRST OFFICER. Don't kid me, big boy.

IKE. I wouldn't think of it.

[*The Policemen go out.*]

MILKIN. Christ, when I look at dem—when I look at dem—de paid hirelings of de unjust—I kin feel strengt' coming back in me, de strengt' I lost! If I was worthy to do it I could break dem all—I could break dem and bring dem down. It ain't knowledge I lack. It ain't courage! It's being worthy! Worthy to rise above self! [*He snatches a paper napkin and marks it feverishly with a pencil, then rises, stretching up his arms to full length, the napkin clutched in the right.*] On dis paper I have set down de sign of One, de great cabalistic sign, wit' powers over Earth and Heaven and all de Hells! Dat is de sign which de powers has said will sway de tides and draw aside de stars from deir paths in de infinite! It is de power over all powers, de invisible *signum monstrum, de gloria cælis, gloria mundi*! And by dis sign I conjures you in dis moment out of de endless of eternity—strike down dat judge—palsy de hands dat would lay demselves on does two men—by all dat is cognate under dis abstraction—strip dem of deir powers for good and evil, make dem as little children—and dis by de sign of One—by de sign of de mystery! [*For a moment he holds his pose, then sits again, staring gloomily before him.*] It don't work. I ain't worthy. Dat's de second time.

[*Andy enters.*]

ANDY. A couple of telegrams for you, Ward.

WARD. Thanks.

ANDY. Anything else happened?

[*Crowd offstage. "They've escaped," etc.*]

WARD. No. Just a few more helpful friends asking us why in God's name we don't do something.

[Jerusalem Slim flings open the street door and enters hastily in great excitement. A burst of cheering is heard.]

JERUSALEM SLIM. I knew it would happen! I knew it would happen—if I prayed for it! The women are all crying out there—and Rosalie’s crying—but don’t cry any more—don’t cry any more! Haven’t you heard it? Haven’t you heard it?

IKE. What?

JERUSALEM SLIM. They’ve escaped.

IKE. Who’s escaped?

JERUSALEM SLIM. The men! Mac and Cappie and Suvorin! They’re gone and nobody knows where they are!

WARD. Escaped? Out of the death-house!

JERUSALEM SLIM. Yes! It’s in the papers.

SOWERBY. You’re crazy, Slim!

[A newsboy passes shouting.]

JERUSALEM SLIM. Everybody says so.

[Ward makes a dash for the door and goes out].

IKE. What paper’s it in?

JERUSALEM SLIM. I don’t know.

[Ward enters with a paper. He looks at it in astonishment.]

WARD. “Break from death-house reported!” They must be doing it to sell papers.

[Crowd dies away. Rosalie looks at the paper.]

ROSALIE. Ward—could it be true?

WARD. I—I don’t think so, Rosalie. It’s never happened. I wish it might. But it couldn’t possibly.

[The Salvation Lass enters from the street, looking at Rosalie expectantly. The news is written in her face.]

SOWERBY. However, it's extraordinary that the *Gazette* should print it—if there's nothing in the story.

WARD. It says it's reported—any kind of rumor could get about. There's no use hoping for anything like that. If it did happen, they'd just take them back again.

[An elderly priest enters from the street and goes to the counter. The group fails to notice him.]

THE PRIEST. Give me same coffee, please.

[At the sound of his voice, Rosalie recognizes Suvorin in the priest. She turns toward him.]

ROSALIE. Then—it is true! Oh, God, it is true!

WARD. What is it?

ROSALIE. It's—my father. Don't you see? Dad—Dad!

[Suvorin makes an almost imperceptible motion for silence. The words freeze on Rosalie's lips. A Policeman enters and walks to the counter.]

THE OFFICER. Coffee, old man, and fill it up with milk. I've got to drink fast. Evening, father.

[Pete serves him. Suvorin and the Policeman sip their coffee elbow to elbow. The Policeman goes out without a word.]

ROSALIE. But—dad—then it's true! You got away!

SUVORIN. Yes.

ROSALIE. Why are you here?

SUVORIN. I had to come back for some money. I'll go out the other way.
[Goes toward door at left.]

ROSALIE. Then—where are the others?

SUVORIN. The others?

ROSALIE. Cappie—and Mac?

SUVORIN. I couldn't help them. I'm sorry.

ROSALIE. Oh—

SUVORIN. They couldn't hold me. I knew they couldn't. But I couldn't help anybody else. I'm sorry.

ROSALIE. You mean—you left Mac—there?

SUVORIN. I couldn't help him.

ROSALIE. No. [*Suvorin goes out left.*] But—they won't go ahead now—now that one of them's escaped! They won't, will they, Ward?

WARD. I don't know.

ROSALIE. No—no! Say they won't! What are we doing here! Oh, don't you see it's nearly time! Why do we wait for other people to do something! It will be too late soon—and then we'll think of what we might have done! They're going to kill Cappie—and—and Mac—don't you know it? They're going to kill them—and we've had all day to help—we've had days and weeks—and years! We've let it go on till—till it's almost too late. Oh, dear God, don't they know Mac couldn't be guilty? They know it! They can't kill him! [*The phone rings. Rosalie looks at it, clenching her hands, staring wildly.*]

WARD. I'll answer it. [*He goes to the phone.*] Hello. Yes. Yes, this is Ward. Yes. I can take a message. [*He waits.*] I didn't hear that. [*He listens, then turns toward Rosalie apprehensively. Rosalie is looking away. The men watch him. He makes a downward sign for silence.*] Yes, we know that. Thank you. Yes, sure. [*He hangs up, slowly. It is obvious that the news was bad.*]

ROSALIE. Was it Gluckstein?

WARD. Yes. It's not decided yet. They're still—trying everything.

ROSALIE. Oh, are they truly, Ward—or are you lying to me? Because, you see—he's warm and alive now—and if they'd only wait till I could tell them again—No, no, we've told them over and over—and they listened to us—and went on killing them. Because they know they're innocent—and they don't care.

[*Ike looks out the window and turns to pick up Sowerby and Ward with a glance. They look out. Ike whispers. The crowd murmurs outside.*]

IKE. Capraro goes first.

[*They watch in silence, then Ike whispers again.*]

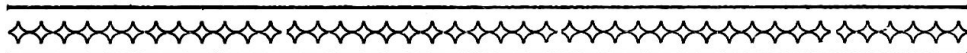
ROSALIE. Don't!—Don't!—Don't whisper any more! What is it? [*She sees the clock. The hands point to one minute of twelve.*] There's still time! There's still time! Oh, my dear, my dear, one minute more time in all your world—only one minute more of time and I can do nothing! [*The hands click to midnight! Ward returns to Rosalie.*] You lied to me, Ward, they're killing them now. What does it say over there? Tell me what it says. Ike, you can tell me.

IKE. It says "Capraro Murdered."

[*Rosalie drops her hands, frozen. One of the Officers enters, looks around casually, then looks out of the window. Sowerby speaks low to Ike.*]

ROSALIE. Don't whisper it! Don't whisper it! Didn't you hear me say not to whisper any more? That's what they'll want you to do—whisper it—keep quiet about it—say it never happened—it couldn't happen—two innocent men killed—keep it dark—keep it quiet—No! No! Shout it! They're killing them! [*There is a cry from the crowd. The Policeman looks at Rosalie. The Men at the window stir uneasily. Cry from crowd—woman shrieks. Crowd silent.*] What does it say now, Ike? [*Ike makes no answer.*] I know what it says! It says "Macready Murdered." Mac—Mac—my dear—they have murdered you—while we stood here trying to think of what to do they murdered you! Just a moment ago you had a minute left—and it was the only minute in the whole world—and now—now this day will never end for you—there will be no more days! [*The crowd is heard again.*] Shout it! Shout it! Cry out! Run and cry! Only—it won't do any good—now.

CURTAIN



OUTSIDE LOOKING IN

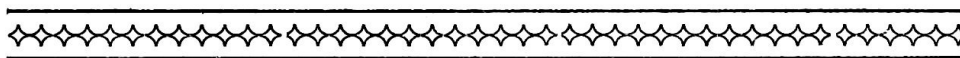
BASED ON “BEGGARS OF LIFE”

BY JIM TULLY



THE CAST

BILL
RUBIN
SKELLY
MOSE
LITTLE RED
EDNA
BALDY
HOPPER
SNAKE
OKLAHOMA
FIRST STRANGER
SECOND STRANGER
THIRD STRANGER
UKIE
SIMS
BRAKEMAN
DETECTIVE
SHERIFF
DEPUTIES



OUTSIDE LOOKING IN

ACT I

cene: A Hobo camp near a railroad bridge in North Dakota. A glimpse of the trestle at right; a few low willows hiding the coulee at the rear. At the left a few small trees. The foreground is strewn with the usual debris of tramp housekeeping; a circle of blackened stones, a square five gallon oil can, smaller cans, a few papers.

t Rise: Skelly, a thin fellow about eighteen, is lying asleep near the ring of stones, Bill and Rubin come in from the right.

ime: Autumn evening.

BILL. This is a hell of a jungle.

RUBIN. What's the matter with it?

BILL. Well, just look at it; that's all; just look at it.

RUBIN. Damn good jungle. I slep' here three years ago. See that hill over there? That breaks the wind.

BILL. Hill? You call that a hill?

RUBIN. Damn near a mountain, that is.

BILL. Why there ain't a hill in North Dakota tall enough to make a grade. There ain't a mountain high enough to set down on.

RUBIN. D'you have to have a mountain to set down on? Well, when you hit Dakota you can stand up, see? [*Sits right on fire stone.*]

BILL. What d'you get?

RUBIN. I got a lump and I just bummed a towel and some soap.

BILL. Jeez! You must have slung a good line!

RUBIN. Yah! I gets desperate and tells a new one. I says, Lady, will ya gimme a drink o' water? I'm so hungry I don't know where I'm gonna

sleep tonight. She was dumb and fell for it. She's a widowwoman; said her brother's a bum.

BILL. D'she ask you to marry her?

RUBIN. We didn't get to that—I left about then.

BILL. Said her brother's a bum, huh? Bet you I got a lump off the same one. Little skinny woman, gabbier'n a parrot?

RUBIN. Naw, this jane's bigger'n a sprinklin' wagon.

BILL. That's two bums out of this town. Hustlin' little burg it is, too. Full of bright young men tryin' to get somewhere.

RUBIN [*to Skelly*]. Where from, 'Bo?'

SKELLY [*not moving*]. East.

RUBIN. What's the matter?

SKELLY. I certainly do feel rotten.

RUBIN. Yeah?

SKELLY. You know that Fairview jail? That's where I was.

RUBIN. Bad grub?

SKELLY. Bad? Oh my God!

BILL. I heard of that jail. They got a rock-pile higher'n a church.

RUBIN. What'd they get you for?

SKELLY. They wrote it down "trespassin' on railroad property" but what they really meant was "being able-bodied and not doing any work." They certainly fixed me so I ain't so able-bodied any more.

BILL. Must be hostile down around Fairview?

RUBIN. Any time you notice yourself comin' into Fargo you better back track out of there. They're so hostile they say it with pitchforks. I wouldn't prospect within ten blocks of the agricultural college if you gave me one of them dormitories full of brass beds. I'd rather go pan-handlin' in the Bad Lands.

BILL. Well, it ain't so bad around here. [*He sits.*]

RUBIN. Do you know why?

BILL. No, why?

RUBIN. They don't dare turn anybody away around here for fear it might be a relative!

BILL. I suppose *you* come from round here.

RUBIN. Naw—I was born in New York.

BILL. That so? You don't look it.

RUBIN. It's no place to live but it's a good place to come from. Ever been in Long Island City?

BILL. Once.

RUBIN. You count seven houses from the end of the bridge. That's where I was born.

BILL. Livery stable?

RUBIN. Hospital.

BILL. Oh, hell.... When do we eat?

RUBIN. Come on down to the coulee and scrub up. I'll split the towel with you.

BILL. Don't waste that river washin' in it. There ain't enough water now to make coffee.

RUBIN. Come on; we'll wash up, and I'll get some wood for a fire.

BILL [*rising*]. You wash up, and I'll get the wood. I got my winter underwear on, and I don't change 'till Spring.

[Rubin disappears left, Bill after him. Skelly has fallen asleep again. Mose, a gentle-looking negro, middle-aged, enters back, looks round and finally sits down near Skelly. After a moment Skelly starts in his sleep and opens his eyes.]

MOSE. I been watchin' you sleep, white boy, and you suah sleep soun'.

SKELLY. How long you been here?

MOSE. 'Bout a minute.

SKELLY. Where's the others?

MOSE. Ain't no others, white boy.

SKELLY. God, I'm all in. You could 'a' rolled me for my change, couldn't you?

MOSE. Not me, brodah. I don't roll no one. Dough's hard enough to git when you's all in, down and out. Ah knows.

SKELLY. Which way, 'Bo?

MOSE. Ah's going no'th, jus' as fah no'th as ah can git. Ah've on'y been outa jail seb'n months down south. Ah do fifteen year, ever since I was twenty-three year old. Ah pick 'nough cotton and build 'nough road and haul 'nough cane to plug up the Red Ribber of the South.

SKELLY. What'd they stick you in jail for?

MOSE. Ah didn't do nuffin. Another nigger cuts me wit' a razor an' Ah cuts him back and they soaks me five yeah. Th' other nigger don' even die.

SKELLY. If he'd died it'd been worse.

MOSE. Couldn't have been worse. Ah might just as well died mahsel'. Might just as well died. Ah serbes my time and about the last six months they hires me out to some big rich guy down theah. He kep' me owning him so much I work ten years for nuffen. Every time Ah git a paih overalls he charges me some moah and when Ah ask him when Ah git free he say he lynch me Ah talk 'bout that. Ah floats down the ribber on a log and Ah walks off to Kaintucky, and Ah been goin' no'th ever since.

SKELLY. Well, you're safe now, nigger.

MOSE. Ah knows better, white boy. Ah ain't safe till Ah gits to Canada. Ah knows my ol' boss. He kills a nigger laike he would a skunk. Ah knows. Ah seen him do it. Nigger done bother him one time, and he shoot him, and he say, "Take dat nigger away dere," and Ah does.

SKELLY. What'd you do with him?

MOSE. Ah buried him. He was good 'nough nigger, too.

SKELLY. You sure had a devil of a time.

MOSE. Ah suah has.

SKELLY. Say, listen; there's a bad guy in town. You look out for him.

MOSE. Who is he?

SKELLY. It's the Snake—that's who it is. Arkansas Snake.

MOSE. You say he's a bad guy, white boy?

SKELLY. By God, he's the original bad guy.

MOSE. Ah ain't scared of no trash like dat, not me. Ah'm scared of my old boss, but Ah ain't scared of no bad guys becaise Ah's a good fast runner. White man chase me once an Ah run so fast he burn his feet in mah tracks.

SKELLY. Yeah, well you better keep your mouth shut, see, if he mosies in. I saw him on the street, and it was the Snake all right, and he's a bad guy.

MOSE. Ah ain't scared of no bad guys.

SKELLY. God, there's something the matter with me. I got a thirst.

MOSE. Wha' kin' of a thirst, white boy?

SKELLY. Just a water thirst.

MOSE. That's easy.

SKELLY. I been wanting a drink all afternoon and I'm too tired to go get one.

MOSE. Suah; you lie still. Ah'll fetch you a drink o' water.

SKELLY [*starting up*]. No, I want more water'n a drink. I'm going to ship a cargo of water. Nigger, when I get through with that river, they're going to have to change the map.

MOSE. You better not drink too much out o' dat pore little river, white boy, or you're goin' to drink it dry.

[*Mose and Skelly go out left. Little Red comes in from the right, looks round a moment casually, then lifts a hand and Edna enters after him, dressed as a man. She is well disguised and would not be readily detected unless by her voice.*]

RED. We're all right, kid. I'll start making a fire and you just lie around and don't say anything. If anybody comes along start smoking cigarettes so you won't have to talk. Let me do the talking. [*Red collects kindling and Edna stretches out to watch him light the fire.*] There's only one freight out of here tonight and that's a string of empties going west. Doesn't stop this side of Wolf Point.

EDNA. Sure of that?

RED. I know this country like a book. Every time I get stranded in Williston I catch the eight o'clock on the grade.

EDNA. Listen, Red, my cigarettes aren't the right kind.

RED. What've you got?

EDNA. Fatimas.

RED. My God, you can't do anything like that here. Take my Bull and papers and give me the tailors. Can you roll 'em?

EDNA. Kind of.

[*They exchange cigarettes.*]

RED. Hope to God there's nobody in town. If we get inside one of them empties we're set for life.

EDNA. You know, Red, I'm scared, scared as hell. I'm trembling so I can't—look at that hand. Ain't it funny? [*She holds up a hand with a cigarette paper in it.*]

RED. Don't get that way now, Kid, or you'll queer yourself.

EDNA. All right.

[*Silence.*]

RED. You did it right?

EDNA. Yep.

RED. He's dead?

EDNA. I'll say he's dead.

RED. Well, by God, I'm glad of it.

EDNA. I don't know. [*She shivers; Looks off left.*] What's that?

RED. [*looking out left*]. Somebody in the brush. 'Boes, I guess.

EDNA. Yeah?

RED. Don't move. Not yet. Wait till I tell you.... You better roll that cig.

EDNA. All right.

RED. You just wave a hand—so—see? Let me talk. I'll talk the arms off 'em.

[*Red pulls a package of food from his pocket, and begins sharpening a stick to roast weenies. Bill and Rubin come in from the left, carrying wood for the fire.*]

RUBIN. Hullo.

RED. How's yourself?

BILL. Hot dog.

RED. You said it.

RUBIN. Looks like Coney Island to me.

RED. What you got?

BILL. Coffee and— [*He brings a can of water to the fire and pours coffee into it.*]

RED. Everybody flush? How about mulligan?

RUBIN. Ain't enough time. Train pulls out at eight.

[*Skelly and Mose come in from left.*]

RED. You guys figure on dressing for dinner?

SKELLY. Now ain't that hell? I might 'a' known it was formal. Say, you can tell winter's comin' on, the way that water feels. [*Wiping hands and face from drinking.*]

RUBIN. She's going to be a tough night, mate. I'm going to beat it south as soon as I can make connections.

BILL. I met Frisco in Cincy the other day and he tells me they're hostile down south. Pinchin' every tramp that blows in.

RUBIN. It ain't bad in N'Orleans. A guy can always get by there.

SKELLY. Well, this God-forsaken jungle is only good for Eskimos. [*He takes a package from his pocket.*]

RED. You must have a chill, brother. What do you mean, cold in September? It goes down to fifty below here.

RUBIN. About that time Florida's a good place. Me and the rest of the government officials, we always spends them fifty-below nights in Florida. Hell, we don't hardly come north to run for office any more.

SKELLY. The only winter home I got is the hoosegow, and it'll be a cold day before I tries that again. I'd rather be outside lookin' in. You ever do time?

BILL [*making coffee*]. Time? Time is what I ain't never done nothin' but. I can do any amount of time. Once there was a judge gimme a life sentence. And I says to him, "Judge," I says, "give me a chance. Make it a hundred years."

SKELLY [*laying out lunches*]. Yeah, and then what?

BILL. Hey, you, that's the end of the story.

[*Mose, who has been lingering on the outskirts, takes a package from his pocket and tosses it to Skelly.*]

MOSE. Put that in with the rest, boy.

RED. Hey, go on, keep it. Keep it and eat it, old man. I guess maybe we can find a dog for you here.

[*Skelly tosses the package back to Mose.*]

MOSE. Mighty kind of you, boss. I suah am hungry for one of them.

SKELLY. You better save a couple for the Snake, just in case he didn't have any luck.

RED. Who?

SKELLY. Arkansas Snake.

RUBIN [*pausing in the act of taking a bite*]. Snake in town?

SKELLY. I saw him this afternoon.

BILL. Is he turning a trick here?

SKELLY. I guess he's just bummin'.

RUBIN. He's all right if he's sober.

SKELLY. Well, I never saw him sober then. First time I ever met him was in Pittsy. We got drunk together and that dynamite we was drinkin' could make a humming bird fly slow. Next morning I was pretty wobbly, and when we went down to the yards to hit the stem he decided he didn't want me round, so he lays me out and rifles my change drawers. Left me lying right between the tracks and all the time she was raining cats with blue feathers and green tails and when I come to I was wetter'n the Monongahela River. Well, sir, I lays still and the trains rolls all around me. If I'd a stretched out my hands they'd a been on the rails—then I'd a been a bum without grub-hooks. Naw! He didn't make a very good impression on me!

RUBIN. Certainly is a dirty guy.

SKELLY. I'll tell the cock-eyed world he's dirty.

BILL. What y' going to say to him if he shows up here?

SKELLY. You talk to him, will you? I'm gonta be in conference.

MOSE. Boys, they's a whole army comin' down the creek.

[*A pause. Baldy, who has a livid scar across his face and Hopper, who walks with a crutch, come in from the right, followed at a little distance by the Snake, an evil-looking yegg, better dressed than the others. He sits down at the right without speaking.*]

BALDY. By Judas Priest, everybody in the world is here. What is this, the Democratic National Convention?

BILL. Naw—this is the United Clam-bakers' Union of Albuquerque, New Mexico.

RUBIN. This is the Amalgamated Chamber of Commerce of Beautiful Ossining on the Hudson.

BALDY. Say, cookie, is there any hot dogs for me, or is there gonta be a hot-dog scandal in this administration?

RED. There's gonta be a hot-dog scandal if I don't get any, because I bought 'em.

BALDY. Bought 'em like hell.

RED. Yes, sir, bought 'em with money. And what's more I wasn't expecting any young mass meeting of the international intelligentsia of the world when I laid in supplies. Didn't you guys have any luck at all?

BALDY. Hell, no. Every back door I batters the woman says she's fed seven already. The last one says, "My God, it's another bum! I'll put you on the bum!" and she sets two dogs on me.

RED. All right, you, come and get it.

[The newcomers, all save the Snake, share in the food.]

BALDY. Wait a minute, Hopper, give the Snake a chance. *[He pours coffee for the Snake.]*

BILL. By God, it's the Snake; how are you, Arkansas?

[The Snake looks at Bill, looks away, spits deliberately. A gloom falls over the session.]

RUBIN *[to Bill]*. You must know him well. Next time you better set that to a tune and sing it. Maybe he'll hear it.

BILL. I don't give a damn.

[Baldy carries a cup and a sandwich to the Snake, who accepts them without thanks.]

RUBIN *[to Baldy, as he returns]*. Which way, 'Bo?

BALDY. Judith Basin. Goin' to try the apples this year.

RUBIN *[to Hopper]*. Apples for you, huh?

HOPPER. I don't know where th' hell I'm going. Great Falls, Havre, any place.

RED. So? Try Belfast.

HOPPER. Yeah, I tried Belfast.

RUBIN. Everybody going out on the eight o'clock?

BALDY. Sure.

BILL. She'll have to carry extra sleepers if this bunch climbs on.

RUBIN. Cold Jesus! Here's another one.

[*A pause. Oklahoma enters from the right.*]

OKLAHOMA. Evening, travellers; how's the eating?

BILL. Good, what there is of it—

RUBIN. And plenty of it, *such* as it is.

RED. Not much left, pardner.

OKLAHOMA. Fine—I don't need any. I don't need anything but a lift out of this little half-acre of hell. Anything running out of this place tonight, or do you die here waiting for a train?

RUBIN. There's about a hundred west-bound empties going by in about fifteen minutes.

OKLAHOMA. Well, then, that's one soul saved, because if I'd had to stay here all night, I was going to hunt up a half-a-bucket of water along the coulee somewheres to drown myself in. This ain't a town. It's a man-trap.

RED. You better have a bite, friend. It's a long way to Wolf Point.

OKLAHOMA [*taking a proffered sandwich*]. Thanks. Yes, sir, I've rode on every railroad from the Florida Belt Line to Salt Ste. Marie, and I'll be god-damned if I ever saw a country where the towns was so far between and few in a hill. And as for turning a trick, my God, they couldn't scrape up enough change between Minneapolis and Idaho to start a chain grocery store. No wonder there ain't any yeggs in North Dakota. You'd have to walk a thousand miles to find a safe big enough so you'd have the heart to blow it. What y'all doing here anyway?

RUBIN. Hell, we came out for the harvest and there ain't any harvest.

BALDY. Apples is good in the Judith Basin.

OKLAHOMA. Oh they are, are they? Well, roses is good in May, too, but work ain't my middle name. Let the married men do the work. That's my motto. I'm through.

MOSE. Me too.

OKLAHOMA [*gently*]. Hullo, who said anything to you, nigger? Did you hear me speaking to you?

MOSE. Tha's all right, boss. You go ahead and talk. Ah'm with you!

OKLAHOMA. Yeah, well did anybody ask you to come along?

MOSE. Nemind me, boss. Ah'm a good nigger.

OKLAHOMA [*suddenly menacing*]. Then keep your face shut, will you? [*Mose starts to speak. Oklahoma raises a hand. Mose cringes good-naturedly and is silent.*] Now after this you listen, see?

MOSE. Ah heahs you.

OKLAHOMA [*conversationally*]. God, this certainly is a collection of funny faces. I ain't seen nothing like this since I left the home for decayed newspaper men back in City Hall Park. If this is what they call the floating population, it's a God's wonder the country ain't drowned. All desperate men, too, ain't you? All looking for work. Yes, sir; well, judging by what's left of your shoes I guess maybe you are. A man's got to have some ambition, and if he can't think of anything he'd like better'n work, why he might as well work. Harvestin', apple-picking, milking cows, that's the stuff! Keep the country going! Put your backs into it! Now, boys, all together, swing them picks, lift them shovels, tote them hods! Yes, sir, here's a little earnest band of working Gideons hitting the long road from heaven to hell and asking nothing better'n three meals a day and a job at something they won't get nothing out of; here's the goddam scions of the first families of West Hoboken and South San Francisco, descended from seven generations of bastards on the mother's side and tracing their male ancestry in a straight line to more drunken sailors and ministers' sons than you could count on an adding machine. Here's a little goose-stepping gang of scared pirates that's been kicked all over the United States without ever kicking back. Here's a little Kiwanis Club of patriotic outcasts, voting a resolution to uphold the social order. Sic 'em, Tige, they like it. Oh, sweet Christ!

Come to Jesus and join the working class. Workers of the World, unite!
You have nothing to lose but your annual trip to Florida.

BALDY. You a wobbly, friend?

OKLAHOMA. Me a wobbly? Is that all you got out of it? Ask me something easy. Ask me if I'm a Y. M. C. A. extension lecturer or a Pavlowa finale hopper or the deputy inspector of the American Society for the care and prevention o' children.

BILL [*low*]. Who's the guy, anyway?

OKLAHOMA. And I don't want anybody askin' who's th' guy behind my back, you get that? When I want you to know who I am I'll tell you.

SNAKE. Listen, 'Bo, what th' hell do you think you are? You better go get you a Sunday School class.

OKLAHOMA. Listen to me, 'Bo. You speak to me like that once more and I'm going to deposit a swift kick right where you part your pants. The last guy that talked up to me was carried into the corner drug store for first aid and his face won't ever be the same.

[*Snake rises.*]

BALDY [*to Oklahoma*]. You better draw it mild, friend. You're talking to the Arkansas Snake.

OKLAHOMA. So, it's the Arkansas Snake, is it? Sorry I left my card case home, I'm sure. This is an unexpected pleasure. As for me, I'm Oklahoma Red, and when I speak somebody jumps.

[*Snake hesitates; there is a pause.*]

BALDY. Aw, that's different, that's different. Say, you two wild men ought to know each other. Boys, this is some little flush excursion from now on. I guess nobody can say this gang ain't good company with a couple of steppers like the Arkansas Snake and Oklahoma Red.

OKLAHOMA. Stow it, stow it.

BALDY. Come on, now. [*He raises his cup.*] Drink to friendship! Here's friendship, one and all. [*Several cups and cans are raised, but the Snake and Oklahoma do not move.*] Come on, set down and be

sociable. You two yeggars don't have to fight just because you're both he-cats. The train'll be along in five minutes anyway. There ain't enough time for a good fight. Come on.

OKLAHOMA [*to Baldy*]. Turn off your gab. You talk like a Singer Sewing Machine agent. [*Baldy sits.*] I ain't specially needing to kill anybody. If the Snake here wants to set down, I will.

BALDY. Take it easy, Snake. Remember we're going somewhere.

SNAKE [*seating himself*]. That suits me.

OKLAHOMA. And what th' 'ell was all the row about anyway? [*He sits.*]

BILL [*rising*]. Well, gents, all, I guess I'll hit the grit.

RUBIN [*rising*]. Guess I'll beat it with you.

HOPPER. You making the train?

BILL. Sure.

HOPPER. Well, here's the place to get it.

BILL. We'll get it, don't you worry.

OKLAHOMA. Don't vamoose on my account, children. I ain't poured any juice since last Christmas. I slipped the dicks clean in Atlanta and they don't know my mug north of Iowa Falls.

RUBIN. Oh, that ain't it. We're—

OKLAHOMA. Sure it is. I know. That's straight, though. You can say your prayers and go to sleep easy. I ain't no bait for bulls around here.

BALDY. No, nor us either.

BILL. All right. [*He and Rubin sit.*]

OKLAHOMA. Anybody got a watch?

RUBIN. She'll whistle in plenty of time.

OKLAHOMA. Somebody give us a little tune, then. This jungle's as dead as Sunday afternoon in a reformatory. Hey, you, Angel-face, can you sing?

[*Edna shakes her head.*]

BALDY. Who you travellin' with, kid? [*Edna waves hand.*] Huh?

EDNA. Little Red here.

RED. He's all right. Let him alone.

BALDY. Sure he's all right.

RED. We're heading for Frisco for the winter. Met up in Duluth.

BALDY. You two ain't been on the road long, kid. It takes a lot of guts for green kids to beat through this country.

RED. Shucks. You got to start sometime.

OKLAHOMA. How old are you, kid?

RED. Me? Twenty.

OKLAHOMA. Naw, Angel-face.

EDNA. Fifteen.

SKELLY. That's all right, young fellow, you'll get whiskers yet.

RUBIN. Some guys don't shave till they're damn near of age.

[*Snake rises and comes round the fire to a point where he can see Edna.*]

BILL. Hell, I was all blossomed out at fourteen.

BALDY. Yeah, I'll bet you was a beauty. And how old is the little one now?

BILL. Any time you want to know, you try looking at my teeth.

SNAKE [*to Edna*]. Hullo, baby!

RED. What's eatin' you?

SNAKE. Hullo, baby! Has it lost its daddy? How's the little hoochi-hoochie, huh?

RED. Say, what's eatin' you, huh?

SNAKE. Go on! I guess I know a girl when I see one, whether she's got clothes on or not. Hullo, puss-in-boots!

RED. Girl hell!

SNAKE. Go on! Nice little travelling companion you got, Red. This is sure one grand camp. All the conveniences—including lady friends. Come on, kid, warm up.

[At a sign from Red, Edna leaps to her feet. Red and Edna attempt to escape, but both are quickly pinioned from behind.]

BALDY *[holding Red]*. Keep your shirt on, boy.

SNAKE. Well, what do you say, what do you say?

EDNA. Well, what of it?

SNAKE. You certainly are one little lotus-flower, kiddie. I'll bet you can love like hell.

[All the men have half-risen, watching Edna.]

EDNA. Maybe I can.

SNAKE. We'll show 'em, hey, kiddie? We'll show 'em!

EDNA. No, we won't show 'em.

SNAKE. Oh, won't we though?

EDNA. No we won't. When I get through talking to you, dearie, you're going to depart like there was a can tied to you. You can let go of me. I won't run out on you. *[Her arms are freed.]* I'll tell you why I'm going out on the freight. I'm travelling in pants because Red here went down to the station to buy a couple of tickets for No. 4 and ran across three deputies in the woman's waiting-room. And they was waiting for me.

BALDY. Hell, we better beat it, Snake.

EDNA. Yeah, I thought so. And anybody else that wants to go had better get out now.

[Baldy and Snake start to go out right, followed by Hopper].

OKLAHOMA. What'd you do, kid?

EDNA. All right, I'll tell you what I did—and then see how many of you stick around. *[Baldy, Snake and Hopper pause to listen.]* Back of Williston, over there, there's a farmhouse with a cottonwood windbreak in the front yard. Maybe you saw it. It's near the railroad bridge. That's

where I was born. And if you want to take a run back there and look you'll find a dead man sitting in the dining room in the dark because there's nobody to light a lamp for him. Sure, I'll tell you how it was. You see, my mother died, that's the beginning of it, and then I didn't know any better, so I went wrong. I went wrong with my own step-father. You don't need to believe it if you don't want to, but that's straight.

OKLAHOMA. Hell.

EDNA. Yes, it was hell, but I didn't know it at the time. Then I found out a few things and ran away from home and the first thing I knew I was in a sporting house in East Grand Forks. I hadn't been there long when I had to go to a hospital, and when I told the matron who got me into trouble she says, "My God, why didn't you shoot him?" And I said, I guess I will. So I met up with Red and we got here this morning and I went out to the cemetery all alone and knelt down beside my mother's grave and told her what I was going to do. I said, "Mother; I hope you can see me. I'm going to kill your man." Well, he's dead, and we're getting out of here together, and we're going so far it'll take a dollar to send us a postcard. And then we're going straight, both of us. Now, is anybody anxious to follow my trail?

OKLAHOMA. Don't you worry, girlie. You're all right. If anybody starts putting bracelets on you, there's going to be trouble ahead of 'em enough to wreck the express. I'm for you.

SNAKE [*returning*]. Not so fast, old bleeding-heart. You ain't the only passenger on the Great Northern. Now I've got reasons for going out on the train tonight, and it just happens I don't want to be travelling with candidates for the death-house. Damn sorry to inconvenience you, I'm sure, but Red and his Angel-face'll have to wait over for the next train.

OKLAHOMA. You wait over and see how you like it. The girl's coming along.

SNAKE. I say Angel-face takes the next train.

OKLAHOMA. Oh, that's orders, is it? [*He leaps up suddenly. Snake puts a hand in his coat pocket.*] Take your hand off that gat, Snake. Boys, you see that? [*Bill and Rubin edge up behind the Snake who withdraws his*

hand.] Now we know where you got it, see? And listen; you ain't safe with a gat. I don't feel comfortable travelling with you while you nurse that little blue-iron. If you want to ride with us, you trun it away, see?

SNAKE. Like hell I will.

OKLAHOMA. I'll give you one-half a split second to cough it up.

SNAKE. Come on, take it away, why don't you?

[Bill and Rubin leap at Snake at the same instant, twisting his arms behind him. Oklahoma lifts the Snake's gun and searches him for other weapons but finds none.]

OKLAHOMA. Remember, this is redeemable at the end of the line. If you ever need it, ask for it at the lost article window when you get to Spokane. Maybe they'll tell your fortune for you.

SNAKE *[to Bill]*. I'll put somebody on the blink for this.

BILL. Aw, don't be so personal.

[A stranger strolls in casually from the left. In the growing darkness he looks much like a hobo.]

STRANGER. Well, boys, how's everything.

OKLAHOMA. Fine, just fine. How's yourself?

STRANGER. Never better, thanks.

OKLAHOMA. Glad to hear it.

STRANGER. You fellows staging Union services tonight?

BALDY. That's good, Union services. Looks that way, don't it?

STRANGER. Well, that's all right. I don't mind. Going to sleep here?

BALDY. Oh, no. We wouldn't want to intrude, you know. We're getting out.

STRANGER. Don't like our town, huh?

BALDY. Sure we like it. Sure.

STRANGER. Well, it's all right. Stick around. I don't mind. You guys have got to sleep somewhere.

BALDY. That's right, too. Yes, sir. We got to sleep somewhere.

STRANGER. Sure. Bunk down. Well, so long.

BALDY. So long.

[The stranger goes out left.]

HOPPER. Geez, he's friendly.

BALDY. Ah, you think so. He's looking for somebody. Like hell I'll stick around here. He's too affectionate.

BILL. Come on, 'Boes, throw your feet.

[There is a general wove to the right. A second Stranger enters from left, followed by a third.]

BALDY *[low to Snake]*. We better make a break for it.

SNAKE. Naw, see what he wants first.

SECOND STRANGER. Well, boys, how's tricks?

[A pause.]

OKLAHOMA. Howdy, howdy.

SECOND STRANGER. Going anywhere?

OKLAHOMA. All depends, all depends.

SECOND STRANGER. Pretty cold sleeping outdoors, ain't it?

OKLAHOMA. You mentioned it that time.

BALDY. Keeps down the mosquitoes, though.

SECOND STRANGER. Who all's in your gang, anyway?

OKLAHOMA. This ain't no gang. We just happened along.

SECOND STRANGER. I see. Just happened along, huh?

OKLAHOMA. You got it.

SECOND STRANGER. Well, that's the way with me, see. I just happened along.

BALDY. You bumming to somewhere?

SECOND STRANGER. Well, all depends, see, all depends. I'll try anything once.

[*A pause.*]

HOPPER. That's what my old side-kick used to say. I'll try anything once, he said, except the Soo. I don't know why the Soo runs trains, he said, only mebbe they want to keep up the franchise. Got killed by a Soo train, too. Got run over at Bowbells crossing. He called me over to him where they had him layed on a stretcher. He said, this is going to be a lesson to me, me talking about the Soo. I won't do that no more.

SECOND STRANGER. I'll tell you, boys, we're kinda looking round for a little red-headed guy that's got a girl with him. Seen anybody like that round here this evening?

OKLAHOMA [*running his fingers through his hair*]. You don't mean me, do you?

SECOND STRANGER. No, you don't fit it. He's a little guy; a little, fighting mick.

OKLAHOMA. No, guess we ain't seen him.

SECOND STRANGER. Hasn't been a girl along the track anywhere, has there?

OKLAHOMA. A skirt—not much. No sir, we ain't seen no skirt here.

FIRST STRANGER [*who has backed out to one side*]. There she is, chief. We've got her. Up with your hands! You're pinched! [*He covers Edna with a revolver.*] Up with your hands!

OKLAHOMA. Bunk down, eh? [*Knocks out the chief.*]

FIRST STRANGER [*rushing toward Oklahoma*]. Up with your hands!

OKLAHOMA. We'll bunk you down, you double-crossers! [*Knocks him out while Bill takes care of third Stranger.*] So you like the nickel-plate, do you? Well you can wear it yourself!

[*Quickly handcuffs them together. Gang laughs. Train whistles in distance.*]

BILL. There's the rattler! Beat it!

[They rush out to right, Oklahoma last with sandwich. First Stranger has come to, and is flashing light on Chief.]

CHIEF. Who the hell are you? *[As Chief rises—*

CURTAIN



ACT II

cene: The interior of a moving box-car. A low monotonous clanking of iron on iron is heard as the long train pulls heavily up a grade west of Williston. In the distance an ungreased wheel screams, faintly heard. The sliding door is half open and reveals a slowly moving blackness outside. A small keg in corner at extreme left, an empty box near it.

t Rise: Blind Sims, an old man with white hair and beard, sits motionless on a heap of burlap bags in a corner at the right. A brakeman's lantern burns beside him. Ukie, a cocky and dapper, though considerably bedraggled youth, stands at the door looking out. Is playing and singing "The Big Potato Mountains."

SIMS. Where are we, Ukie?

UKIE. I don't know. Pulling out of some little burg.

SIMS. We're going slow.

UKIE. Crawling up a grade.

[A pause.]

SIMS. You better shut that door.

UKIE. Naw, there's nobody round. Black as the lid of hell.

SIMS. Coming up a storm.

UKIE. Yeah.... Makes me feel good, you know?

SIMS. You're lucky.

UKIE. You know, every time there's a storm coming on I'm so damn happy I want to sing like a damn little dickey bird. Something about the air, when it's just going to rain. It sure gets me going.

SIMS. You're lucky. Makes me want to crawl in a hole and die.

[Pause.]

UKIE. Why don't you?

SIMS. Where'd you be, huh, without me to hold your damn tin cup? You could play your damn cigarbox till the old grey goose died under the woodshed and you wouldn't get ten cents out of all the fancy women in Minneapolis and St. Paul.

UKIE. I don't need to play on no corners, see? I don't know what the hell I ever started doing it for.

SIMS. You was broke, that's why. And you haven't been broke since. What d'you figure on doing?

UKIE. I'm going back on the stage.

SIMS. You? *Back* on the stage. Get the hook.

UKIE. Yeah! Back on the stage.

SIMS. I'll bet you was pretty good. I'll bet strong men wept and women fainted when you showed up in the spot.

UKIE. You know, I wasn't so bad.

SIMS. No?

UKIE. I was pretty good.

SIMS. Stick around, kid. We're getting along fine, and I won't live forever.

UKIE. How old are you, uncle—on the level?

SIMS. I don't know. Hellish old. And blind, kid, that's something.

UKIE. I don't know whether you're blind or not, but you certainly can't count money.

SIMS. I tell you I split it even, Ukie.

UKIE. You split like curly maple, you do.

SIMS. You want to search me?

[Ukie looks at him and holds his nose.]

UKIE. No, thanks. *[A pause. Then Hopper's crutch lifts above the doorsill and comes hurtling in past Ukie. It is almost instantly followed by Hopper himself, who rolls over twice and then gets nimbly out of the*

way of Edna and Little Red, who enter similarly. A trap door opens in the roof and Bill drops through, followed by Rubin.] Any more? Yeah?

HOPPER. Where'd you get the lantern?

UKIE. Hey, you, don't you know this is a private car?

SIMS. What's the matter? Hey, Ukie, you there?

UKIE. Yeah, I'm here.

SIMS. Who is it?

UKIE. It's raining hoboes, that's what it is.

RED [*dusting himself off*]. Say, don't you ever sweep this joint?

UKIE. If you don't like the service you can always get off. Anyway, look at all the dirt you brung in with you.

BILL. Me? Don't talk that way about me, Paderewski, or I'll mop up the whole damn palace with you. You'd make a damn good feather duster, you would.

[Skelly flicks in through the door, followed by Mose. Skelly staggers a bit, puts his hand to his brow and lies down near centre.]

RED. What's wrong, friend?

SKELLY. Ah, just sick.

[The Snake rolls in by the door just as Oklahoma drops from the trap. Mose sits near Skelly.]

SIMS. My God, ain't it over yet?

UKIE. They're coming down thick as angleworms.

SIMS. Ukie!

UKIE. Yeah?

SIMS. Come here.

[Ukie crosses to Sims.]

UKIE. What d'you want?

SIMS. Sit down.

UKIE. Ah, they're all right.

OKLAHOMA. Shut that door.

[Hopper slides the door shut. Rubin shuts trap.]

MOSE *[to Skelly]*. You all in, boy?

SKELLY. Put your hand on here.

MOSE *[his hand on Skelly's forehead]*. You is surely hot.

SKELLY. Yeah, I thought so.

[Edna sits near Sims. Red goes to her.]

RED. You hurt your shoulder?

EDNA. Did I? I lit like a ton of brick.

SIMS *[quickly]*. Was that a girl? Ukie! There's a girl here.

UKIE. Don't ask me.

SIMS *[looking around vacantly]*. No, it couldn't be a girl.

EDNA. You looking for a girl, grandpap?

SIMS. Sounds like a pretty girl. Ukie, is she pretty?

UKIE. I got to hand it to her, uncle. She's a queen.

[A pause.]

SIMS. Listen, would you mind—letting me touch your hand?

EDNA *[edging away]*. What for? I ain't any sideshow, you know.

SIMS. Aw, never mind.

EDNA. Oh, all right. *[Giving Sims her hand.]* What do you think of it?

SIMS. Yeah, it's a girl's hand. I ain't held a girl's hand since—probably before you was born.

EDNA. Well, have they changed much?

SIMS. No—no. They're just the same.

BALDY. Keep away from her, uncle.

SIMS. Yeah?

BALDY. Yeah; that's a bad hand to hold.

SIMS. Yeah?

BALDY. That little mascot is just two jumps ahead of the bulls.

[Sims releases her. She moves away with some relief.]

OKLAHOMA *[who has been exploring the far end of the car]*. Say, what's in the keg?

[Snake is sitting aloof and silent.]

UKIE. I don't know. I couldn't open it.

OKLAHOMA. Well, we're going to find out.

[He extracts a short lever from an inner pocket and attacks the keg with it. Bill and Rubin gather around to watch. Skelly sits suddenly bolt upright and looks fixedly at blank space.]

MOSE. Now, white boy, you all right. You lie down and sleep.

SKELLY *[resuming his normal expression]*. Any water here?

MOSE. Ah's afraid they ain't any water.

SKELLY. It's malaria, that's what it is. *[He lies down.]* I had it before. Got it in the Argentine.

MOSE. Yeah?

SKELLY. Say, listen, if I get wild, you hold me down, will yuh?

MOSE. Suah. You'll be fine.

SKELLY. All I'm going to need is one big black nigger sitting on the safety-valve.

MOSE. All right, boy; ah's it.

BILL *[to Oklahoma]*. There. You got it. Pry under.

[Baldy and Hopper drift over toward the keg. There is a ripping sound as Oklahoma pries the cover loose.]

BALDY. Keg of nails, huh?

OKLAHOMA. God, it's harder'n nails if I'm any judge.

RUBIN. Don't drink it, old yegger; it's probably two-thirds wood alcohol and the rest fusel oil.

OKLAHOMA. Well, what d'you expect in a God-fearing nation like this? Who's got a cup?

BILL. Who's got a cup? Hey, little song-and-dance, has your partner got a cup?

UKIE [*tossing Sim's cup to Bill*]. Don't lose it. We need it in the business.

[*Several folding cups appear among the hoboes.*]

OKLAHOMA. There's plenty of cups.

BALDY. Drink easy if you don't want to die.

OKLAHOMA [*dipping into the keg*]. If I don't die, then it's good, see? [*He smells the liquor.*] Got a bouquet like a Ford radiator. [*He gulps it.*] Boys, it's a gold mine. Sweet as a baby's breath. [*He drinks again. The others dip in.*]

BALDY. Here's happy days!

BILL. Here's to the unfortunate guy 'at owns it.

RUBIN. Here's to the damn fool that didn't know any more'n to leave it here.

HOPPER. Here's to my wife and me a long ways from home.

BILL. Here's to me old mother.

RUBIN. Hey, cut that out!

BILL. Cut what out?

RUBIN. Drinkin' to your mother.

BILL. Why not?

RUBIN. It ain't respectful.

BILL. Hell, have I got to be respectful to my own mother?

RUBIN. If you gotta drink to a girl, drink to Red's sweetie.

BILL. All right, Red's sweetie. Come on, everybody, here's Red's sweetie.
[*They all drink.*]

OKLAHOMA. You better get in on this, Mick.

RED. There's gotta be somebody left to bury the dead.

HOPPER. Them that dies easy can bury themselves.

BALDY. Let the company do the buryin'. Fifty dollars for a black hearse.
Twenty-five for a rubber-tired cab. Two dollars for a mourner.

[*Snake and Ukie approach the keg.*]

OKLAHOMA. Mick, come on in, and bring your lady friend.

RED. Drink it up. We ain't thirsty.

OKLAHOMA. Come on, come on. No kiddin'.

BILL. Have one, Mick, have one! Have one, girlie!

RED. Say, if I want a drink I'm able to reach for it.

BILL. Well, by God!

BALDY. Say, you give me a pain.

RED. I can drink—but I ain't drinking—understand?

BILL. He's saving himself.

BALDY. Yeah, that's it. Got a wild night ahead.

OKLAHOMA [*carrying his cup to Red and Edna*]. Will you drink, or not?

RED. No.

EDNA. No, thanks.

OKLAHOMA [*thrusting his cup on Edna*]. Don't be so damn particular, dearie. You're going to spoil your rep.

RED [*rising*]. Move the hell out! You hear? Haul your freight!

OKLAHOMA. Well, I'm a son-of-a—pardon me, pardon me, I'm sure. [*He smiles nastily.*] Let him alone, boys. Let him queer himself. He signed the pledge, see? He belongs to the Christian Endeavor. Only, listen, Mick, you're too virtuous to be running with a pretty. She'll corrupt

you. Girls is a corrupting influence on young men. Now, you better turn her over to me, because she'll be safe with me and she won't do any harm to my morals. My morals is shot, see? [*He bows.*] Sweetheart, I claim the next dance.

EDNA. My card's full, Oklahoma.

OKLAHOMA [*turning*]. Well, I ain't. My God, is the whole world going virtuous, women included? Give me another drink.

SNAKE [*to Bill*]. Lend me the scoop, will you?

BILL. I will not.

SNAKE [*snatching Rubin's cup*]. Say, you think this is your birthday? [*He drinks.*]

UKIE. Lend me a loan of my dipper.

[*Bill gives his cup to Ukie.*]

OKLAHOMA. Keep your front feet out of the poison, some of you, and give Ukie a chance.

SKELLY [*sitting up and looking wildly at Mose*]. Get away from me. Get away from me.

MOSE. Now—you ain't gonna fight yo' ol' nurse, is you?

SKELLY [*in horror*]. I said it. Get away from me.

MOSE. Suah. Ah's goan away. Only remember, you told me to sit on you. You getting pretty wild.

SKELLY [*screaming*]. Quit crawling that way! Quit crawling! [*He tries to rise. Mose holds him.*] Lay off me you hear? Lay off me! [*He leaps to his feet, throwing Mose across the car.*] I'll fix you, black man! I'll fix you.

[*He draws a knife.*]

EDNA. Red! Quick!

[*Red runs to help Mose.*]

OKLAHOMA [*dashing toward Skelly*]. Look out, Red!

[Skelly wrestles with Red and Oklahoma, who has caught his right arm. Mose shrinks away. Bill and Rubin rush to help subdue Skelly. The knife drops from his hand. He is forced down to his former place.]

SKELLY *[as Red and Oklahoma sit on him]*. You can't kill 'em. You can't even cook 'em. *[His voice drops to a moan]*. He's a sloth—a giant sloth. When you boil 'em they turn to rubber. They drop out of the trees—see that? They drop out of the trees. Yeah—they live forever, they live forever. *[He suddenly drops asleep. Red and Oklahoma get up, watching him.]*

OKLAHOMA. The poor nut's asleep.

[Mose picks up the knife.]

RED. Lend me the knife, will you?

MOSE. No, sir. That's his knife.

RED. I'll give it back.

MOSE. All right. Sure.

[He hands the knife to Red.]

OKLAHOMA. What do you want that for?

RED *[sitting down]*. That's all right. I want to fix my shoe, see?

SKELLY *[in his sleep]*. —drink o' water.

RED. He's asking for water.

OKLAHOMA. I guess he'll have to do without it.

RUBIN. All he needs is a good sleep. I used to get that way after I was in the Philippines. It ain't nothin' much.

[The group disposes itself about Skelly, watching him. Some of the men sit down.]

BALDY. You been in the Philippines?

RUBIN. Three years.

BALDY. That's where I got this. *[He points to the scar on his face.]*

BILL. Fighting for your country?

BALDY. Naw! Fighting for a gal.

BILL. What!

BALDY. They got gals in the Philippines worth fighting for.

RUBIN. What side was the gal fightin' on?

BALDY. Ah! you don't know what girls are in this country. They're all cornfed. This little girl I knew was part Bagobo, part Philippino, and the other half Chinese.

BILL. Jeez! That's a lovely breed.

BALDY. Well, she was a darb and I was nuts about her. She used to love me too. Boy, how that gal could love! Say, you know where the Diga river is?

RUBIN. Yep.

BALDY. Well, this was at a town called Vera. The country all around is danged good-looking. The women can ride horses like the men and you ought to seen that little black-headed girl of mine ride. She was rich, too, and I was sitting on top of the world with the money she give me.

BILL. Can you imagine that, now!

BALDY. Yah! You think because the girls don't fall for you, they don't fall for anybody.

OKLAHOMA. Hey! Cut it out, Bill. What become of the frail?

BALDY. You see, her old man was a Christian when he was young, but he went back to the Chink religion when he got rich. He suspicioned me, liking his girl, so one time he give a big dinner on New Year's Day. I got stewed on some green booze that 'ud tear the hide off a mule, so they called in an old Chink doctor and he explained a lot of junk to me and felt my pulse on the bridge of my nose. Then someone busted me on the head and a lot of drunken Chinks and half-breeds started fightin' with me. They got me in a corner and I had to fight like a Mick at Donnybrook. My little girl kept screaming and trying to get to me but a Chink pulled her back every time. Another Chink came running at me with a crooked knife and I picked up a chair and jabbed at him. He came tearing in anyway, and I uppercut him and stood him right on his

wig and he twirled around like a top. Some other Chinks got at me after I'd dropped a couple more, and then one laid my cheek open with some kind of a long knife. I was darn near all in myself, but my girl got away and run to me, then somebody grabbed her away and her old dad kept yelling not to kill me because it would get him into trouble. The old Chink doctor stopped the blood and I went to sleep like a baby. My three years was up in the army when I come out of the hospital and they shipped me back to Frisco. I never saw the little girl again. They shipped her away somewhere.... That's all. I want a drink. [*He goes to the keg.*]

RUBIN. Yeah, that's the Philippines all right.

OKLAHOMA. Anything ever happen to you?

RUBIN. Yeah—mebbe—I can't remember.

BILL. You born in this country, Oklahoma?

OKLAHOMA. Naw. Tipperary.

BILL. The hell you say!

OKLAHOMA. You never heard of it, huh? Well, it's on the map. My dad was a beggar, the dirty old devil. Most of them are, over there.

HOPPER. Yeah, in Tipperary, they are.

OKLAHOMA. Yeah, and in Belfast, too! He was the meanest old devil that ever went without a tail. I've seen him pull his hair out of his head in bunches. He used to play blind, and he'd take us kids with him, and he had a sign he tied on across our chests that said: "Motherless." We'd go along singing crazy songs about God and heaven. The old boy'd sing, too. That old devil had more stalls'n a livery stable. He could play paralyzed till the women'd cry over him.... My sister was a good kid. I remember when she went away with some fat old jane that was dressed up like a nigger wench on a circus day. After she left the old bum was drunk for a week. She was fourteen years old, and I was twelve. He sold her to that old cat. She cried and kissed me when she left, but the old man said how nice we'd both have it, and I could come and see her in her new home.

RUBIN. Where is she now?

OKLAHOMA. Croaked. I'd swing on five gallows to kill that old man. I'd hold him out and shake him to death like a rat—well, he's likely dead by now.

HOPPER. You know, I got it in for a guy that's prob'ly dead. I only wished he was alive so I could get my mits on him. I used to work for him on the farm when I was a kid and damn near froze to death because he was too stingy to buy me clothes. Him and his wife was praying Christians, too close to eat. They used to go to prayer meeting and leave Ivy and me alone together. We was only kids, but we both had the devil in us. While they was off singing Hosannas in the highest we crawled in bed together. She asked me not to tell, and I didn't, and she didn't either. She was a little beauty, too. Went to Sunday school every Sunday. Long black hair and little breasts as round as apples.... Hell, maybe I got even with the old man. I don't know....

OKLAHOMA. Hey, Red, where'd you come from? Spill it.

RED. I don't dast tell what I know. I don't want to shock anybody.

BILL. You must of been born somewhere? Where did you get your big start?

RED. All right, I'll tell one. Well, now, come to think of it, I was born in the Big Potato Mountains. My father was Jack the Giant Killer and my mother was the Sleeping Beauty. At the age of eighteen I went to work for the local storekeeper for a hundred bucks a year. I saved my money and in two years I was able to buy the Standard Oil Company and found the Carnegie Institute. It was me fought the Battle of Waterloo and blew up the Battleship Maine. Remember the Maine? Hell, I wouldn't lie to you boys.

HOPPER. Say, can the guff, will you?

BALDY. Prob'ly you're funny and then again prob'ly you ain't so damn funny.

BILL. What's the matter with you?

RED. You asked me to tell one, didn't you? Well I told one, see?

OKLAHOMA. You don't like biography?

RED. Sure! I always fall for that sob stuff, just the way the dames fell for Baldy out in Bagabo.

BALDY. You're witty, you are. You're witty! Yeah!

RED. Think so? I've always been that way.

EDNA. Red, don't!

OKLAHOMA. I guess that's about enough for you. You can get off right now.

RED. Off where?

OKLAHOMA. Off the train. I've seen guys get offen trains goin' faster than this here one.

EDNA. Oklahoma, you wouldn't put him off!

OKLAHOMA. Don't you worry, girlie. I'll take care of you. [*To Red.*] Why do you think I stuck up for the gal? Because I took to you so much? When I take chances, kid, I got reasons. When I'm with a gang it's my gang, and if there's a gal in the gang she's my gal. She don't need you no more.

BALDY. Yes, but make it legal, Oklahoma, make it legal! Gents, I move we sets up a Kangaroo Court right here and now, and tries this little Mick for being a lily-fingered gazabo, that's too good for the rest of us.

OKLAHOMA. Sure, that's right. We got plenty of time. Make it legal.

RED. Who says I'm too good for you? I'll mash the can off anybody that says I'm too good for him.

RUBIN. No, you don't; you got to stand trial for a speech like that one. You kidded the pants off us once too often; you talk like a choir boy.

BALDY. Come on, I'm the judge!

OKLAHOMA. Not by a jug-full. Nobody but your Uncle Ike is going to be judge. I know what's law in this country. What the hell do you know about a court? Nothing. All right, you can be prosecuting attorney. Hopper, you can defend him.

HOPPER. Aw, hell.

OKLAHOMA. That's all right. Somebody's got to defend him. Wait till I put on my wig. [*He ties a handkerchief into an imitation wig and sits on the keg, the box before him.*] The bailiffs will bring the prisoner before the bar.

[*Bill and Rubin escort Red to Oklahoma.*]

BILL. Oyez, oyez; the court is hereby declared setting!

RED. All right. Go easy, judge; it's a first offense.

OKLAHOMA. Shut up. [*He uses the revolver for a gavel.*] Order in the court. You think you're gonta get by easy because you know the judge? Gentlemen of the jury, knights of the road, hangers-on and passers-by, fourflushers in the poker pack, this here court is now formally open for the dispensation of private prejudice and other family grudges.

BILL. Hear ye, hear ye!

OKLAHOMA. Be it known by those present that this here court will dispense with justice for the present, like every other court in this land of the millionaire and home of the slave. This here court is a bar—wait a minute—that reminds me of something— [*He rises from the keg, takes off the lid and helps himself to a drink.*] this here court is a bar-room—I mean a bar— [*He sits on the keg again.*] for the subornation of evidence and the laying down of the law. Gentlemen may cry for justice, gentlemen may plead for justice, but I tell you that a court is a place where justice can be evaded by anybody that's able to afford it. The only question before the jury, Mr. Prosecuting Attorney is, who can afford it?

MOSE. Now you're talking!

OKLAHOMA. Order in the court. Further interruptions from the peanut gallery will result in the courtroom being cleared of all such—suches. [*He waves a hand majestically at Mose.*] Mr. Prosecuting Attorney, to say nothing of the defense, which ain't important, the law in this here case is the law of the road. I leave the procuring of necessary perjury to you, because it's your business. Prisoner at the bar, where was you born.

RED. Wyoming, damn your honor.

OKLAHOMA. Prosecuting Attorney, what's the charge against this here red-headed wolverine? Speak candidly, and remember the court has no mercy on poor men.

BALDY. The charge, your dishonor, is being a sissy and sleeping in beds and eating in restaurants. Moreover, this Mick, to my certain knowledge, takes wild women and makes 'em tame. He's got a Y. M. C. A. influence over skirts. To my certain knowledge he picks a sweet little chicken out of a sporting house and seduces her into marrying him. An' if the girls in the sporting houses gets married, I leaves it to your dishonor, what's us poor single men going to do?

OKLAHOMA. Boy, this is a grave charge. I don't know what you're going to do about this. You better throw yourself on the mercy of the magistrate. It appears by the evidence that you've been undermining the morals of the home and affronting American womanhood by assaulting the oldest profession in the world. How is the virginity of the growing girl to be protected when there ain't no sporting houses to stand as a bulwark of virtue? I hereby sentence you....

RED. Wait a minute, ain't there going to be any defense?

OKLAHOMA. Defense hell! What good's a defense when the court's made up its mind? On the other hand, speaking contrarywise, we might just as well have a defense. It looks more legal that way and it can't do any harm because the court won't allow itself to be affected. Hopper, come on and defend him and remember anything you say'll be used against you.

HOPPER. Can I have a drink?

OKLAHOMA. Try and get it. The court is now setting on the drinks.

HOPPER. Well, say judge, can't you set somewheres else?

OKLAHOMA. Ain't you got any more respect for the judiciary than that? Do you want this here court to hang by a strap? Anybody'd think you was the Transit Company. We will now proceed with the defense. Mr. Attorney for the Defense—shoot.

HOPPER. Well, judge, I'll tell you; I got some suspicions of the aforesaid prisoner myself. He don't look regular to me. But, hell, a lawyer'll say

anything, an' I'm agonta begin and presume he's no better'n the rest of us.

OKLAHOMA. That's right—make it legal. Be as crooked as you damn please, but be legal. That's the law.

HOPPER. Your Honor, this stiff's record's as clean as a nigger in a coal mine. He ain't honest. He ain't never done any work. He denies it verbatim. He makes tame girls wild. He drinks like a sewer and chaws tobacco like a walking beam. The nearest he ever came to being in a restaurant was buying a sandwich in a delicatessen. He ain't slept in a bed since he was weaned. He can curse like a taxi-driver and fight like a one-eyed mule.

OKLAHOMA. Looka here, Defense; you're trying to influence the court. You try that again and you'll be debarred and dismembered. This here court's made up its mind and it's incorruptible. [*Hopper scratches himself.*] Furthermore, quit scratchin' yourself in front of me. You make the court itchy. [*He scratches.*]

HOPPER. Aw, it's a lousy court anyway!

OKLAHOMA. Bailiff, this goddam attorney's scratching himself and it's rank disrespect of our judicial prerogatives! Take him away.

[*Hopper is led away.*]

HOPPER. Can I have a drink?

OKLAHOMA. Order in the court! Prisoner at the bar, have you anything to say?

RED. Why, God damn your Honor, I got enough to say to fill a Bible! The way you've been conducting this case is a national scandal. Why, you big bag of wool, you ain't got any more honesty or principle than the Supreme Bench of the United States. You ain't heard any evidence, you give me a cheap lawyer and you said yourself you ain't in favor of a square deal! I object!

OKLAHOMA. You can't object.

RED. I do object.

OKLAHOMA. Overruled. You ain't got any standing. What do you mean, asking for a square deal? This is a court, ain't it? You can't get a square deal in a court! You're accused of being a member of the middle class and I'm damned if I ain't beginning to believe it.

RED. The middle class! Jesus! I grew up in Rabbit Town, I been running with women since I was twelve, and I can carry more liquor without sinking than a whole God damn section crew of drunken Italians! I've travelled more miles than the oldest commuter on the Erie Railroad!

OKLAHOMA. Yeah, but you don't like it. You take to it like a chicken to water. You'll be a drug-store clerk yet.

RED. All right, I don't like it. But if I ain't bummed my way into more towns than any gray whiskered bunkerino in this outfit I'll get off the train! I've been in Kalispell and Salt Lake City and Valparaiso! I've been in Waukesha and Winnemucca and Winnipeg and Miami. I been in Boone and Cheyenne and Jefferson City and Rock Island. I been in Memphis and Baltimore and Santa Monica and Walla Walla and Saskatoon. You can't name a town on the big time I don't know by heart!

OKLAHOMA. Irreverent and immaterial. The court will now deliver sentence. [*He rises rather unsteadily, the liquor beginning to tell on him.*]

RED. Hell, I ain't been found guilty yet.

OKLAHOMA. You know you're guilty. That's disevident to the most unscrupulous mind. You're so guilty you look innocent. Gentlemen of the jury, this country was discovered by Columbus in 1492 and the wops have been coming here ever since. Once there was two Jews, and now look at 'em. If the yeggs and stiffs of this great and glorious republic don't take steps to resist the encroachments of civilization, pretty soon there won't be any yeggs and stiffs.

HOPPER. Yeah, that's true. The Salvation Army gets a license to beg in Little Rock, and I can't.

OKLAHOMA. Hey!

HOPPER. No use being crippled any more. Country's bound for hell in a handbasket.

OKLAHOMA. Before going on and continuing, will somebody murder the Honorable Attorney for the Defense? [*Bill promptly sits on Hopper.*] Gentlemen of the Jury, since the beginning of time there's been three classes in this large and magnificent territory, now governed exclusively by General Dawes and the Anti-Saloon League. I pause for a reply, and if anybody answers me, God help him. First, there is them that gives orders; second, there is them that does the work; and third, but not least, there is them that don't do nothing and never will!

RUBIN. Hear ye! Hear ye!

OKLAHOMA. Gentlemen, of them that don't do nothing there is two kinds, yeggs and stiffs. The only difference between 'em is that the yeggs take what they want and the stiffs ask for it. Them two kinds is the only one's that's free and equal according to the provisions of the Declaration of Independence and the Constitution of the United States. Yes, gentlemen, out of the whole goddam hundred and ten millions recorded for their sins in the last census there remains but a little handful of free men, paying no homage to capital and bending no neck to the foreman, turning no cranks, pitching no bundles, wheeling no go-carts, bringing home no wages, walking independent and alone under the sky. The world's their outdoor sleeping-porch and slumgullion is their kosher. Gentlemen all, that's us.

ALL [*except Red, Snake and Edna*]. Hooray!

OKLAHOMA. But, gentlemen, we have in our midst, to the shame of old Ireland, a slick little Mick, speaking several languages, and with the advantage of a generous hobo education, that intends to get married and support the established institutions. Do you know what we're going to do with him?

BALDY. Lynch him, I say.

OKLAHOMA. Shame on you, Mr. Prosecuting Attorney, for that illiterate suggestion. No, sir; we gotta do everything decently and in order. The sentence is exile to Russia. Little Red loses his sweetie to the custody of the court and gets off the train. Bailiffs, do your duty! Open the door.

RED. What!

OKLAHOMA. Open the door. [*Bill opens the door.*]

RED. You don't mean it.

OKLAHOMA [*savagely*]. The hell I don't mean it.

BILL. Hey, Judge, we're on a trustle. Say, we've left the main line.

RUBIN. We're crossing the Missouri, and it's deeper than the Gulf of Mexico. If we kick him off here he'll have to swim.

OKLAHOMA [*sitting*]. Hell, that's too bad. The court is visibly affected. [*He wipes away a tear.*]

BILL. We'll have to wait and put him off on the other side. Geez, we switched at Fort Union.

OKLAHOMA. That being the case, tie him up.

BILL [*as he and Rubin arrest Red*]. Stand still, you red-headed flea! You want me to bash you one?

RED. I warn you, if you dump me off this rattler there's going to be murder done when I catch up with you!

BILL. Aw, take it in fun, Mick, take it in fun.

RED. Take that in fun! [*He socks Bill viciously on the jaw.*]

BILL. Hey, you dirty bastard!

[*He and Rubin tie Red, the rest laughing heartily. They carry him back and dump him on the sacks near Edna.*]

BALDY [*at door*]. Hey, Snake, this rattler's beating it south. We must have switched at Fort Union.

SNAKE. Yeah? Well, see what you can do about it.

HOPPER. Hell, this is all wheat-growin' country around here.

OKLAHOMA. What the hell do you care where you're going?

HOPPER. Well, now I'll have to walk across the Rocky Mountains.

OKLAHOMA. The court's adjourned. [*He rises and kicks the keg.*] Boys, is anybody going to save me from being a solitary drinker?

HOPPER [*as they cluster round*]. Lemme at it!

BALDY. Here's the Kangaroo Judge!

BILL. Here's the lady friend of the Kangaroo Judge!

HOPPER. Here's the ward of the court!

RUBIN. Here's to fallen women!

OKLAHOMA. Wait a minute! That's a good skoal! [*He walks over to Edna, cup in hand.*] Cutie, a toast has been proposed to fallen frails. Here's to 'em. [*He drinks.*]

EDNA. Don't talk to me about it. Try the Florence Crittenden Home.

OKLAHOMA. You know, sweetie, I got a suspicion you're a little wicked. That's a compliment.

EDNA. Very sweet of you, I'm sure.

OKLAHOMA. Now I'm as wicked as hell, and if you and me was to be wicked together, my God, how wicked we could be!

EDNA. I'm one of these modern women, judge. I claim the right to pick the guy I'm gonta be wicked with.

OKLAHOMA. You know, darling, you've got the old judge going. Now, you're the ward of the court, and I don't want to cause any talk, but God damn his Honor, he'd like to break the Mann act and the Sullivan law with you.

EDNA. You ain't any Valentino you know.

OKLAHOMA. Listen, kiddie, Little Red is deserting you. He's getting off the train as soon as we hit dry land. Who's it going to be? You know who it's going to be.

EDNA. Who's it going to be?... Why, the Snake. He's a better man than you are.

OKLAHOMA. Who says so?

EDNA. The Snake as good as spit in your eye back in the camp—and what do you do? You make some clever remark about not needing to kill anybody at the moment. Lucky for you you can talk. If you couldn't talk yourself out of trouble you wouldn't live long.

OKLAHOMA. Lady bird, the only reason I didn't have a go with the Snake was that he was scared to raise his eyes higher'n my shoe strings.

EDNA. You better whisper that, because he's looking at you.

OKLAHOMA [*turning*]. All right, Arkansas; the lady wants a fight. Get up. [*Arkansas rises.*] Angel-face likes the silent kind. She likes 'em silent as the White House after election. When I get through with you, pardner, you can look for a furnished room in a cemetery. It's going to be the peace of the dead from then on.

SNAKE. Do you always start a fight with a gat in your pocket?

OKLAHOMA [*tossing the gun out the door*]. There it goes. Moreover, if you've got any last statements to make or any fond farewells you'd better get 'em over with. They call you the Snake, do they? Well, I'm a snake-eater, see? I eat 'em alive. When a snake bites me it's the snake that dies.

SNAKE. Go on and preach your sermon, because there won't be any at your funeral. You're drunk, you bag of guts, and I'm going to tear the wind-pipe out of you.

[*Oklahoma swings and misses. The Snake leaps for his throat and Oklahoma gets a similar grip. They fall and roll over, Oklahoma ending on top. He chokes Snake into submission, then pauses thoughtfully, one hand still holding his adversary by the shirt front.*]

BILL. What's the matter, judge?

OKLAHOMA. I'm just wondering whether to kill him or not. If I don't kill him he's going to try to kill me sometime. And if I do kill him, it makes a mess on the floor.

BALDY. Aw, come on, be a sport. Let him up.

[*Ukie takes out his ukelele and begins tuning it.*]

OKLAHOMA. All right, Baldy, you take care of him. Maybe you better give him a drink. [*He goes to the keg, and helps himself. Baldy carries a drink to the Snake, who sits up.*] Are you licked, you sidewinder?

SNAKE. No, by God!

OKLAHOMA. Oh, yes, you are. I'm going to sit by my girl. [*He goes to Edna and sits at her feet.*] Now, little sweet dreams, have you got a good word for Oklahoma? [*He lays his head in her lap.*] What do you say?

EDNA [*smiling at him*]. It ain't a bad state, judge, even, if you come from it.

OKLAHOMA. That's right, kid, be sweet to me. You don't need to be afraid of me. You going to give the old judge a kiss, Angel-face. Come on, kid, show 'em how you do it.

EDNA. Wait till I sing you something, judge. Say, Ukie, play that one again. The one you was just playing.

OKLAHOMA. That's right, sing to me, Angel-face. Sing "Say it Isn't True"—you know that one?

EDNA. I guess I know that one.

OKLAHOMA. Sure, everybody knows that one. There was a swell little dame used to sing that back in Des Moines. Sing it, kid.

[*Ukie plays.*]

EDNA [*singing*].

Sometimes when you're far away;
Sometimes when you've been gone a long while,
Maybe half a day,
Maybe half a mile,
I look out the window
And it looks like rain
And I think very likely
You won't come here again.

[*During song, Red backs around, Edna gets Skelly's knife from Red's pocket and cuts the bonds. Red returns to original position and joins in song.*]

EDNA and UKIE.

But say it isn't true,
Oh, say it isn't true,
Don't tell me you don't love me,
Tell me you do.
Sometimes, oh every once in a while,
I forget how you kiss me,
Forget how you smile;
Then I think someone else
Has cast a spell over you—
But say it isn't true,
Oh, say it isn't true!

UKIE [*rising*]. Now then, come on in, you pikers!

ALL [*singing*]. Oh, say it isn't true, etc.

BALDY. Say, that's God damn good. Let's do it again.

[*There is a trampling overhead.*]

BILL. Sh-h! There's the brakeman!

BALDY. More likely dicks.

[*There is a pause, then the trap lifts.*]

BRAKEMAN [*on the roof*]. My God, there's enough bums down there to fill up the Grand Canyon.

DETECTIVE. I'm going down.

BRAKEMAN. You better not.

DETECTIVE. Ah, hell, it's a bunch of stiff. [*A detective, revolver in hand, drops from the trap.*]

DETECTIVE [*looking round*]. This is sure some sweet little crowd. [*He looks at the keg.*] And you certainly punished the booze. Well you'll pay for that, see? You'll pay for that. Shell out. That's a ten dollar keg and you can dig up ten dollars or get off and take a little drink of Missouri River.

[*He walks to the door, turning his back insolently. Oklahoma, who has risen, suddenly kicks the detective out the door. As he falls, he clutches*

at the jam and his revolver flies from his hand. Red grabs it from Hopper, who has picked it up, and retreats to a corner with Edna.]

OKLAHOMA. Now I know what the carp-fish eat at the bottom of the Big Muddy!

HOPPER. Hey, judge—he's got the gun.

OKLAHOMA. Hel-lo!

RED. Ha! Now what do you say we have that trial over again. Bailiffs, do your duty, Oklahoma's getting off the train.

OKLAHOMA. Hopper, is that gun loaded?

HOPPER. Sure, it's loaded.

RED. Come on, sing us something, judge, sing "Say it Isn't True."

OKLAHOMA. Why you goddam little fool, do you think that gun's protection? You think you can bust through the drag-net they got out for you two? You ain't got a chance. Why you ain't got a chance against me. What do you think that damn little gun's going to get you? Just five minutes more, that's all—just five minutes more.

BILL. Hell! He lit in the mud! We're across the river! Beat it, youse.

[Train bangs to a stop. The gang jumps off. Mose, Sims and Ukie remain.]

UKIE. Now there's going to be hell to pay—you better beat it, nigger.

MOSE. What did ah done?

BRAKEMAN *[appearing at door with detective]*. Well, what are you doin' here?

UKIE. We ain't with that gang. We paid for this ride.

DETECTIVE. Yeah, they're all right. They're going south; let 'em ride to Fairview.

BRAKEMAN. All right, you're doin' it. They'll get 'em at Fairview all right.

[The two disappear.]

MOSE. Hey, white man, Ah's goin' no'th! Ah don' wanna go south no mo.'
[Exit.]

RED. Let's get out of here, kid. This place ain't healthy. Not that way, they'll see you. Come on!

[Train starts.]

EDNA. So long, Ukie! *[In end-door.]*

UKIE. Good-bye, Juliette.

[Exit Edna, then Red.]

SIMS. Who'd she go with, Ukie?

UKIE. She's going north with a little red-headed guy.

[Ukie plays the ukelele. Sims drowns. Skelly still sleeps in the corner.]

CURTAIN



ACT III

cene: A deserted claim shack on the edge of Montana. There are two windows in the rear, a door at the left. No furniture has been left in the place save a stove which stands in the corner at the right and a kitchen table between the windows. A flour barrel stands on one side of the table, a fish keg under it.

ime: It is just daylight the next morning.

t Rise: Edna is still asleep on the floor at the extreme right, her face to the wall. Little Red sits bolt upright, the revolver on his knee, evidently guarding her. At the left, near the door, the hoboes are stretched out in heavy slumber. They are all here except the four who remained in the box car. Baldy stirs, yawns loudly, lifts his head, and looks at Red.

BALDY. Beautiful morning, Mickey.

RED. Yeah, ain't it, though?

BILL. Shut up, will you?

BALDY. There, there; did we wake him up?

BILL. What the hell's wrong with you? It ain't mor'n four o'clock. I got to get my beauty sleep, ain't I?

BALDY. Well, you need it, all right.

BILL. All right, shut up and let me rest my hands and face.

OKLAHOMA [*sitting up*]. Well, my God, will you take a look at Red here! He's been standing guard all night, and expecting trouble any minute. Red, you do beat hell. Didn't you get any sleep at all, kid?

RED. I don't need any sleep. I used to be a six-day bicycle rider. Anyway, why in hell didn't you hoboes look up a claim shack of your own? We found this joint first.

OKLAHOMA. We didn't know you was in here. And for the matter of that there ain't another shack within two miles and it was raining and darker

than a bushel of black cats. If you hadn't lit the candle we wouldn't have found you in a thousand years.... It certainly is hell to keep you awake like that. Why didn't you go to sleep, you poor fish? We was all asleep.

RUBIN. Who was awake?

OKLAHOMA. Aw, Red's been awake all night, with the blue-iron all ready for business. Afraid somebody'd steal his guinea.

RUBIN. Now ain't that terrible? He won't be hardly any good today keeping them late hours and all. You're going to lose your job with the chippie, kid, if you go and get out of condition.

BALDY. That's all right, Mickey; don't let 'em kid you. Any time you need it, I seen a sign back in Minot, Lost Manhood Restored. They do it cheap back there.

RED. If they could do that maybe they could grow hair on that solid ivory of yours. Why don't you try 'em?

BALDY. I don't need hair on my head. I got it on my chest.

HOPPER [*getting up to look out window*]. Jeez, it's morning!

BILL. Aw, go to sleep.

BALDY. If you want to sleep, go on outside. There's a million acres of prairie out there with nobody using it. Pick yourself out a soft acre and go to sleep in the middle of it.

BILL. Hell, I don't want to wake up, because if I wake up I've gotta have breakfast and where am I going to get it?

BALDY. Ah, the country's lousy with jack-rabbits. Catch yourself one. The way you beat it away from the rattler last night a jack-rabbit wouldn't have a chance.

HOPPER [*sounding on the flour barrel with his knuckles*]. There's somethin' in this.

BALDY. God, he's hopeful. I suppose you think it's full of hot muffins.

HOPPER [*reaching into the barrel*]. It's flour. Can anybody cook?

BILL. I don't want any of that. I'll bet it's full of boll weevil.

HOPPER. No, it's all right. There ain't even been mice in it.

BILL. Well, then, there must be something wrong with it.

RUBIN [*investigating the fish keg*]. Boys, we've got some rare old pickled herring here.

OKLAHOMA. See if you can catch 'em. I'll bet they're playing tag in there.

RUBIN. Come here, Bill. Is these fish any good?

BILL. Is fish ever any good?

RUBIN. Come over here and smell 'em.

BILL. I don't have to go over there to smell 'em. I can smell 'em here.

OKLAHOMA. Put that lid back on before they escape.

BALDY [*looking into the flour barrel*]. Let me see that flour. That's all right. That's No. 1 hard, F.O.B. Minneapolis. I can make something out of that.

BILL. Where you going to get your soda?

BALDY. What do you know about soda? If you want to be intelligent ask me where I'm going to get the firewood.

BILL. I'll bite, where you going to get it?

BALDY. Them as wants breakfast will step out and forage for it.

BILL. I knew there was a catch in it. Is *that* all the better of a cookie you are?

BALDY. I got to have some water, too. Get the hell out of here, you bunch of bindle-stiffs, and let me work.

RUBIN. Say, if you're going to work, I'd like to stay and watch you.

BALDY. All right, I'll get it myself. [*He takes a pail from the table and hands it to Hopper.*] Here, Hopper. [*Kicks Bill out of door and exits.*]

BILL. You think he's sore?

RUBIN. No—just the old woman's way. [*He looks out the window, then steps out.*]

HOPPER. I'll bet you have to walk a mile for water in this country.

[He goes out, followed by Rubin. The Snake turns over, stretches himself, takes in the situation and goes out.]

OKLAHOMA *[to Red]*. You don't have to sit there all day with the gun in your lap.

RED. How about last night?

OKLAHOMA. Well, what about it? You're off the train, ain't you? The sentence was carried out by what the life insurance agents calls an act of God. Everything's been working out fine for them that loves the Lord, including you two babes in the wood. Put your gun away. I won't bite you.

RED. What are you waiting round for?

OKLAHOMA. Because I want to talk to you.

RED. What about?

OKLAHOMA. Do you know why I was going to kick you off the train?

RED. Do I seem to be going blind?

OKLAHOMA. I'll tell you, I didn't want you to make a damn fool of yourself.

RED. I'm certain obliged.

OKLAHOMA. You think I'm kidding you. Well, I'll admit I liked the little girl, but hell, I've seen a mort of fan-tails in my time. You know what they're good for. You don't want to tie yourself up with one of 'em, especially one with a record. Catch 'em young, kid, treat 'em rough, tell 'em nothing.

RED. Did you hear me asking for any advice?

OKLAHOMA. Well, you're just a God damn fool, that's all.

RED. Is that all you had to say?

OKLAHOMA. That's all.

RED. Then I guess you can go now.

OKLAHOMA. All right.

[He rises. Edna stirs and sits up, brushing back her hair.]

EDNA. Lend me your comb, will you, Red?

RED. Sure. *[He hands it to her.]*

EDNA. Where's all the procession?

RED. Out for tinder.

[A pause.]

EDNA. What were you two talking about?

RED. Oklahoma was just backing out the door.

OKLAHOMA. You know, for kids that's supposed to know your way around, I don't know as I ever come across a pair of idiots as simple. First you croak an old guy and then you set off across country for a honeymoon with half a dozen detectives tied on behind you instead of old shoes. I don't get you at all.

EDNA. It does sound funny when you put it that way, don't it?

RED. Well, life's funny, anyhow, Oklahoma. You've got a lot to learn.

OKLAHOMA. Yeah, life is certainly funny; and the whole world is certainly behind you two, getting ready to kick you good. You break all the rules of the game and you don't even play to win.

EDNA. No?

OKLAHOMA. The first rule in making a getaway is Scatter. The dicks know Angel-face is travelling with a red-headed go-bragh. They know Red is travelling with a lady friend. If they find you together you incriminate each other. If you want to get away, why don't you cut loose?

EDNA. If they get their nickel-plate on me it's good night, no matter who's with me.

OKLAHOMA. All right; but if they see you with Red they spot you as easy as chalk on a door, and if you're with somebody else they're off the scent. And Red here, he's walking right into the sheriff's lasso. Along

with you he'd an accessory. Going it alone he's just any red-headed kid, and Christ, there's plenty of them.

RED. Aw, we're onto your little game. You can get the hell out.

OKLAHOMA. Well, as I said before, you're just a God damn fool. You think you're noble or something. You probably saw a movie somewhere and went completely nuts. You're nuts over little Edna and she's nuts over you and she'll have the satisfaction of ringing you in on a short session of blind man's buff out behind the Minot jail-yard. You're cuckoo. You two are going to have a grand time being buried together and all.

RED. Have you ever been hung very much?

OKLAHOMA. No.

RED. Well, if you haven't been hung, you must have got away. That's what we're figuring on, getting away.

OKLAHOMA. Where to?

RED. Ask another.

OKLAHOMA. Oh, where are you going? You've got to get out and get out fast.

EDNA. How about Medicine Hat?

OKLAHOMA. Yeah, that's all right. How're you going to get there?

EDNA. Cut north to the Soo and cross the border in the day coach.

OKLAHOMA. The Soo's a hellish slow railroad. Still, you can't ride on this one any more. Yeah, you'd probably make it. And then what?

EDNA. Medicine Hat.

OKLAHOMA. And then what? Then Red goes to work for the gas company, huh, or selling bath tubs to the Norwegians. You'd settle down in one of them three-for-a-dime cottages and keep house. They're a fine church-going crowd up there and they'd take to you like hell. You'd have a wonderful time. How long do you think you could stand it?

EDNA. There's land up there....

OKLAHOMA. Or else you move into a claim shack and spend the winter dancing to keep warm.

EDNA. Have to go somewhere, you know. Can't be nowhere, like this.

OKLAHOMA. And then you'd start raising kids. Oh God! Do you call that a future? How long d'you think Red's going to last at that? He hasn't spent more'n three days in any one town since he was old enough to find the railroad track.

RED. Say, are you going to talk all day? Sign off, will you?

OKLAHOMA. I'll tell you what we'll do, kid. I've got a small roll left. We'll let Red try the Soo on his own and you and I'll pick up a bus somewhere and never stop till we get to Colorado Springs. I know a hang-out down there and I'll show you the time of your life. If you're caught with Little Red you ruin him. You don't want to do that.

RED. Wake me up when he quits. Aw, bull!

EDNA. And what if I'm caught with you?

OKLAHOMA. Well, you won't be, for one thing. And if you are—I ain't a walking identification tag like that guy.

EDNA. I guess maybe—I ought to do it.

RED. Do what?

EDNA. I ought to give you a chance.

RED. Do you mean you've been listening to that kangaroo?

EDNA. I guess maybe he's right, Red.

RED. Do you want to go with him?

EDNA. Yes, I—I guess so. [*She rises.*]

RED. No, you don't. [*He rises.*] And if you did, do you think I'd let you? I'll fill him as full of holes as a barrel of doughnuts first! Go on out and take a running jump in the Missouri, you hog-shouldered rag-picker, before I feed you a plate of ammunition!

OKLAHOMA [*looking at them in a puzzled way*]. Would you do that, Red, would you actually do that?

RED. You try any monkey-business and you'll find out! Hell, you talk about slick Micks, if you ain't the heavyweight soft-soaper of the world I'd like to meet the guy that is! My God, you almost sold that face of yours to a girl when she had another one to pick from! And say, that face of yours would be a lovely thing to live with! Think of looking at that across the breakfast table!

OKLAHOMA. Damned if I don't believe the boy means it. You know I can't make you out, Mickey. I thought you'd probably be damn glad to get rid of her. As a matter of fact I thought I was doing you a favor. If you was looking for dangerous baggage you couldn't pick up dynamite any more likely to send you to your Happy Hunting Ground than her. And here's your best chance to shake loose, and you don't want to do it.

RED. No, damn you, no. D'you get that?

OKLAHOMA [*lighting a cigarette*]. I don't know as I ever knew a case like it. [*He sits down.*] Do you know what I think's the matter with you two? [*There is no answer. Oklahoma speaks quite seriously and speculatively.*] You must be in love.

RED. I don't care what you call it.

OKLAHOMA [*still pondering*]. Yes, sir; I've often heard about it, but I never saw it before. I knew all the time there was something wrong with you two. Yes, sir. That's what it is.... Well, that being the case we'll have to make the best of it. Medicine Hat, huh? Medicine Hat ... I can understand your liking her ... I liked her the first time I got a flash at her pan—but this life-term stuff—oh, hell.

RED. I told you you had a lot to learn.

OKLAHOMA [*to Edna*]. You don't want to come with me?

EDNA. I'd do it—for Red. You see, I'd do anything for Red. But if he wants me to stick around—why, you know where you can go. Where the Pope told the Cardinal.

OKLAHOMA. Aw, use a little diplomacy, Angel-face. Even a judge has feelings. The old judge, damn his whiskers, is inclined to be lenient. There's something in the way you kids look at each other that gives him a jolt. A couple of wild-eyed idiots that wants anything the way you do

—probably you ought to get it. I don't know whether you'll like it after you get it—but that don't make any difference. If you want to go to Medicine Hat why it's a deal; you're going. You're going if the gang has to stage a massacre in Wolf Point to pull the bulls off the track. Stow the side-arm, Red. And shake. [*He holds out his hand.*]

RED [*hesitating*]. No, I don't like you, and I won't shake with you.

OKLAHOMA. That's all right. I don't hold it against you. If I was to count the number of guys that don't like me on my fingers I'd have to be a thousand-legged worm. You're probably right, Red. I'm a low-lifer and not to be trusted. But, damn it all, you're an amusin' little cuss, Red, and I kind of take to you.

EDNA. Grab the mitt, Red. He's a good bet.

RED. Well, if you say so. Always the gentleman.

[*He puts the gun in his pocket and takes Oklahoma's hand. Instantly Oklahoma twists his wrist in an iron grip, whirls him round and catches the other arm, holding Red like a vice.*]

OKLAHOMA. You see, I got you easy. You see, Angel-face, Little Red was right. I'm a low-lifer and not to be trusted. I talked you right into a trap and you're busted. I've got you. On the other hand, speaking contrarywise, I don't want you. I ain't even taking your gun away from you. I wouldn't spoil your picnic for country sausage and wheats, and God knows I'm hungry for breakfast. You two are emigrating to Canada if I have to carry you across the dyke in a basket. [*He releases Red.*] Now, will you shake hands without being told?

RED. Why, you double-breasted son-of-a-buck,—no.

OKLAHOMA. All right, kid.

[*Bill and Rubin enter, Rubin carrying kindling, Bill carrying lumps of coal.*]

BILL. You know what I found? I found a coal mine!

OKLAHOMA. A coal mine?

BILL. Right! A coal mine! Growing right out of the ground!

OKLAHOMA. Why, Bill, that's grand. That's simply grand! I didn't think you had it in you!

RUBIN [*laying the fire in the stove*]. I tell you that's lignite.

BILL. Well, it's coal, ain't it?

RUBIN. They call it coal.

BILL. It'll burn, won't it?

RUBIN. Some people has been able to set it on fire.

BILL. Then what's the difference?

RUBIN. What's the difference between a duck and a mud-hen? That's the difference.

[*Oklahoma lies down and smokes a cigarette.*]

BILL. Hell, if it'll burn I'm going to make a fire with it.

RUBIN. You are not! I'm making this fire. If you want to try lignite, try smoking it. It goes out as easy as a Richmond Straight.

BILL [*putting down his coal and looking at it*]. Aw, come on, give it half a chance.

RUBIN. I damn near froze meself to death giving it a chance, one winter. It don't give off any more heat than a lightning bug.

[*He lights the fire. Baldy and Hopper come in with wood.*]

BALDY [*to Rubin*]. Do you know how to do that?

RUBIN. Do I know how to do it? My specialty is setting fires.

BALDY. Ah, let me at that.

RUBIN. What the hell do you know about it?

BALDY [*he elbows Rubin away*]. Me, I'm the cow that kicked over the lantern in Chicago. That ain't no way. When it comes to starting fires I'm the San Francisco earthquake. See that? [*He sets about mixing water and flour in a basin.*]

BILL. What's that going to be?

BALDY. How do I know till I get it made?

BILL. Well, you might have some idea.

BALDY. Look at the menu. Maybe it's waffles. [*He beats the mixture vigorously with an iron spoon.*]

BILL [*eyeing the operation*]. You know, I don't think that's going to be much good.

BALDY. Well, for God's sake! Who do you think I'm making it for—you? You're going to be lucky if you get any of this.

BILL. Yeah?

BALDY. What did you ever do to earn your breakfast anyway?

BILL. I got a half ton of coal here to sell, if anybody wants it. I lugged it all the way from the river bottom, too.

BALDY. Well, you can take it right back again now. I don't want this here kitchen floor looking like a coal bin.

BILL. God, but you're getting domestic.

[*Baldy pours batter on the griddle.*]

RUBIN. Gee, that looks queer to me.

HOPPER. Looks kinda stringy, Baldy, and kinda lumpy. Maybe you better beat it some more.

BALDY. Say, are you cooking this breakfast, or am I doing it?

HOPPER. I don't know whether it's breakfast or not, and I don't know whether it's cooking, but whatever's being done, you're doing it. I don't want to be responsible.

OKLAHOMA. Come to think of it, in the best circles they ain't really eating breakfast since the war. Somehow, when I look at that there that Baldy's playing with, I ain't got any appetite.

[*The Snake comes in, sits, and watches Baldy silently.*]

RUBIN. Honest to God, now, Baldy, what is it you're making, if any?

BILL. Ah, Baldy's doing fine. If he had some ham now he could make some damn good ham and eggs, if he had some eggs.

BALDY. That's a new one, that is. You plucked that one fresh right out of the Garden of Eden.

RUBIN. On the level, what d'you call it? Not that I give a damn.

BALDY. If you really want to know, it's drop cakes.

BILL. I don't like the name.

BALDY. No, you wouldn't.

BILL. No, it reminds me of something.

OKLAHOMA. What's the theory of 'em, Baldy?

BALDY. Well, the theory is, you beat 'em till you get air in 'em, see; and then you don't need anything to rise 'em.

OKLAHOMA. Oh yeah, well, maybe you didn't beat 'em enough.

BILL. Maybe you beat 'em too much. You prob'ly knocked the wind out of 'em.

RUBIN [*tastes batter and spits it out*]. Did you ever make any of them before, or is this a first attempt?

BALDY. Maybe I did and maybe I didn't.... I used to be cookie in a circus. Yah, I used to cook for the lions. I seen a guy make 'em once.

BILL. Did he have any success, or did it look the way that does.

BALDY. Yeah, he had success, and it looked the way that does.

RUBIN. Did the lions eat any of it.

BALDY. Yeah, and it was damn good, too.

BILL. How many of 'em recovered? [*Baldy tries to turn a cake with a spoon and has trouble.*] Hey, that ain't ready yet! That ain't ready!

HOPPER. I'll bet you never greased the pan!

BALDY. Ah—what was I going to grease it with?

HOPPER. If you haven't any grease you have to get the pan hot, and then nothing'll stick to it!

BALDY [*finally turning the cake with a flourish*]. Look at that! I guess I got it hot enough. Who wants the first stack of wheats?

[*A grim silence.*]

RUBIN. I got a weak stomach.

BILL. You got a weak stomach too? I'm on a diet.

RUBIN. My doctor says to me—"you can eat anything but drop cakes," he says. "Now you remember that," he says. "One more drop cake is going to kill you." Imagine! And me passionately fond of drop cakes.

BALDY. I'm going to drop a cake of something on you that'll kill you, in just about a minute.

RUBIN. Don't you hit me with any of them!

BALDY. You think I'd waste any on you, inside or out, you cheap wisecracker? These is for gentlemen. [*He places a cake on a pie-pan and sets it in the middle of the floor.*] This here's for Oklahoma. [*He sets out another cake on another plate.*] And this is for Arkansas. Come on, Snake. When you finish that there's more coming. Come on, yegger. The chow's on the table.

OKLAHOMA. Women and children first. Give mine to Red and his angel.

BALDY. Naw, it's for you.

EDNA. Oh, we can wait, Oklahoma.

BILL. In fact, they'd almost prefer to wait.

OKLAHOMA [*seating himself near his plate*]. All right, come on, Snake. The chef's a friend of yours. You got to stick by your friends.

SNAKE. All right.

[*He sits near his cake. Each takes out a jackknife, opens it, cuts off a bite and tastes deliberately.*]

RUBIN. How is it?

OKLAHOMA. Say, you boys ought to get in on this. It's an experience.

BILL. What's it like?

OKLAHOMA [*with a wry face*]. God, there's no describing it. You got to eat it to believe it.—Snake, you and me has had hard words before now. I don't know as we ever agreed about anything before. But something tells me that we got something in common from now on. Am I right?

SNAKE. I'll bet I don't like 'em as much as you do.

OKLAHOMA. By God, I don't know. I don't like 'em much.

BALDY. What's the matter with 'em?

OKLAHOMA. They're all right, Baldy; they're damn good, you know; only they'd be even better if they was cooked.

BALDY. Ain't they cooked? Sure they're cooked.

OKLAHOMA. They're hot, all right, and of course cakes is good hot, but I do like 'em to be cooked, too.

BALDY. Hell. I can cook 'em some more. [*He lifts the cakes from the floor and puts them back on the pan.*]

OKLAHOMA [*sighing as he rises*]. There! A man always feels better after a good meal. [*He glimpses someone out the door.*] Who's that?

BILL [*looking out*]. It's Mose.

RUBIN. Now how in hell did he get here?

HOPPER. Right at present he's walking.

[*Oklahoma goes to the door and calls.*]

OKLAHOMA. Heigh!

MOSE [*outside*]. Heigh! White man! [*He enters.*] Yes, sir; I done found you at last!

BILL. Where you been?

MOSE. Gettysburg and other burgs, white boy. Ah been huntin' you all since daylight.

OKLAHOMA. What's the trouble?

MOSE. Where does you all think you is?

OKLAHOMA. We figured we're in the middle of nowhere.

MOSE. Well, you ain't. You're just three miles from Gettysburg, Montana, counting telephone poles, an' it ain't far 'nough. When we rolls into the yards last night, I sneaks up to the railway station to find out what's going on. And there was suah plenty goin' on. There was the sheriff with a telegram in his hand, swearin' in deputies by the wagon-load and holdin' a session with the train-crew. He says so's ev'body could heah him they was goin' to staht down the railroad track as soon as it was bright enough to see, and foller yo' trail in the mud and get yo' asleep. Ah has just barely beat him heah, becaise there's two posses closin' in on you, the fust one comin' from town and the second one comin' from the riber. If you'all wants to get away you better make a break no'th up the coulee, and you better do it fast. That's all. Ah's goin'.

[He turns to the door. Oklahoma blocks his way.]

BILL *[jumping up]*. Jesus!

OKLAHOMA. Wait a minute. We got to do this right or nobody'll get away.

MOSE. Boss, Ah don't want to get in on no trouble.

OKLAHOMA. Sorry, Mose, you'll have to wait a sec.

BILL *[as the whole gang gets ready to go]*. Where's my goddam hat?

BALDY. You won't need any hat where *you're* going.

BILL. Hell, where is that hat? Has somebody got my hat?

RUBIN. Your hat? You got it on, you poor nut!

BALDY *[to Oklahoma]*. Gangway there!

OKLAHOMA. Not so fast.

SNAKE. Step out of the way, will you?

OKLAHOMA. Nope. You boys'll have to wait a minute. I got something to tell you.

HOPPER. Make it snappy, then. I got a lame leg and I can't run fast.

OKLAHOMA. Well, you can listen fast. Now, look here; if we make a break in a bunch we're almost sure to get picked up. They'll spot us sure as

hell—and then what happens? Why, little Red and Edna get the hemp and the rest of us get thirty days for being in bad company. There's only one thing to do. We let little Red and Edna slip away up the coulee and we stay here and parley the posse. If we do it right we can hold 'em long enough to give the kids a handy start. And we won't get any more time'n we'll get anyway if we stampede across the prairie.

BALDY. Get out of the door!

SNAKE. Stand away from there!

OKLAHOMA. You heard what I said?

SNAKE. Stand away from there!

OKLAHOMA. You're used to having your own way, ain't you, Snake? Up to the time you met me you was completely spoiled. And since you met me you never do get your own way. It's hard on you, and you've got my sympathy. But don't talk so loud. [*Snake rushes Oklahoma and is knocked back into the room. Baldy follows, meets the same reception, and falls athwart the Snake.*] Mickey, beat it. Come on, Angel-face.

[*Red and Edna go toward the door.*]

RUBIN. Go straight north and you'll hit Ardoch! Take the local!

RED. Fine!

OKLAHOMA. If you have to buy tickets, here. [*He hands his roll to Red.*]

RED [*taking it*]. You're the God-damnedest old—

OKLAHOMA. Shut up and get out. [*He keeps his eye on the hoboes.*]

EDNA [*kissing Oklahoma*]. Good-bye, old timer.

OKLAHOMA. Good-bye. [*Red and Edna go. Mose crawls behind the stove.*]
What you doing in there?

MOSE [*Looking out*]. Ah'm just trying to get warm.

OKLAHOMA. Now, here's the rest of the story. We've got to cook up something to tell the bulls so we'll all give it to 'em the same way. This is how I figure it out. If they don't know Angel-face was with us we won't tell 'em. And nobody knows who kicked the dick off the train, see? That was just an unhappy accident, that's all. The poor guy lost his

balance and fell. And no matter what they say nobody here knows anything about the row at Williston, get that? That must of been another gang. And if we can do it we'll make 'em think we never saw Red or Edna, either. Bill, look out the window and see if Red's out of sight.

BILL [*looking out*]. They just went behind the willows.

OKLAHOMA. Then they won't see them, that's sure. There's only one thing wrong with the dope. They know the kids was on that train and they won't quit hunting till they get 'em. Now if there was only somebody here that looked like a frail he could play Angel-face and that'd certainly gain time.

RUBIN. Maybe I could do it.

BILL. You need a shave too bad.

RUBIN. Baldy, he ought to be able to do it.

OKLAHOMA. Or if there was only another little red-headed guy.... [*He looks out the door.*] They're coming, 'Boes; lie around and look natural. There's fifty of them.

[*Deputies appear at windows, crashing in glass, and then the sheriff appears in the doorway.*]

SHERIFF. Hullo.

OKLAHOMA. Yes, sir. Quite so.

SHERIFF [*to those behind him*]. We've got 'em trapped, boys. [*A couple of men appear in the doorway with guns.*] The gang's covered. Put up your hands. [*The hoboes lift their hands. The Sheriff enters.*] Get up and line up here. [*They all get up and stand in line except Mose.*] Search 'em. [*A deputy enters and slaps their pockets, finding no weapons.*]

DEPUTY. They're harmless, chief.

SHERIFF. Lower your hands, but stand still. Where you from? [*There is a silence.*] Well, speak up.

OKLAHOMA. We're from everywhere, chief.

SHERIFF. Who are you?

OKLAHOMA. Me? I'm a decayed mining engineer, out of work.

SHERIFF. A mining engineer? I'll bet you mined gold out of little iron boxes when you was working.

OKLAHOMA. Now, chief, is that fair? You're pinning a rep on me without no evidence.

SHERIFF. I don't need evidence when I see a face like that.

OKLAHOMA. Yeah, I often used to say that myself.

SHERIFF. You did?

OKLAHOMA. Yeah, I used to be a judge.

SHERIFF. Yes, I daresay. Well, now, I'll tell you who we're looking for, and if you can help us out you'd better do it. We're looking for a little red-head and a girl that beat it out of Williston last night on the freight. If you can tell us where they are we don't want this bunch. You can get the hell out of here, the faster the better for you. If you can't help us out why you're going to Wolf Point and enjoy our hospitality till we find out all about that little affair back in Williston.

OKLAHOMA. What happened at Williston?

SHERIFF. Just a nice little murder. They found a farmer sitting at the lunch table with three bullets in him.

OKLAHOMA. Now who do you suppose would do a thing like that?

SHERIFF. The girl did the shooting—and she was on the freight last night. Who saw her?

OKLAHOMA. Hell, we came in the other way, chief. We're all going east. We ain't seen no girl.

1ST DEPUTY [*stepping in*]. Like hell they was going the other way! Chief, our squad traced this gang in the mud all the way from the river where they got kicked off.

SHERIFF. Yeah? What did you want to lie to me for?

OKLAHOMA. I don't want to get mixed up in no murder.

SHERIFF. Hold your jaw for a while. I'll get back to you later. [*To Rubin.*] Were you on that west-bound freight last night?

RUBIN. Yep.

SHERIFF. Was there a girl on the train? A girl travelling in pants.

OKLAHOMA. Sure there was.

RUBIN. Sure there was.

SHERIFF. Where is she now?

OKLAHOMA. She fell in the Missouri and got drowned.

RUBIN. Yeah, that's right. She fell in the Missouri and got drowned.

SHERIFF. How'd it happen?

OKLAHOMA. We was just—

SHERIFF. Drop your trap! Go on, you.

RUBIN. We was just riding along over the river, and we had the door open, and she was leaning against the side looking out, and the train gave a swerve, like that—you know—and she went out—that's all.

SHERIFF. That sounds kind of phoney to me. [*to Baldy*]. Who are you?

BALDY. Ex-soldier. Honorable discharge. See that? [*Pointing to his scar.*]

SHERIFF. How'd you get that?

BALDY. Fighting for my country.

SHERIFF [*to Bill*]. Did you see a guy called little Red on the train?

BILL. Me? Little Red?

OKLAHOMA. Sure he did.

BILL. Sure I did.

SHERIFF [*to Oklahoma*]. One more break like that, old yegger, and you're going to be breaking rock. [*To Bill.*] Where's little Red now?

OKLAHOMA. He don't need to answer that. I'll answer that. I'm little Red.

SHERIFF. You are?

OKLAHOMA. Yep.

SHERIFF. You carry too much weight to answer to that alias, my friend.

OKLAHOMA. Aw hell; that's why they call me little Red. Because I ain't little.

SHERIFF. You own up to the shooting?

OKLAHOMA. No, sir. I had nothing to do with it. That was the girl's private affair.

SHERIFF. What's the girl's name?

OKLAHOMA. I don't know what her last name was, but her first name was Emily or Evalina, or something. Anyway she's dead.

SHERIFF. So you're little Red, huh?

OKLAHOMA. I said it.

SHERIFF. Boys, is that what you call him?

BILL. Yeah, he's little Red. I wouldn't have told you, only he told you first.

SHERIFF. Fine. That makes you an accessory.

OKLAHOMA. The hell it does. I tell you—

SHERIFF. Tell that in the dock. Boys, we've got an accessory.

OKLAHOMA. Like hell.

SHERIFF. If you want to get out of here without having your face wrecked, shut up till we ask you to talk.

OKLAHOMA. That's Jake with me.

SHERIFF [*to Snake*]. You. That story about the girl falling in the river. Is that straight?

SNAKE [*after a pause*]. About the girl falling in the river? Sure, that's straight.

SHERIFF. I see. All right, 'Boes. The Wolf Point county jail is next on the route. Left by file. Forward....

OKLAHOMA. Just one question, chief. Is the cooking good in your jail.

SHERIFF. Couldn't be worse. It's terrible.

OKLAHOMA. Oh God, and I lost all my money in the river, too.

SHERIFF. Forward! March! [*The gang files out the door. The sheriff lingers a moment.*] Is there something scorchin' in here? Smells like it.

2ND DEPUTY. Ah, it's their damn pancakes.

SHERIFF. Ah, let 'em scorch!

[*They go out. After a moment, Mose comes out from behind the stove, his face contorted with pain and rubbing his shoulder with his hand. He looks out cautiously, then comes back, muttering to himself.*]

MOSE. Scorchin'! My God, Ah'm burnt to a crust!

[*He goes to the stove, takes a pancake, blows it to cool it, and sits down with it. He tries it, doesn't like it, then takes a paper package from his pocket and sprinkles the pancakes with salt. Trying it again, he likes it no better. He rises, looking down at the thing.*] Looks like food. But it ain't.

[*A deputy appears in the door. Mose goes to the stove and picks up the frying pan, looking earnestly at the contents.*]

DEPUTY. Hey, you! [*Mose leaps dropping the pan.*] Come on, I saw you jouking around in here.

MOSE. Listen, boss; what time is it?

DEPUTY. Five o'clock.

MOSE. What time does you have breakfast in jail?

DEPUTY. Six.

MOSE. All right. You don't need no irons. Ah's comin' quiet.

[*They go out.*]

CURTAIN

TRANSCRIBER'S NOTES

- Typos fixed; non-standard spelling and dialect retained.

*** END OF THE PROJECT GUTENBERG EBOOK GODS OF THE
LIGHTNING; OUTSIDE LOOKING IN ***

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